

BURUNDI:

Long-term IDPs need land security

A profile of the internal displacement situation

20 October, 2009

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

Based on its monitoring and data collection activities, the Centre advocates for durable solutions to the plight of the internally displaced in line with international standards.

The Internal Displacement Monitoring Centre also carries out training activities to enhance the capacity of local actors to respond to the needs of internally displaced people. In its work, the Centre cooperates with and provides support to local and national civil society initiatives.

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OVERVIEW

Long-term IDPs need land security

The security situation in Burundi improved markedly after the last rebel group in the country laid down its arms at the end of 2008, and no new conflict-induced displacement was reported in 2009. However, up to 100,000 internally displaced people (IDPs) remain in sites in northern and central Burundi. Most of them, displaced in the 1990s or early 2000s following inter-ethnic violence and fighting between the government and rebel groups, have integrated in the neighbouring towns and villages they fled to, and the majority reportedly wish to remain in these sites.

The majority of IDPs do not own their houses and land in the sites, but live on state-owned, private or church-owned property, which has caused disputes with the original owners. Informal transactions take place but often lead to disputes as the same parcel of land can be sold a number of times without being registered. A comprehensive land law has been drafted which should apply to rural areas (until now regulated by customary law) as well as cities, but it is not likely to be enacted before the 2010 elections.

Since 2006, the UN Peace Building Commission has worked with the Burundian government to support post-conflict recovery, including the recovery of people affected by the country's internal armed conflicts. One promising initiative developed by the Burundian government together with UN agencies and donor governments is the construction of villages where IDPs can resettle, along with landless returnees and other vulnerable people.

Background of displacement and political developments

Since the independence of their country in 1962, hundreds of thousands of Hutu and Tutsi Burundians have been killed in massacres carried out by members of the Hutu majority or the elite Tutsi minority. Millions more have at various times fled their homes to escape the killing. The violence has been fuelled by regional and ethnic tensions, particularly the genocide of Tutsi and moderate Hutu in Rwanda and two major wars in the Democratic Republic of Congo, as well as economic inequalities.

In 1993, large-scale displacement followed the assassination of the first elected president, Melchior Ndadaye, and subsequent massacres. At first, the majority of IDPs were ethnic Tutsi, particularly in the northern and central provinces, who feared retaliation from neighbours following the assassination of the Hutu president. From 1996, as conflict escalated, both Tutsi and Hutu people found refuge in settlements, especially in the south. The new Tutsi-led government also ordered the relocation of hundreds of thousands of (mostly Hutu) civilians into "regroupment camps" twice in the late 1990s, as part of a military strategy against the rebel groups. The number of IDPs peaked in 1999, with over 800,000 displaced, or around 12 per cent of the population (UN CAP, November 1999, p.6).

While the regroupment camps were dismantled in 2000 following international pressure, other IDP settlements remained. The same year, the government, opposition parties and opposition armed groups signed a peace agreement in Arusha, Tanzania. Large-scale displacement continued, however, as the army continued to fight two rebel groups which had not joined the peace process. In 2003, the bigger of the two remaining groups, the Forces for the Defence of Democracy-National Coalition for the Defence of Democracy (*Forces pour la défense de la*

démocratie-Coalition nationale pour la défense de la démocratie, or FDD-CNDD), signed a ceasefire agreement with the Burundian government, and improved security allowed for the return of tens of thousands of IDPs to their homes (OCHA, 26 May 2005).

A national unity government headed by Pierre Nkurunziza, a Hutu and former head of the rebel movement FDD, was elected in August 2005 in the first democratic election since the start of the conflict in 1993. The second national election since the war is planned for 2010, when voters will also elect members of parliament and local representatives.

The last remaining rebel group, the Party for the Liberation of the Hutu People-National Liberation Forces (*Parti pour la libération du peuple hutu-Forces nationales de libération*, or Palipehutu-FNL), fought on before finally signing a comprehensive ceasefire agreement with the government in September 2006. Insecurity and displacement continued however, until Palipehutu-FNL returned to the negotiating table in April 2008. Following talks with the government brokered by heads of state of neighbouring countries, the group's leaders renounced the use of arms and then registered the FNL as a political party (UNSC, 22 May 2009). As of August 2009, more than 3,500 ex-combatants as well as all children associated with the FNL – out of an estimated 5,000 FNL combatants – had been demobilised (UNHCR, August 2009).

Latest displacement

Several thousand people were temporarily displaced by natural disasters and food insecurity in 2008 and 2009. In addition, several thousand Burundians who had been living in Tanzania (some of them since 1972) without being recognised as refugees were expelled to Burundi, and many of them had no home to go back to (Refugees International, 1 October 2008; OCHA, 3 August 2008; OCHA, 3 October 2007).

The latest conflict-induced displacement occurred in mid-2008, when some 20,000 people were temporarily displaced due to fighting between Palipehutu-FNL and the Burundian army in Bujumbura Rural and Bubanza Provinces (IRIN, 23 April 2008; NGO (anonymous), September 2009).

Current IDP figures

Up to 100,000 people remained displaced as of the end of October 2009 in some 100 sites in central and northern Burundi. This estimate is based on the last comprehensive IDP survey undertaken by the UN in 2005, which found that some 117,000 IDPs lived in settlements, many of which had grown into villages (OCHA, 23 June 2005). This number did not take into account people living with host families, particularly in urban centres and in Bujumbura Rural and Bubanza Provinces. In May 2009 the Burundian Ministry of National Solidarity released a report citing a figure of over 150,000 IDPs, but the report was rejected by local officials as methodologically flawed. In addition, local and international experts on internal displacement issues were apparently not consulted for the report (NGO (anonymous), September 2009).

Durable solutions and access to land

Burundi is Africa's least urbanised country, and around 90 per cent of the population relies on subsistence farming. The return of IDPs and refugees to their land is made difficult by problems such as the high density of the population, the division of land plots into smaller lots despite their poor productivity, and the exploitation of land by new occupants. Also, land tenure in Burundi is currently based on both customary and statutory systems operating in parallel, with some overlapping arrangements in place. This creates confusion and contradictions, and makes the resolution of land disputes particularly intricate.

At least 500,000 Burundian refugees returned to Burundi from 2002 to mid-2009 (FMR, September 2009). The situation of the people who left the country in 1972 has often proved particularly complicated. Upon their return after more than 35 years, many found that their land had been expropriated, redistributed or occupied in their absence. In contrast, returnees who had left the country in 1993 often found that the new occupants of their land were neighbours or family members, and they often managed to find an arrangement with them (ACCORD, January 2009).

Few long-term IDPs have returned home over the past years, and the majority have reportedly integrated in neighbouring towns and villages. The main obstacles to return include the trauma linked to memories of past massacres and the reported impunity of many people who have killed civilians and still live in the IDPs' places of origin; continuing insecurity and difficult economic conditions in areas of origin; and the high population density of the country. While they have not returned home, 75 per cent of IDPs continue to access and cultivate their original land plots. However, the high population density means that many family members have to exploit the same land (communication with NGO (anonymous), October 2009; UNHCR, August 2009 and 1 January 2008; OCHA, 26 May 2005 and 3 October 2007).

The majority of IDPs do not own their houses and land in the sites, but live on state-owned, private or church-owned property (UNHCR, 1 January 2008). This has led to disputes with the original owners, for example when repatriated refugees find IDPs settled on their land. Land claims can be resolved through various mechanisms: formal courts; traditional authorities known as *Bashingantahe*; mediation by NGOs; and the National Commission for Land and Other Properties (*Commission Nationale de Terre et Autres Biens*, or CNTB), although this body has reportedly lacked resources to function adequately (ACCORD, January 2009). The current law does not apply to land which officially belongs to the state in rural areas; these areas cover 98 per cent of the territory and the land is managed under customary law. Informal transactions often lead to conflicts as the same parcel of land can be sold a number of times without being registered. A more comprehensive law which also applies to rural areas has been drafted but is not likely to be enacted before the 2010 elections (NGO (anonymous), September 2009).

Physical security

Overall, the physical security of IDPs has improved significantly since the height of the conflict. But IDPs, like other people, remain subject to high level of violence, and reports of killings, torture, theft, rape and extortion by government security forces as well as FNL groups remain common (USDoS, 25 February 2009). Most human rights violations and abuses go unpunished (UN HRC, 15 August 2009). Like the rest of the population, IDPs are also the victims of banditry, a phenomenon which is prevalent in several regions and exacerbated by the widespread circulation of small arms and the current difficult economic situation.

The UN reported in December 2008 that sexual violence against children, particularly against girls, remained a serious concern in Burundi. The majority of the cases were perpetrated by civilians in an environment of insecurity and impunity, but perpetrators also included members of the Burundi National Police, the Burundi National Defence Forces, and FNL militia (UNCS, 26 March 2009). In 2006, the UN estimated that 19 per cent of adolescent girls and women in Burundi had been victims of sexual violence (OCHA, 2006, p.13).

Over the years, both rebel groups and the government have recruited child soldiers, of whom many were presumably displaced. After months of negotiations with Palipehutu-FNL, involving the national government, civil society, and UN agencies, child soldiers were gradually released. In April 2009, the last 340 child soldiers, formerly associated with the FNL rebel militia, were released and reunited with their families (UN News Service, 18 September 2009).

Humanitarian conditions

The humanitarian needs of IDPs are very similar to those of other vulnerable Burundians, who have limited access to basic services due to poverty, corruption and food insecurity (IMF, March 2009; World Bank Group, September 2009). According to local observers in 2008, IDPs may have had better access to basic services than their neighbours, since they had benefited from targeted assistance until 2005 and their living conditions were often better than prior to displacement (Communication with NGO (anonymous), October 2008). The major exception was women-headed households, which were generally still extremely vulnerable.

Some 600,000 Burundians were in need of food aid in 2008 (IRIN, 7 March 2008). Maternal mortality and child malnutrition rates are the second highest on the continent, and Malaria is a major cause of mortality overall. HIV/AIDS is the second most common cause of mortality among adults (World Bank Group, September 2009). In 2006, a new policy of free medical care for all Burundian mothers and children led to a level of demand well beyond the capacity of existing medical structures (Burundian MoH, December 2006).

Primary school fees were abolished in 2005, resulting in a 50 per cent increase in the enrolment of first graders in all provinces compared to the previous school year. The greater enrolment brought about a massive need for qualified teachers, classrooms and school materials. It also increased the existing challenges of keeping the children in school, particularly girls (UNICEF, 2006). An estimated 150,000 children could not attend school in 2006 (OCHA, 2006; UN, 30 November 2006). The latest reports indicate that limited access to education is not linked to children's displacement but rather to the lack of space in classes and distances to reach schools (UNHCR, 1 January 2008).

National and international response

One of the priority areas for the reconstruction of Burundi is the resolution of land disputes between the returning IDPs and refugees and the current occupants (UNGA, 8 September 2009). According to local observers, in the absence of a national policy on internal displacement, specific interventions of the Ministry of National Solidarity, Human Rights and Gender have promoted return rather than local integration or resettlement in another part of the country. The government set up an IDP group, but it had not started to operate as of October 2009 (Communication with NGO (anonymous), October 2009). One promising initiative by the Burundian government, UN agencies and donors is the construction of "rural integrated villages" where IDPs can resettle, along with landless returnees and other vulnerable people (OCHA, 4 May 2009). According to a UNHCR Representative in Burundi, these villages offer stability and durable solutions for inhabitants as they are close to areas offering economic opportunities (IRIN, 26 September 2008).

The Ministry established the Directorate General for Repatriation, Resettlement and Reintegration of Displaced and Repatriated Persons in March 2006 (IDD, 3 June 2006). Among other duties, the Ministry supervises PARESI, a UNHCR-financed project to provide basic housing and infrastructure to returning IDPs and refugees, as well as to Burundians expelled from Tanzania.

Burundi is one of the 11 states that ratified the Great Lakes Pact in December 2006. This pact is a comprehensive package of new norms, and mechanisms for "protecting forcibly displaced people in the countries of the Great Lakes region" (IDMC, September 2008). Central to the pact are the ten protocols, two of which are specifically intended to protect the human rights of forcibly displaced people.

The UN Resident Coordinator/Humanitarian Coordinator for Burundi is responsible for ensuring a strategic and coordinated response to internal displacement in the country. Before decreasing its activities in the country in 2009, OCHA was the focal point on IDP issues. As most IDPs live close

to their areas of origin and mainly face the same constraints as non-displaced people, they receive assistance through general international humanitarian programmes.

In October 2008 the cluster approach was formally introduced in Burundi. Not all clusters have been rolled out, and there is for instance no single cluster with responsibility for protection of IDPs. Coordination by means of the clusters has been characterised by observers on the ground as demanding. Complementing the clusters, the Burundian Minister for National Solidarity, Human Rights, Gender and Reconstruction chairs the Integrated Commission for Repatriation and Reintegration which includes representatives of the government, UN bodies and donors (BINUB, 28 October 2008).

NGOs including ACCORD, NRC and Danish Church Aid, and the Burundi Red Cross and ICRC, have provided conflict mediation to help IDPs and returning refugees solve land issues, and also educational programmes, demining and material assistance.

The main source of funding to improve the situation of IDPs and returnees is the UN Peacebuilding Commission, created in 2006. Of the overall \$35 million budget for the Burundi Peacebuilding Fund programme, the expenditure to the end of 2008 amounted to almost \$21 million (UNDP, 14 July 2009, p.3).

RÉSUMÉ DU PROFIL EN FRANÇAIS

Les personnes déplacées à l'intérieur de leur propre pays depuis longtemps ont besoin de sécuriser leur accès à la terre

La situation sécuritaire au Burundi s'est nettement améliorée après que le dernier groupe rebelle du pays ait déposé les armes à la fin de 2008 et qu'aucun nouveau déplacement provoqué par des conflits n'ait été signalé en 2009. Toutefois, il reste jusqu'à 100.000 personnes déplacées à l'intérieur de leur propre pays (personnes déplacées) dans des sites au nord et au centre du Burundi. La plupart d'entre elles, déplacées dans les années 1990 ou au début des années 2000 après les violences interethniques et les combats entre le gouvernement et les groupes rebelles, se sont intégrées dans les localités et villages voisins dans lesquels elles s'étaient réfugiées, et la majorité d'entre elles souhaiterait demeurer sur ces sites.

La majorité des personnes déplacées ne sont pas propriétaires de leurs maisons et de leurs terres dans ces sites, mais vivent sur des propriétés du domaine de l'Etat ou appartenant à d'autres individus ou à l'église, ce qui a causé des disputes avec les propriétaires d'origine. Des transactions informelles ont lieu, mais conduisent souvent à des différends, étant donné que la même parcelle de terre peut être vendue à plusieurs reprises sans être enregistrée. Une loi foncière s'appliquant aux zones urbaines tout comme aux zones rurales (jusqu'à présent réglementées par le droit coutumier), a été rédigée, mais elle ne sera probablement pas adoptée avant les élections de 2010.

Depuis 2006, la Commission de consolidation de la paix de l'ONU a travaillé avec le gouvernement burundais pour soutenir la reconstruction post conflit, y compris le rétablissement des personnes touchées par les conflits armés internes. Une initiative prometteuse élaborée par le gouvernement burundais en collaboration avec les agences de l'ONU et les gouvernements donateurs est la construction de villages où les personnes déplacées, ainsi que les rapatriés sans terre et d'autres personnes vulnérables peuvent se réinstaller.

Contexte des déplacements et évolution politique

Depuis l'indépendance de leur pays en 1962, des centaines de milliers de Burundais hutus et tutsis ont été tués dans les massacres perpétrés par les membres de la majorité hutue ou la minorité de l'élite tutsie. Des millions d'autres ont à plusieurs reprises fui leurs maisons pour échapper aux massacres. La violence a été alimentée par les tensions régionales et ethniques, en particulier par le génocide des Tutsis et des Hutus modérés au Rwanda, par deux guerres majeures dans la République démocratique du Congo, ainsi que par les inégalités économiques prévalentes.

En 1993, des déplacements à grande échelle ont suivi l'assassinat du premier président élu, Melchior Ndadaye, et les massacres subséquents. Au début, la majorité des personnes déplacées étaient des Tutsis, en particulier dans les provinces du nord et du centre, qui craignaient les représailles des voisins après l'assassinat du président hutu. A partir de 1996, à mesure que le conflit s'aggravait, aussi bien les Tutsis que les Hutus ont trouvé refuge dans des sites de déplacés, en particulier dans le sud du pays. Le nouveau gouvernement à majorité tutsie a également ordonné à deux reprises à la fin des années 1990 la réinstallation de centaines de milliers de civils (principalement des Hutus) dans des "camps de regroupement", dans le cadre d'une stratégie militaire contre les groupes rebelles. Le nombre personnes déplacées a atteint leur montant le plus élevé en 1999, avec plus de 800.000, soit environ 12 pour cent de la population (CAP ONU, novembre 1999, p.6).

Alors que les camps de regroupement ont été démantelés en 2000, suite à la pression internationale, d'autres camps de personnes déplacées ont perduré. La même année, le gouvernement, les partis de l'opposition et les groupes d'opposition armés ont signé un accord de paix à Arusha, en Tanzanie. Les déplacements à grande échelle ont continué, cependant, alors que l'armée continuait à combattre deux groupes rebelles qui n'avaient pas adhéré au processus de paix. En 2003, le plus grand des deux groupes restants, les Forces pour la défense de la démocratie - Coalition nationale pour la défense de la démocratie (*FDD-CNDD*), a signé un accord de cessez-le-feu avec le gouvernement burundais. L'amélioration de la sécurité a ensuite permis le retour de dizaines de milliers de personnes déplacées dans leurs foyers (OCHA, le 26 mai 2005).

Un gouvernement d'unité nationale dirigé par Pierre Nkurunziza, un Hutu et ancien chef du mouvement rebelle FDD, a été élu en août 2005 lors de la première élection démocratique depuis le début du conflit en 1993. La prochaine élection nationale est prévue pour 2010, lorsque les électeurs éliront également les membres du parlement, ainsi que leurs représentants au niveau local.

Le dernier groupe rebelle restant, le Parti pour la libération du peuple hutu, forces nationales de libération (Palipehutu-FNL), a continué le combat avant de signer un accord global de cessez-le-feu avec le gouvernement en septembre 2006. Toutefois, l'insécurité et les déplacements ont continué, jusqu'à ce que le Palipehutu-FNL soit ramené à la table de négociation en avril 2008. Après des pourparlers avec le gouvernement, modérés par les chefs d'État des pays voisins, les dirigeants du groupe ont renoncé à l'usage des armes, puis ont enregistré le FNL en tant que parti politique (CSNU, le 22 mai 2009). En août 2009, plus de 3.500 ex-combattants, ainsi que tous les enfants associés avec le FNL - sur un nombre estimé de 5.000 combattants du FLN - avaient été démobilisés (HCR, août 2009).

Déplacements les plus récents

Plusieurs milliers de personnes ont été temporairement déplacées par des catastrophes naturelles et par l'insécurité alimentaire qui ont sévi en 2008 et 2009. En outre, plusieurs milliers de Burundais qui vivaient en Tanzanie (certains d'entre eux depuis 1972), sans être reconnus en

tant que réfugiés, ont été expulsés vers le Burundi, et beaucoup d'entre eux n'ont pas de foyer où retourner (Refugees International, le 1er octobre 2008; OCHA, le 3 août 2008 OCHA, le 3 octobre 2007).

Le dernier déplacement lié au conflit a eu lieu en 2008, lorsque environ 20.000 personnes ont été temporairement déplacées en raison des combats entre le Palipehutu-FNL et l'armée burundaise dans les provinces de Bujumbura Rural et de Bubanza (IRIN, le 23 avril 2008; ONG anonyme, septembre 2009).

Nombres actuels de personnes déplacées

A la fin du mois d'octobre 2009, jusqu'à 100.000 personnes demeuraient déplacées dans environ 100 sites au nord et au centre du pays. Cette estimation est basée sur la dernière étude globale sur les personnes déplacées entreprise par l'ONU en 2005. Selon cette étude, environ 117.000 personnes vivaient dans des sites de personnes déplacées, qui se sont depuis lors pour la plupart transformés en villages (OCHA, le 23 juin 2005). Ce nombre ne prend pas en compte les personnes vivant dans des familles d'accueil, en particulier dans les centres urbains, dans les provinces de Bujumbura Rural et de Bubanza. En mai 2009, le Ministère de la Solidarité Nationale du Burundi a publié un rapport citant l'estimation de plus de 150.000 personnes déplacées, mais le rapport a été rejeté par des responsables locaux comme étant méthodologiquement défectueux. En outre, les experts locaux et internationaux sur les questions de déplacement interne n'ont apparemment pas été consultés pour le rapport (ONG anonyme, septembre 2009).

Solutions durables et accès à la terre

Le Burundi est le pays le moins urbanisé d'Afrique, et près de 90 pour cent de la population vit d'agriculture de subsistance. Le retour des personnes déplacées et des réfugiés chez eux est rendu difficile par des problèmes tels que la densité élevée de la population, la division des terrains en lots plus petits, malgré leur faible productivité, et l'exploitation des terres par de nouveaux occupants. En outre, le régime foncier au Burundi est actuellement basé sur des systèmes aussi bien coutumiers que codifiés fonctionnant en parallèle, avec certaines dispositions se chevauchant. Cela sème la confusion, et rend le règlement des litiges fonciers particulièrement complexe.

Au moins 500.000 réfugiés burundais sont rentrés dans leur pays entre 2002 et la première moitié de 2009 (FMR, septembre 2009). La situation des personnes qui ont quitté le pays en 1972 s'est souvent révélée être particulièrement compliquée. A leur retour, après plus de 35 ans d'absence, beaucoup ont constaté que leurs terres avaient été expropriées, redistribuées ou que d'autres personnes les avaient occupées en leur absence. En revanche, les rapatriés qui avaient quitté le pays en 1993 ont souvent constaté que les nouveaux occupants de leurs terres étaient des voisins ou des membres de la même famille, ce qui a facilité des arrangements à l'amiable (ACCORD, janvier 2009).

Peu de personnes déplacées depuis de nombreuses années sont rentrées chez elles récemment, et la majorité d'entre elles se serait intégrée dans les localités et villages voisins. Il semble y avoir plusieurs obstacles à leur retour, y compris le traumatisme lié au souvenir de massacres perpétrés lors du conflit et l'impunité dont jouiraient de nombreuses personnes ayant commis des meurtres et vivant encore dans les lieux d'origine des personnes déplacées; l'insécurité permanente et les conditions économiques difficiles dans les zones d'origine, ainsi que la haute densité de la population. Bien qu'elles ne soient pas rentrées chez elles, 75 pour cent des personnes déplacées continuent à avoir accès et à cultiver leurs parcelles d'origine. Toutefois, la densité élevée de la population signifie que plusieurs membres d'une famille sont

obligés d'exploiter le même terrain (ONG anonyme, octobre 2009; HCR, août 2009 et 1er janvier 2008; OCHA, le 26 mai 2005 et le 3 octobre 2007).

La majorité des personnes déplacées ne sont pas propriétaires de leurs maisons et de leurs terres dans les sites, mais vivent sur des propriétés appartenant à l'Etat, à d'autres particuliers ou à l'église (HCR, le 1er janvier 2008). Cela peut conduire à des différends avec les propriétaires d'origine, par exemple lorsque les réfugiés rapatriés trouvent des personnes déplacées établies sur leurs terres. Les revendications territoriales peuvent être résolues grâce à divers mécanismes: par les tribunaux; par les autorités traditionnelles, les Bashingantahe ; par la médiation d'ONGs ; et par la Commission Nationale de Terre et Autres Biens (CNTB), bien que cette dernière manque de ressources nécessaires pour fonctionner de manière adéquate (ACCORD, janvier 2009). La loi actuelle ne s'applique pas aux terres en zones rurales qui appartiennent officiellement à l'État; ces zones représentent 98 pour cent du territoire et sont gérées en vertu du droit coutumier. Les transactions informelles débouchent souvent sur des conflits, étant donné que la même parcelle de terre peut être vendue à plusieurs reprises sans être enregistrée. Une loi s'appliquant également aux zones rurales a été élaborée mais ne sera probablement pas adoptée avant les élections de 2010 (ONG anonyme, septembre 2009).

Sécurité physique

La sécurité physique des personnes déplacées s'est en général considérablement améliorée depuis l'apogée du conflit. Mais les personnes déplacées, comme d'autres, restent soumises à un niveau élevé de violence, et les rapports d'exécutions sommaires et meurtres, de tortures, de viols, de vols et d'extorsion par les forces de sécurité gouvernementales ainsi que des groupes du FNL restent communs (US DoS, 25 février 2009). La plupart des violations des droits humains et des abus restent impunis (HCR, 15 août 2008). Comme le reste de la population, les personnes déplacées sont aussi victimes d'actes de banditisme, un phénomène qui s'est répandu dans plusieurs régions et est exacerbé par la circulation massive d'armes légères et la situation économique difficile actuelle.

L'ONU a signalé en décembre 2008, que la violence sexuelle contre les enfants, en particulier contre les filles, reste une préoccupation grave au Burundi. La majorité des cas ont été perpétrés par des civils dans un contexte d'insécurité et d'impunité, mais les auteurs incluent également des membres de la Police Nationale du Burundi, les Forces de Défense Nationale du Burundi, et les milices du FNL (CSNU, 26 mars 2009). En 2006, l'ONU estimait que 19 pour cent des adolescentes et des femmes au Burundi avaient été victimes de violences sexuelles (OCHA, 2006, p.13).

Au fil des ans, aussi bien les groupes rebelles que le gouvernement ont recruté des enfants soldats, dont beaucoup étaient sans doute déplacés. Après des mois de négociations avec le Palipehutu-FNL, impliquant le gouvernement national, la société civile et les agences des Nations Unies, les enfants soldats ont été progressivement libérés. En avril 2009, les derniers 340 enfants anciennement associés aux milices rebelles du FNL, ont été libérés et rendus à leurs familles (Service d'information de l'ONU, 18 septembre 2009).

Conditions humanitaires

Les besoins humanitaires des personnes déplacées sont très semblables à ceux d'autres Burundais vulnérables qui ont un accès limité aux services de base en raison de leur pauvreté, mais aussi de par la corruption et l'insécurité alimentaire ambiante (FMI, mars 2009; Groupe de la Banque mondiale, septembre 2009). Selon des observateurs locaux en 2008, les personnes déplacées avaient un meilleur accès aux services de base que leurs voisins, ayant bénéficié d'une assistance ciblée jusqu'en 2005. Leurs conditions de vie étaient également souvent meilleures que celles d'avant le déplacement (ONG anonyme, octobre 2008). Il y avait

néanmoins une exception majeure, les foyers menés par des femmes, qui étaient en général encore extrêmement vulnérables.

Environ 600.000 Burundais ont eu besoin d'aide alimentaire en 2008 (IRIN, 7 mars 2008). Les taux de mortalité maternelle et de malnutrition infantile sont les deuxièmes plus élevés du continent, et le paludisme est une cause majeure de mortalité globale. Le VIH/ SIDA est la deuxième cause la plus fréquente de mortalité chez les adultes (Groupe de la Banque mondiale, septembre 2009). En 2006, les structures médicales du Burundi n'ont pas pu répondre à la demande accrue de services générée par la nouvelle politique de soins médicaux gratuits pour toutes les mères et les enfants du Burundi (Ministère de la santé du Burundi, décembre 2006).

Les frais de scolarité primaire ont été abolis en 2005, menant à une augmentation de 50 pour cent des élèves de première année de primaire par rapport à l'année précédente dans toutes les provinces. L'augmentation du nombre d'élèves a engendré un besoin massif d'enseignants qualifiés, de salles de classe et de matériel scolaire. Cela a également accru les défis actuels de garder les enfants à l'école, les filles en particulier (UNICEF, 2006). Environ 150.000 enfants n'ont pas pu aller à l'école en 2006 (OCHA, 2006; Nations Unies, 30 novembre 2006). Les derniers rapports disponibles indiquent que l'accès limité à l'éducation n'est pas lié au déplacement des enfants, mais plutôt au manque d'espace dans les classes et à la distance éloignée des écoles (HCR, 1er janvier 2008).

Réponses nationale et internationale

L'un des domaines prioritaires pour la reconstruction du Burundi est la résolution des conflits fonciers entre les déplacés et les réfugiés qui sont de retour et les occupants de leur propriétés (Assemblée Générale des Nations Unies, 8 septembre 2009). Selon des observateurs locaux, en l'absence d'une politique nationale sur le déplacement interne, des interventions spécifiques du Ministère de la Solidarité Nationale, des Droits de l'Homme et de la Parité ont favorisé le retour plutôt que l'intégration locale ou la réinstallation dans une autre partie du pays. Le gouvernement a créé un groupe de travail sur la question des personnes déplacées, mais celui-ci n'avait pas encore commencé à fonctionner en octobre 2009. Une initiative prometteuse du gouvernement burundais, des agences de l'ONU et des donateurs est la construction de «villages ruraux intégrés», où les personnes déplacées, les rapatriés sans terre et d'autres personnes vulnérables peuvent se réinstaller (OCHA, 4 mai 2009). Selon un représentant du HCR au Burundi, ces villages offrent une certaine stabilité et représentent une solution durable pour leurs habitants, car ils se trouvent à proximité de zones offrant de meilleures opportunités économiques (IRIN, 26 septembre 2008).

Le Ministère de la Solidarité Nationale a établi la Direction Générale pour le Rapatriement, la Réinstallation et la Réinsertion des Personnes Déplacées et Rapatriées en mars 2006 (IDD, 3 juin 2006). Entre autres fonctions, le Ministère supervise PARESI, un projet financé par le HCR fournissant logements et infrastructures de base aux personnes déplacées et aux rapatriés, ainsi qu'aux Burundais expulsés de la Tanzanie.

Le Burundi est l'un des 11 États qui ont ratifié le Pacte des Grands Lacs en décembre 2006. Ce pacte est un ensemble complet de nouvelles lois et mécanismes chargés de "protéger les personnes déplacées de force dans les pays de la région des Grands Lacs" (IDMC, septembre 2008). Il y a dix protocoles essentiels à ce pacte, dont deux spécifiquement destinés à protéger les droits humains des personnes déplacées de force.

Le Coordonnateur Résident/Coordonnateur Humanitaire de l'ONU pour le Burundi est chargé d'assurer une réponse stratégique et coordonnée aux déplacements internes dans le pays. Avant de réduire ses activités dans le pays en 2009, OCHA a été le point focal sur la question des personnes déplacées. Comme ces dernières vivent pour la plupart à proximité de leurs

habitations d'origine et qu'elles font face aux mêmes contraintes que les personnes non déplacées, elles reçoivent de l'assistance par le biais de programmes généraux d'aide humanitaire internationale.

En octobre 2008, l'approche « Cluster » a été officiellement introduite au Burundi. Pas tous les clusters n'ont été déployés, et il n'y a par exemple pas de cluster responsable de la protection des personnes déplacées en général. La coordination par le biais des clusters a été caractérisée par des observateurs présents au Burundi comme étant assez 'lourde'. En complément aux clusters, le Ministre burundais de la Solidarité Nationale, des Droits de l'Homme, de la Parité préside la Commission Intégrée pour le Rapatriement et la Réinsertion qui comprend des représentants du gouvernement, des organismes des Nations Unies et des donateurs (BINUB, 28 octobre 2008).

Les ONGs, dont ACCORD, le NRC, Danish Church Aid, la Croix-Rouge du Burundi et le CICR, ont proposé des services de médiation pour aider les personnes déplacées et les réfugiés rapatriés à résoudre leurs problèmes fonciers. Ces ONGs conduisent également des programmes d'éducation, proposent des services de déminage et distribuent de l'assistance matérielle.

La principale source de financement pour améliorer la situation des personnes déplacées et des rapatriés est la Commission de consolidation de la paix des Nations Unies, créée en 2006. A la fin de l'année 2008, les dépenses du fonds de consolidation de la paix pour le Burundi s'élevaient à près de 21 millions de dollars, sur un budget global de 35 millions (PNUD, 14 juillet 2009, p.3).

CAUSES AND BACKGROUND

Conflict and displacement: background and development

Ethnic background and pre-colonial times

- Total population: 7.1 million
- Composite population comprising Hutu (85%), Tutsi (14%) and Batwa (1%)(colonial census)
- Numerous interrelations between the ethnic groups (marriage, language, common monarchy)
- The Batwa are most likely the most ancient ethnic group in Burundi but they are marginalized in Burundi society

AFP, 25 February 2005:

"GEOGRAPHY: Landlocked in central Africa, bounded by Rwanda in the north, Tanzania to the east and south, and the vast Democratic Republic of Congo to the west. One of the smallest states on the African continent, Burundi covers 27,834 square kilometers (10,747 square miles).

- POPULATION: 7.1 million, of which around 85 percent are Hutu and 14 percent Tutsi. The remaining one percent of the population are pygmies called Twas. One of the most densely populated African countries.

- CAPITAL: Bujumbura (population 300,000)

- LANGUAGES: Kirundi (national), French (administrative), Swahili (local)

- RELIGION: Christian (70 percent); Animist (15 percent); Muslim (15 percent)."

UN Commission on Human Rights, 28 November 1994, paras. 15-17:

"Burundi is situated in Central Africa, along Lake Tanganyika and shares borders with Rwanda, Tanzania and Zaire. [...] According to statistics dating back to the 1930s, 85 per cent of the population are Hutu, 14 per cent Tutsi and 1 per cent Batwa. The Hutu are considered to originate from Chad and the Niger, while the Tutsi, of Nilo-ethiopian origin, are thought to come from eastern Africa. The Batwa originate from the Congo Basin (Pygmies). This breakdown does not take into account the Ganwa (those of princely origin), nor a handful of other immigrant communities, nor those of mixed origins (mixed marriages having been common in the past). [...] It also does not take into account the fact that within both groups there existed historically rankings of status nor that passage from one group to another, for instance becoming Tutsi from Hutu or Ganwa, was also possible. The Burundians all speak the same language, Kirundi, which is both the national and the official language. Other languages, as provided for in the Constitution, are also spoken. [...] Despite ethnic differences, the Burundians live intermingled on the thousands of hills of the country without distinction on account of ethnicity. They are therefore inextricably bound to one another and cannot contemplate any notions of separation.

Although settlements have always been mixed, society in Burundi [...] was built along a 'class' and 'caste' system. [...] While their distinctions were not rigidly determined along 'ethnic' or 'tribal' lines, [...] there was significant correlation between class and ethnicity, with the Tutsis associated with the upper class and the Hutus with the lower class. This did not mean that all Tutsis were

upper class nor all Hutus lower class. Both class and the ethnic correlations were also dynamic. A Hutu could rise economically and socially and become a 'Tutsi'.

Hutu and Tutsi relationships were in the past cemented by their shared loyalty to common institutions. Kingship was such an institution; patron-client ties constituted another powerful socio-political institution. Patrons were expected to offer protection and gifts in exchange for services and offerings in kind. As social and political roles that once gave meaning and cohesion to membership in the community vanished, the use of the terms 'Hutu' and 'Tutsi' with ethnic connotations became more rigid. [...] Today the use of the term 'Hutu' describes an ethnic group which is poorer and powerless, whereas the Tutsi, especially the Hima (a Tutsi subgroup), are the pre-eminent power holders. [...] Nevertheless, the impression should not be created that the terms 'Hutu' and 'Tutsi' are figments as the "official truth" during the Bagaza period (1976-1987) would have it. This stance restricted discussion on the underlying problems of ethnicity and expression of ethnic differences without solving them."

CHR, 19 March 2001, para. 100:

"La situation de la minorité twa mérite une attention particulière que malheureusement elle ne reçoit pas toujours. Les Twas sont sans doute le noyau le plus ancien de la population burundaise, comme dans d'autres pays des Grands Lacs; ils constituent aujourd'hui environ 1 % de la population. "

Colonial rule and military regimes (1899-1992)

- 1962: Burundi becomes independent
- 25 years of a Tutsi dominated military dictatorship
- Massacres in 1965, 1967, 1972 and 1988
- The roots of the conflict lie in unequal distribution of economic resources and political power
- 1980: creation of the Party for the Liberation of the Hutu People (Palipehutu) by activists from the Burundian Hutu refugee community in refugee camps in Tanzania

UN Commission on Human Rights, 28 November 1994, paras. 19-24:

"The transition from traditional power structures to 'modern' politics has by no means been an easy one. Two Ganwa (princely) dynasties continued fighting for control during the era of the colonial Powers, (first Germany from 1889 to 1918, then Belgium until 1962) as they had done during the pre-colonial era. The Party of Unity and National Progress (Uprona) was dominated by the Ganwa Bezi, while the Christian Democratic Party (PDC) was led by the Ganwa Batware. In the legislative elections of September 1961 Uprona won, with Prince Rwagasore as Prime Minister designate. A month later, however, Rwagasore was assassinated. The political game switched from Ganwa to Hutu and Tutsi hands for the first time.

Burundi gained its independence from Belgium in July 1962. Until 1966 the crown continued to stabilize the situation. Violent incidents erupted after the elections in 1966, following which the Prime Minister, Michel Micombero, a Tutsi of the Hima group from Bururi, [...] overthrew the monarchy and declared a republic, concentrating power in the army. The National Assembly was dissolved and later replaced with a committee of officers, which, by 1971, was made up of 24 Tutsi and 3 Hutu, and Uprona was declared the sole party. Serious intra-Tutsi rivalries for power emerged. At this time Hutu were already being systematically purged from the army. The transition from a Ganwa-run kingdom to a Tutsi-dominated military dictatorship to the exclusion of Hutus caused more violence. For the next 25 years Tutsi factions fought over control, turning the Hutu into scapegoats whenever the Hutu would rise up and demand more equitable power-

sharing. On the other hand, whenever efforts towards power-sharing were made, extremists from both groups would resort to violence, to delay or cancel them.

Massacres had taken place in 1965 and 1967, but the most serious ones took place in 1972 triggered by Hutu militants from the Burundian refugee community in Tanzania. Hundreds if not thousands of Tutsi were killed and there is widespread fear that what had happened to Rwanda's Tutsi, namely, systematic subjection and extermination, would happen to them too. The Tutsi retaliation and repression that followed were instant. The first victims were Hutus with education: secondary school and university students, teachers, nurses, doctors, priests, pastors, drivers, headmasters, businessmen, shopkeepers, civil servants, bank clerks, professors. Most Hutu families lost members. Hutu widows moved to the city outskirts when their houses were seized by Tutsi. Many Tutsis also fled. Many left the interior, where they felt frightened among Hutu neighbours, and moved to Bujumbura to fill the many jobs now vacant. Others rushed to occupy the flat, fertile, palm-oil-producing strip of lake shore south of Bujumbura, after the flight of very many Hutu who had been living there. Reports have spoken of genocidal acts and of hundreds of thousands of Hutus killed. [...]

These events had great reverberations in Burundi; yet, nothing was ever done about the massacres. There has never been an official inquiry into them, an accounting, or any effort to bring to justice those responsible for the killings. Thereafter there was no question of Hutus entering the army, and many refused to send their children to school, fearing they were exposing them to a future massacre. Those at school had no role models. The educated, competent, urbane were all Tutsi. That there was a "lost" Hutu generation is still evident today in the political life of the country.

There was little power-sharing following the massacres, even after Micombero was overthrown by his deputy chief of staff, Colonel Jean Baptiste Bagaza, also a Hima (Tutsi subgroup). There were no massacres during Bagaza's 11-year rule and many refugees returned home. Bagaza reportedly hoped development would push his country through the ethnic deadlock. Observers note that he engaged in a series of reforms, without, however, addressing the ethnic issue. [...] All provincial governors were Tutsi and most judges, university and school teachers, magistrates and heads of hospitals were Tutsi too. Uprona remained a Tutsi party and its members were the ones to benefit mostly from Bagaza's management of the economy. In the last years of the Bagaza regime corruption and nepotism reportedly flourished. [...] In the meantime, in 1980 activists from the Burundian Hutu refugee community formed the Palipehutu, or the Party for the Liberation of the Hutu People, in refugee camps in Tanzania. Bagaza was himself deposed in 1987 by a group of army officers and a cousin of his and nephew of Micombero, Major Pierre Buyoya, became President.

In August 1988 frustrated Hutu hopes for an improvement were at the root of hundreds of ethnic killings. Thousands were killed. This time the regions most affected were Ntega commune in Kirundo province and Marangara commune in Ngozi province, both bordering Rwanda. Palipehutu members from Rwanda had been infiltrating into Burundi and sporadic fights were taking place until Hutus turned against the Tutsi community, many of them Rwandan refugees. The army pursued those assumed responsible (although it is unclear how much resistance these people who had no guns put up against the soldiers) [...] and in the next eight days it reportedly killed large numbers of civilians, including women and children. More than 60,000 people poured into Rwanda across the swamps and the Akanyaru river. Others took refuge within Burundi in swamp areas. The massacres were surprising even to the Burundians. Hutu had to face the fact that the army was still prepared to use maximum force and Tutsi that Hutu could still massacre many Tutsi before soldiers reached the scene."

ACTS, 30 September 2004:

“Despite the popular conception of the conflict as a Hutu-Tutsi struggle, most scholars agree that the protracted conflict is structural in nature, though articulated in ethnic terms. The roots of the conflict lie in unequal distribution of economic resources and political power.’ Governance practices by successive regimes galvanized political power and state control in the hands of a small elite group within the Tutsi community from particular parts of the country, who have since sustained their hold on power through repressive policies. Efforts by the Tutsi elite to retain political control and associated patronage networks, and violent counter-strategies of the Hutu political and armed groups have precipitated ethnic massacres and retaliatory radicalism marked by acts of genocide.”

Civil war and Peace Process in Burundi (1993-2009)

- 1993: Assassination of elected President Ndadaye triggers large-scale inter-ethnic violence
- 1996: Coup installs President Buyoya; sanctions imposed by neighbouring countries
- Arusha Peace and Reconciliation Agreement for Burundi signed in August 2000
- 2005: signing of ceasefire agreement between FNL and government; adoption of new constitution
- Local, legislative and presidential elections was held in various phases in 2005
- Security sector was profoundly restructured and the army is now ethnically balanced (2006)
- Old tensions between Hutu and Tutsi parties were eclipsed by new ones between predominantly Hutu parties – CNDDFDD and FRODEBU – whose bitter campaign rivalry was marred by violence (2006)As of April 2008: the FNL had withdrawn
- 2007 Joint Verification and Monitoring Mechanism established to implement the 2006 Comprehensive Ceasefire Agreement
- Transformation of the rebel group’s political wing into a party (FNL) in April 2009
- In the 2010 elections, Burundians will vote for local representatives, MPs and the president

AFP, 1 June 2005, factfile:

“The civil war begun in 1993 has killed an estimated 300,000 people.[...]

Melchior Ndadaye, the first Hutu president, elected in June 1993, was assassinated on October 21 of the same year during a failed coup organized by Tutsi military officers.

His successor, Cyprien Ntaryamira -- another Hutu -- was killed in April 1994 at the same time as then Rwandan president Juvenal Habyarimana died under suspicious circumstances when his plane was shot down over Kigali, sparking the genocide of up to a million Tutsis and Hutu moderates in Rwanda.

Ntaryamira's successor, Sylvestre Ntibantunganya, also a Hutu, was overthrown in a non-violent coup in July 1996, and [Pierre " Buyoya returned to power.

In 1998, Buyoya reformed the constitution to create a transition government and began peace talks with Hutu and Tutsi opposition groups.

In August 2000 a peace agreement including a power-sharing deal was signed in Arusha, Tanzania, but the two main armed rebel groups refused to participate in the talks. Civil war continued to rage.

In November 2001, Buyoya took over as transitional leader for a period of 18 months, seconded by a Hutu vice-president whose signature is required on all presidential texts pertaining to security and the armed forces.

A 26-member power-sharing government was also sworn in to oversee the three-year transition. Buyoya was succeeded at the head of the transition government in May 2003 by his vice president Domitien Ndayizeye, who is seconded by a Tutsi, Alphonse Marie Kadage.

A ceasefire agreement was signed in December 2002 by the government and the main Hutu rebel movement, the Forces for the Defense of Democracy (FDD), which finally entered government in November 2003.

A second Hutu armed group, the National Liberation Forces (FNL), finally signed a ceasefire agreement with the government on May 15, but the details of how this be implemented have still not yet been resolved.

A new constitution was adopted at the end of February, aimed at bringing about a peaceful democracy and ending the reign of the Tutsi tribe in power. Opposition has been voiced only by Tutsis concerned at losing too much power."

HRW, 4 November 2005:

"Elections in 2005 were the final chapter in the transitional process established by the Arusha Accords of 2000. In the intervening period a government including the Hutu-dominated Front for Democracy in Burundi (Frodebu), the Tutsi-dominated National Unity and Progress Party (Uprona), and a number of smaller parties ruled the country. In late 2003 this government signed the Pretoria Protocol making peace with the CNDDFDD and starting the process of integrating the former rebels into the army and the administration."

For more detailed information on 1993 events, see "[Profile in displacement](#)" (Report of the Representative of the Secretary General, Mr. Francis M. Deng, 28 November 1994), paras. 29-36) [External link]

ICG, 30 November 2006:

"In elections held between June and August 2005, the voters of Burundi elected their first democratic government since 1993. This marked an end to the transitional government established by the Arusha Agreement in 2001. The mainly Hutu former rebels of the National Council for the Defense of Democracy-Forces for the Defense of Democracy (CNDD-FDD), led by Pierre Nkurunziza, won a resounding victory and hold 58 per cent of the seats in parliament and 57 per cent in the communal councils, as well as twelve of the twenty government ministries. Nkurunziza was inaugurated as president on 26 August 2005.

The elections radically reconfigured politics. Old tensions between Hutu and Tutsi parties were eclipsed by new ones between predominantly Hutu parties – CNDDFDD and Front for Democracy in Burundi (FRODEBU) – whose bitter campaign rivalry was marred by violence. In the run-up to the elections, rebel forces were integrated into the national army, police and intelligence service. For the first time in Burundian history, these forces were ethnically balanced. Nkurunziza's government faced considerable challenges. Foremost was the process of transforming the CNDDFDD from a rebel movement into a democratic political party in power – one whose members had little civil administration experience. The government had to reconstruct an economy devastated by more than a decade of civil war and economic embargo, during which per capita income fell by 35 per cent and the number of people living below the poverty line doubled. During its first year it also had to deal with security problems in the capital and surrounding provinces caused by the remaining rebel group, the Palipehutu-FNL. Unfortunately, the government's response to these challenges has increasingly manifested itself in disregard for the rule of law."

UNSC, 28 November 2007:

“The signing of the Comprehensive Ceasefire Agreement between the Government of Burundi and the armed group Palipehutu-Forces nationales de libération (FNL) led by Agathon Rwasa on 7 September 2006 was a decisive step in the peace process in Burundi. [...]The Agreement, which was the outcome of determined efforts of regional States united under the auspices of the Regional Initiative for Peace in Burundi, addresses a number of issues including the integration of FNL ex-combatants into the Burundian National Defence Forces (FDN) and security forces, the participation of FNL elements in the institutions of the country and the rapid demobilization and reintegration of children associated with this armed group into their respective families and communities. Under the Comprehensive Ceasefire Agreement, the Joint Verification and Monitoring Mechanism was established to oversee the demobilization of FNL combatants.

The signing of the Agreement was followed at first by a significant improvement in the security situation, characterized notably by a decrease both in the number of abuses perpetrated by armed groups and in the number of alleged FNL militants arrested by the National Defence Forces and the National Police of Burundi.”

PBC, 19 March 2008:

“[T]he Palipehutu-FNL had withdrawn from the 2007 Joint Verification and Monitoring Mechanism established to implement the 2006 Comprehensive Ceasefire Agreement. In response, a Political Directorate had been established to assist the Mechanism in efforts to regain FNL's participation.”

ISS, 3 April 2008:

“After intense diplomatic pressure from regional governments and the international community Burundi's last rebel group, the Palipehutu-FNL, has been brought back to the negotiating table that drew up a new roadmap designed to end the standoff by the end of June 2008. This breakthrough was reached in a February 23 meeting in Cape Town, South Africa. The meeting was attended by special envoys to Burundi from Uganda, Tanzania and South Africa, as well as representatives of the African Union, the European Union, the United States of America and the United Nations.

The Cape Town meeting had been called to save the Burundi peace process after the FNL withdrew from its implementation, alleging bias on the part of the facilitator, South Africa's Security Minister Charles Nqakula. To help address this challenge Minister Nqakula has followed the example of other peace processes by establishing a Group of Special Envoys for Burundi (GSEB), representatives of the African Union, the European Union, the United States of America and the United Nations.”

UNSC, 22 May 2009:

“At a Summit of the Heads of State and Government of the Great Lakes region, held in Bujumbura on 4 December 2008, the Government of Burundi, the Forces nationales de libération (FNL) and attending Heads of State signed a Declaration in which FNL agreed to consult its membership, by 31 December, on changing the movement's name in compliance with Burundian law. The Declaration also called for the commencement of the disarmament, demobilization and reintegration of FNL and the political integration of its leadership, and the President of Burundi, Pierre Nkurunziza, committed himself to reserve 33 civil service posts for senior FNL members. The President also reiterated his commitment to release FNL prisoners. The Summit triggered actions on multiple fronts, re-energizing the peace process after months of stagnation.”

News24.com, 11 September 2009:

“Lawmakers in Burundi paved the way for nationwide polls next year by passing a new electoral code on Friday after weeks of bickering

Under the new law, voters in the small central Africa country will elect county leaders, president, MPs, senators and local representatives in next year's polls, Burundi's second elections since the end of a civil war in 2005."

Progress in regard to the disarmament, demobilization and reintegration programme (2005-2009)

- Reform of the security sector – particularly the military and the police – has been central to the conflict and its resolution because the security institutions have been historically responsible for large scale human rights abuses and widespread political repression
- About 5,000 UN peacekeepers in Burundi from 2004 to 2006, to monitor the country's transition to democracy, with South Africa contributing the majority of troops.
- The new Burundian government saw the peacekeepers as an occupation force, one that should leave the country as soon as possible (2006)
- A new UN Integrated Office in Burundi (BINUB) continued the process of peace consolidation and of coordinating the UN system's activities in Burundi from 2007
- More than 3,500 ex-combatants have already been demobilised
- Burundians worry that ex-combatants might turn against the population as they struggle to survive

ISS, 13 October 2006:

"In Burundi, reform of the security sector – particularly the military and the police – has been central to the conflict and its resolution because the security institutions have been historically responsible for large scale human rights abuses and widespread political repression. The Arusha Peace and Reconciliation Agreement, signed in August 2000 by 17 political parties, the National Assembly and the government and the 2003 ceasefire agreement between the Government of Burundi and the principal rebel group, the Conseil national pour la défense de la démocratie – Forces de défense de la démocratie (CNDD-FDD), do include important provisions on the organization, structure, mandates and composition of postconflict security forces that will act professionally and apolitically, adhere to human rights norms, and provide defence and security to all Burundians.[...]

Although the Arusha Accords were signed in August 2000, the implementation of the security sector reform process they articulate was largely delayed until 2003, mainly because of continued warfare

throughout most of Burundi. Indeed, the most active rebel movements in the field were marginalized

throughout the Arusha negotiations and were thus not signatories to the Accord. Accordingly, it was not until the signing of a ceasefire between the government and the main rebel group – the CNDD-FDD – in 2003 that the reform process was set in motion. By July 2006, however, the reform of the defence and security forces had reached an advanced stage and had achieved most of its structural objectives (i.e. the integration of several armed groups into a single military and single police force), despite various financial- and material-related challenges.

The process of integrating the former rebel groups and the FAB into a new national defence force, the Forces de Défense Nationale (FDN), has been completed – largely to the satisfaction of the government and international donors – despite its late start due to disagreements on the definition of combatant and on the harmonization of rank between the rebel movements and the regular army.[...]

Despite this progress, a preliminary assessment of the reform of the FDN and the PNB and progress in the domain of social and economic reintegration and re-insertion of former combatants suggests that serious challenges remain in these critical areas. The local media frequently report human rights violations perpetrated by on-duty military or police or by demobilized combatants.”

Tufts University, 30 July 2006:

“The new Burundian government saw ONUB as an occupation force, one that should leave the country as soon as possible. This perception was aggravated by two unfortunate choices made by leaders of the UN mission: to support Frodebu and former President Ndayizeye during the electoral campaign and proposing to coordinate the transition from humanitarian aid to development through a “Partners Council” deliberating without the government.”

UNSC, 18 December 2006:

“Meanwhile, as delays in the start of the disarmament, demobilization and reintegration of FNL combatants have continued, criminal activities against the population, reportedly committed by FNL combatants, have increased since late October. Skirmishes between the national security forces and alleged FNL combatants and detentions of FNL elements and supporters have reportedly resumed in the north-western provinces. FNL recruitment, including of youths, has also been reported, particularly in Bubanza and Bujumbura Rural provinces.[...]

Once deployed, the AU special task force would therefore be expected to assume the responsibilities that were allocated to ONUB under the ceasefire agreement, namely: (a) protection of designated assembly areas for FNL combatants; (b) provision of engineering, logistical and administrative support for the establishment of the assembly areas; (c) disarmament of combatants; (d) storage of weapons collected from the disarmament process and their subsequent destruction; (e) transportation of disarmed FNL combatants from assembly areas to the designated demobilization centre or integration facilities of the National Defence Forces; and (f) protection of the demobilization centres. [...]

Further delays in the agreement’s implementation, in particular the disarmament, demobilization and reintegration of FNL combatants, are likely to lead to more friction between these combatants and the population and the national security services. In addition, there was an increase in localized conflicts involving the small FNL faction led by Jean Bosco Sindayigaya, which did not sign the ceasefire agreement.”

UNHCR, August 2009:

“The demobilization process of former FNL rebels and FNL dissidents (FNL-D) is making good progress. Out of the 5,000 FNL combatants foreseen to be demobilized, more than 3,500 ex-combatants as well as all children associated with the FNL or FNL-D and all dissidents have already been demobilized, Programmes to support the socioeconomic reintegration of these ex-combatants are planned to start in the near future.”

AFP, 26 April 2009:

“But that has left thousands of ex-combattants, like 24-year-old Ndiokubwayo, loitering in a makeshift camp outside Bujumbura and seething with anger as they face an uncertain future. [...]

Around 5,000 former FNL combatants will be demobilised by next month alongside more than 10,000 allied fighters who will return to civilian life with a pay package worth 62 euros (82 dollars). “That is the reward I get after fighting for six years. A tent for a roof, no toilets, no water, no food,” said Ndiokubwayo, lamenting the living conditions at Rubira camp, consisting in two huge iron sheet-walled buildings and a scattering of spartan tents.

Even as UN Secretary General Ban Ki-moon praised the FNL for completing its disarmament on Wednesday, Burundians worry the former rebels may turn against the population as they struggle to survive.”

Nine years after the Arusha Accords still long way to transitional justice (August 2009)

- Plans for transitional justice mechanisms date back to Arusha Accord of 2000
- The Kalomoh report provides framework to ensure the right to truth and justice through a Truth and Reconciliation Commission (TRC) and a Special tribunal (ST)
- A tripartite commission is organising national consultations to gather views from the population about possible transitional justice mechanisms
- National consultation postponed mainly due to members failing to attend the sessions

ICTJ, 14 July 2008, p.3:

“Negotiators of the Arusha Agreement raised issues of accountability through judicial and nonjudicial mechanisms. Parties at the Arusha negotiations—the government, insurgents, and opposition political parties—agreed that serious violations of international humanitarian law had been committed during the episodic escalations of violence in Burundi and that root causes must be examined and gross violations punished to avoid repetition. The Kalomoh Report provided a framework to ensure the right to truth and justice through the TRC and the ST.” [In July 2002 the then president Pierre Buyoya wrote to the UN requesting the establishment of a commission of inquiry. After the government had signed a ceasefire agreement with the CNDD-FDD, the UN announced it would send a high-level delegation to Burundi to examine the desirability and feasibility of such a commission. The result of this delegation’s visit was the so-called “Kalomoh report” of March 2005.]

BBC World Service Trust, December 2008, p.12:

“The Kalomoh report proposed a dual mechanism of a mixed truth commission (with a strong international component) and a UN-backed special chamber within the Burundian judicial system to prosecute those bearing the “greatest responsibility” for crimes of genocide, war crimes and crimes against humanity. The UN Security Council endorsed this report in Resolution 1606 (2005) and called on the UN Secretary General to start negotiations with the Burundian government and “all parties concerned” on how to implement the Kalomoh proposals, and report back to the Security Council by September 30, 2005.
[...]

The parties failed to agree on several key points, but did agree that any judicial mechanism should be a Special Court, rather than a special chamber within the Burundian judicial system as proposed by Kalomoh. The talks have not yet concluded.

A tripartite commission consisting of representatives from the Government of Burundi, United Nations and civil society is organising “national consultations” to gather views from the population about possible transitional justice mechanisms, such as a Truth Commission and Special Court.”

Amnesty International, January 2009:

“National consultations lasting 12 months were scheduled to start in June and funds from the UN Peacebuilding Commission were allocated for this purpose. However, meetings of the Tripartite Committee – established in November 2007 to oversee the process and made up of UN, government and civil society delegates – were postponed, mainly because members failed to attend and sessions were cancelled by the president of the committee. National consultations were rescheduled to start on 1 March 2009.”

Impunity undermines the legitimacy of transitional justice mechanisms (August 2009)

- The Arusha Agreement prohibits amnesty for war crimes, crimes against humanity, genocide, and coup d'état
- Under international law, amnesty should not be offered for the most serious international crimes, which nations are obligated to prosecute
- The parliament elected in 2005 failed to adopt laws that would abrogate provisional immunity
- FNL asked for amnesty to be enacted by an act of Parliament before its representatives could join peace monitoring and verification mechanisms
- National consultations leave out the issue of impunity

ICTJ, 14 July 2008, p.4:

"All recent peace agreements in Burundi grant negotiating belligerents some form of "provisional immunity" from prosecution to allow their return to the country and their participation in the political process. The Arusha Agreement prohibited amnesty for war crimes, crimes against humanity, genocide, and coup d'état, but rebel groups that joined the peace process thereafter pressed for and obtained some form of immunity. Organic Law No. 100/92 of November 7, 2005, applied the Arusha Agreement and subsequent peace agreements to create a commission to identify political prisoners. This led to the release of at least 3,000 political prisoners, including many convicted in a regular judicial proceeding. As a result civil society organizations lodged a complaint before the Constitutional Court.

It was generally assumed that the "provisional immunity" would remain valid only during the transitional period and that the elected parliament would adopt a law to either extend or abrogate the immunity. The parliament elected in 2005 failed to adopt such laws and as a result concern developed that the provisional immunity might be a blanket amnesty in disguise. The resumption in February 2008 of peace talks between the GoB and the FNL, mediated by South Africa, revived these concerns as the FNL had asked for amnesty to be enacted by an act of Parliament before its representatives could join peace monitoring and verification mechanisms."

HRW, 13 August 2009:

"Government officials have also publicly expressed support for amnesty for serious crimes, including genocide, war crimes, and crimes against humanity. Under international law, amnesty should not be offered for the most serious international crimes, which nations are obligated to prosecute.

A process of "national consultations" to solicit the views of ordinary Burundians on transitional justice mechanisms - funded by donors and led by a "tripartite" team of UN, Burundian government, and civil society representatives - explicitly leaves out these key issues.

"The national consultations process should not distract attention from the fact that in the nine years since Arusha, the government has made very little progress toward establishing transitional justice mechanisms in line with international law," Dufka said."

Peace Building Commission and Burundi (2006-2008)

- Peace Building Commission approved in December 2007 a jointly developed monitoring mechanism to regularly review progress in its implementation

UNSC, 18 December 2006, para. 22:

“Significant progress has been made in the establishment of peacebuilding coordination mechanisms between the Government and the United Nations. On 7 November, the Government created an Inter-Ministerial Peacebuilding Steering Committee, which will work with the United Nations, within the framework of an initial joint mechanism, in preparing the December meeting of the Peacebuilding

Commission and the peacebuilding priority plan to be submitted to the Peacebuilding Fund. The inaugural meeting of the Government-United Nations joint mechanism was held on 16 November [2006], followed by several sessions at the policy and working levels. As a result, a common understanding was reached on the steps to be taken by the Government, with United Nations support, to secure resources from the Peacebuilding Fund. Progress was also made in developing the Government's presentation to the December meeting of the Peacebuilding Commission. The mission of the Peacebuilding Support Office to Burundi in mid-November [2006] and the meetings it had with the United Nations and the Government's Inter-Ministerial Steering Committee contributed significantly to this process.”

UNGA, 5 December 2007:

“With a long-awaited conflict-recovery and development strategy for Burundi now in place, the Peacebuilding Commission today approved a jointly developed monitoring mechanism to regularly review progress in its implementation -- both locally and in New York -- in priority areas such as justice and security sector reform, generating jobs and making radical improvements to governance.

Meeting in its special “Burundi Configuration”, the Commission adopted the Monitoring and Tracking Mechanism (MTM) of the Strategic Framework for Peacebuilding in Burundi. That Framework -- in place since June -- is the country-led integrated peacebuilding strategy now guiding the engagement and dialogue between Bujumbura, the United Nations and other international partners.

The Framework identified key objectives, major challenges and threats to peace, especially the implementation of a stagnant ceasefire agreement between Burundi and the National Liberation Forces (Palipehutu-FNL). Promoting inclusive growth, employment, transparency and human rights were among its other top priorities.”

See also:

Brookings Institution, 13 March 2008, The Role of Civil Society in Ending Displacement and Peacebuilding, by Elizabeth Ferris [[Internet](#)]

United Nations Department of Public Information (DPI), 12 Dec 2006 [[Link below](#)]
Peacebuilding Commission holds day-long discussion on Burundi, agrees on fund's use to bolster government's priority plan [[Internet](#)]

United Nations General Assembly, 13 Oct 2006
Challenges facing Burundi, requiring international help, indicated at country-specific meetings of Peacebuilding Commission [[Internet](#)]

Burundi government signs Nairobi pact including protocol on IDPs (December 2006)

MONUC, 18 December 2006:

“With the signing of the Nairobi pact this Friday December 15 2006 by DRC, Angola, Burundi, Central African Republic, Republic of Congo, Kenya, Rwanda, Sudan, Tanzania, Uganda and

Zambia, it paves the way for security, stability and development in the region, after years of conflict.

'The three protocols on humanitarian and social issues addressing sexual violence against women and children, property rights of returning persons, and the protection of Internally Displaced Persons (IDPs), are of the utmost importance,' she concluded."

Arusha Accords: Challenges of implementing Protocol IV (2005)

- Protocol IV is divided into three chapters that focus on the rehabilitation and resettlement of sinistrés, physical and political reconstruction and, finally, economic and social development

ISS, 27 May 2005:

"Aside from calling for a cessation to violent conflict, the Arusha Accords [Arusha Peace and Reconciliation Agreement for Burundi, 28 August 2000]. provide comprehensive recommendations for stabilising and rehabilitating a highly polarised Burundian nation. The agreement is composed of five protocols each dedicated to a particular theme intended to move the process from peace-making to peace-building. These themes consist of an outline of the nature of the conflict; democracy and good governance; peace and security; reconstruction and development; and guarantees on the implementation of the agreement.

Importantly, the accords acknowledge that the Burundian 'conflict is fundamentally political, with extremely important ethnic dimensions... and stems from a struggle by the political class to accede to and/or remain in power.'

Protocol IV is divided into three chapters that focus on the rehabilitation and resettlement of sinistrés, physical and political reconstruction and, finally, economic and social development. It is therefore the 'litmus test' against which the performance of the transitional government (and other actors) as it relates to Arusha's recommendations can be assessed.

Rehabilitation and Resettlement of Refugees and Sinistrés

The main conclusion and recommendations of Protocol IV states that:

'Through the Burundi Peace Negotiations at Arusha it has been possible to assess how seriously the political and ethnic crisis that has torn Burundi apart since independence has affected Burundian society. Hundreds of thousands of Burundians are refugees, some of them for more than 25 years.

Hundreds of thousands more are forced to live in camps where conditions are appalling.... All Burundians are aware that a lasting peace is impossible so long as a definitive solution is not found to the problem of refugees and sinistrés. Likewise, peace is impossible so long as the country's wealth is not shared equitably. Burundi cannot help the sinistrés rebuild destroyed property and restore its economy without the assistance of the international community.'"

Causes of displacement

A chronology of population movements: A review by the United Nations Resident Coordinator (1998)

United Nations Resident Coordinator System for Burundi, 1998, p. 5:

Chronology of Population Movements	
1972	An estimated 200,000 Burundians flee from progroms and communal violence; many seek refuge in Tanzania, where most remain to this day.
1993	To escape the violence that broke out following the assassination of President Ndadaye, nearly 200,000 people leave the hills to seek protection in sites grouped around military posts. A vast majority are still there.
1994-1996	The escalation of the civil conflict sparks massive population movements; the northwestern province of Cibitoke, sandwiched between the rebel bases in the mountainous Kibira forest and in neighboring Kivu, is particularly unstable. Large numbers seek refuge in neighboring Zaire (150,000) and Tanzania (250,000). Up to 400,000 congregate in sites inside the country.
1996-1997	In the wake of the conquest of Zaire by the Kabila-led alliance, most of the refugees in Kivu return to Burundi, where they swell the numbers living in the displaced camps on the north-western provinces, particularly Cibitoke.
1996-1997	As a military strategy to regain control of rebel-held territory, the authorities forcibly regroup 250,000 civilians in Karuzi, Kanyanza and Muramvya provinces. Nearly all of them return home by the end of 1997, but the policy of controlled population movements continues to be implemented in other, more short-term forms elsewhere in the country.
1997-1998	Following the loss of their bases in the Kivu, the rebels regroup in Tanzania, and the main theatre of operations shifts to the southwest, along the ridge of the Nile-Congo watershed that is the main conduit into and out of the country for guerrilla groups. The ensuing destabilization leads to large scale displacement to new sites, again mainly along the main tarmac roads of the western plain, not only in Makamba and Bururi provinces but also as far as north as Bujumbura Rural and Bubanza.
1997-1998	As the military gradually established control in certain areas, the authorities begin to dismantle the big sites near main roads or major towns and create smaller, decentralized sites grouped around advanced military positions in the hills (Cibitoke, parts of Bururi, Bubanza). Elsewhere, short-term regroupment operations continue to be implemented in response to localized destabilization (Bujumbura Rural)
1998	Nearly all the sites in Cibitoke province, for so long the most unstable part of the country, are dismantled by June and the people return to their hills. At almost the same time, the crisis in neighboring Congo produces an influx of some eleven thousand people, which continues up to present.

Causes of internal displacement: an analysis by the U.S. Committee for Refugees (1998)

- Pervasive psychology of "flee or be killed" is a lasting legacy of the 1972 massacres and the 1993 upheavals
- Displacement has also been used as a deliberate goal of violence since 1993
- Massive retaliation by the armed forces
- Suspicion towards the displaced population creates more displacement
- Use of violence and displacement as a way to achieve political or economical objectives

USCR, 1998a, pp. 32-33:

"A history of massacres has taught the people of Burundi, regardless of their ethnicity, that their personal survival hinges on their ability to flee and seek a safer place temporarily. For many peasant Burundians, the lesson of the past is that violence can erupt suddenly and can rapidly become all-encompassing. It is a lesson handed down from generation to generation. Some of the underlying causes of internal displacement in Burundi follow:

First, a pervasive psychology of 'flee or be killed' has become the lasting legacy of the 1972 slaughter and the 1993 upheaval. The 1994 genocide in neighboring Rwanda has reinforced the psychology of flight in Burundi.

Second, the smaller massacres that have occurred almost daily since 1994 serve to validate the historical lessons of fear and mistrust. Fear is also ingrained that large number of Burundians have learned to flee their homes not only in reaction to danger but also in anticipation of it.

Third, much of Burundi's displacement since 1993 has been caused by «ethnic cleansing.» Displacement is no longer merely as accidental by-product of violence; it has become a deliberate goal of violence.

Fourth, both ethnic groups of Burundi regard themselves as vulnerable. The sense of vulnerability has become an important part of the self-identity. Hutu are demographically dominant but see themselves as vulnerable to the political and military power of Tutsi. Tutsi are politically and militarily powerful but view themselves as vulnerable to the demographic dominance of Hutu. Members of both ethnic groups regard themselves as victims, despite the fact that many massacres in Burundian history have been largely one-sided.

Fifth, a pattern is evident in many violent eruptions over the decades: regardless of how violence begins, there is almost always massive retaliation against the Hutu by the Tutsi-dominated military. As a result, many Hutu instinctively flee at the mere sight of soldiers or at the distant sound of their vehicles. The country's forces of order, unfortunately, create new disorder and displacement – deliberately in some cases, inadvertently in others.

Sixth, population displacement in Burundi often exacerbates rather than alleviates the conflict. Uprooted Burundians of one ethnic group are often regarded as dangerous by members of the other ethnic group. The military suspects that many internally displaced Hutu are rebels. Many Hutu suspect that camps of displaced Tutsi are bases for militia activity. There is some truth to these mutual suspicions. The result is that displacement at times begets more violence, causing still more people to flee. In short – at least in Burundi – displacement causes more displacement.

These are only partial explanations of the population displacement in Burundi, of course. This review of Burundi's history indicates that some actors create violence and displacement as a way to achieve political control by force that they are unable to achieve or maintain through nonviolent means. Some elements in Burundi create violence and displacement for the economic rewards it brings them through banditry, confiscation of property, and skimming of relief aid. Still other Burundians commit violence and force displacement based on pure fear or hate, reinforced by decades of grievances, real or imagined."

Government resorted twice to "Regroupment" policy (1996-2000)

- 1996: government policy to move civilian populations into "regroupment" camps
- 1997: end of the large-scale, long-term "regroupment" policy
- 1998: short-term forced movement of populations continues, particularly in unstable western provinces
- Since September 1999, over 350,000 people were forcibly moved by government forces to 53 regroupment camps to deprive insurgent groups of local support
- Government explained that regroupment camps were established to protect civilians from the rebels
- Dismantlement of regroupment camps was precondition to peace negotiations and camps were dismantled by mid-2000

USCR, 2000 "regroupment"

"Burundian authorities have pursued two waves of forced population relocation, or regroupment. The first regroupment wave occurred during 1996-98 when the government moved at least a quarter-million Hutu into 50 camps scattered throughout the country. Some observers estimated that up to 800,000 persons lived in the regroupment camps at that time. Most regroupment sites closed during 1998, allowing occupants to return home."

HRW, June 2000, "Regrouping":

Renewed Regroupment (1999-2000)

"In July and August 1999, the rebels launched increasingly frequent and damaging raids in and around Bujumbura, killing dozens of civilians as well as some soldiers. The army retaliated with attacks that killed more than one hundred civilians as well as combatants and the government tightened an existing curfew. These measures failed to satisfy Tutsi extremists in Bujumbura who demanded more drastic action to protect the city and to repress the rebellion. With rumors circulating of a possible coup and of violence being organized by extremists, the government decided to impose a policy of regroupment on most of Bujumbura-rural, particularly on areas inhabited largely by Hutu and near the city."

HRW June 2000, "Regrouping":

"In mid-1999, it [the government] had revived the regroupment policy in parts of southeastern Burundi before deciding to extend it to the area of the capital in September."

HRW, June 2000, "Summary":

"The Tutsi-dominated government of Burundi, combating rebellions among the Hutu majority, began forcing civilians in the area around the capital into so-called "protection sites" or "regroupment camps" beginning in late September 1999. Burundian authorities claimed the measure was intended to protect the civilians, most of them Hutu, from attack by the rebel National Liberation Forces (Forces Nationales pour la Libération, FNL) who were becoming increasingly well-entrenched in the area. In fact, they meant to deprive the FNL of support from local people who helped them, sometimes willingly, sometimes under duress. By removing civilian support, the authorities hoped to isolate the FNL and thus reduce its increasingly frequent attacks on the capital. They hoped also to quiet Tutsi extremists who accused them of weakness in confronting the rebel threat."

HRW, June 2000, "Summary":

"By the end of 1999, authorities had obliged some 80 percent of the population of the province of Bujumbura-rural-some 350,000 people-to live in fifty-three camps. Although regroupment helped reduce attacks on the capital city, rebels remained firmly established in rural areas. They simply shifted from one place to another when attacked by the army, which had insufficient troops

available to control the whole region at the same time. Rebels continued to live off the crops of local people and even to inhabit the houses of those forced to live in the camps.

USCR, 2000, "Regroupment":

"The country included at least three types of internal displacement: up to 200,000 people, primarily rural Tutsi, who have lived for six years in designated camps protected by government soldiers and thousands, who have become displaced in the countryside or at makeshift sites for varying lengths of time; and nearly 350,000 Hutu whom the government required to live in so-called 'regroupment' camps."

Dismantlement of regroupment camps (2000)

USCR, 2000, "Regroupment":

"Government authorities argued that the camps were a temporary measure to protect civilians from attack and deprive rebel groups of food and lodging in rural areas. Burundian officials urged international humanitarian organizations to provide food, water, sanitation, and medical care to the sites. Burundian President Pierre Buyoya visited several sites in October [1999] and stated that conditions there were better than portrayed by aid agencies. The regroupment camps were 'no dramatic situation,' he assured."

HRW, June 2000, "Summary":

"The international community severely criticized the policy of regroupment. In January 2000, the Burundian government promised to begin closing the camps but it made little progress in doing so until early June. At that time, rebel leaders made closing the camps a precondition for peace negotiations and former South African President Nelson Mandela, facilitator for the negotiations, condemned the regroupment sites as 'concentration camps.' Under this pressure, President Pierre Buyoya agreed that everyone in the camps would be allowed to return home by the end of July."

For an analysis on how forced displacement in 2000 of 350,000 civilians was carried out in violation of international law, including the Un Guiding Principles on Internal Displacement, see HRW June 2000 "Violation of international law & Guiding Principles on Internal Displacement" [link below]

See also "Policy of the international humanitarian community regarding provision assistance in the context of forced relocation (1999-2000)" [Internal link]

Fighting between FNL and army displaced thousands in Bujumbura Rural (2004-2009)

- Combatants of FNL fought so called FNL "dissidents", causing displacement in October 2007
- FNL is the only rebel group which has not made peace with the government
- Population displacement reduced in 2005 compared to 2003-2004
- Little population displacement in 2006, but the populations of Cibitoke, Bubanza and Bujumbura Rural, have suffered armed attacks, looting and destruction of homes, property and livestock at the hands of FNL
- The latest displacement in April and May 2008 affected around 20,000 people of Bubanza and Bujumbura rural

NGO (anonymous), September 2009:

"The latest *conflict-induced* displacement in Burundi occurred in April and May 2008 in Bujumbura Rural and Bubanza provinces. All in all, displacements affected around 20,000 persons due to armed conflict between the rebel movement FNL-Palipehutu and the Burundian Army."

IRIN, 5 June 2008:

"Thousands of civilians who fled their homes near the Burundian capital of Bujumbura in May following clashes between the army and opposition fighters have returned to their villages, a senior official announced.

"They went back because the situation has returned to normal although there are still some cases of theft," Zenon Ndaruvukanye, the governor of Bujumbura Rural province, said on 5 June. "They received aid including blankets, soap and jerry cans from the Burundi Red Cross and the International Committee of the Red Cross."

At least 20,000 people fled fighting between the army and Forces nationales de libération (FNL) fighters in and around Kabezi, 20 km south of Bujumbura.

[...]

Most of the displaced civilians were from Kiremba, Mena, Ramba, Gitenga and parts of Mwara, close to where the fighting broke out on 7 May. Many had sought refuge at Kabezi health centre, a nearby primary school and the market.

The returning civilians, he added, had received some rice from the ministry for national solidarity. But they still needed more food aid.

[...]

In Magara, Bugarama commune of Bujumbura Rural province, about 500 families have returned home following the May ceasefire, according to the UN Office for the Coordination of Humanitarian Affairs. However, in Gitwaro, returnees found their homes looted, crops harvested and domestic animals eaten by the armed groups that had occupied the area."

NRC, May 2008:

In April 2008 serious violations of the 6 September 2006 ceasefire between the Burundian Army (FDN) and the rebel group Palipehutu-FNL (FNL) occurred. The most reported events took place in the capital city, Bujumbura, where three attacks took place on April 17, 18 and 22. Violence sprung in several provinces around the country (Bujumbura Rurale, Bubanza, Cibitoke and Kayanza), but Bujumbura Rurale province has been the most affected province, witnessing displacements of population.[...]

At the peak of displacement it was reported that there were:

- 4,050 households displaced in Isale commune or 20,100 people out of 83,000 inhabitants concentrated mostly in 6 sites in the centre of the commune, Rushubi on May 2 (data Burundian Red Cross).
- 5,102 households displaced in Muyira and Kirombwe, both at Kanyosha commune on May 2 (data Burundian Red Cross).
- 4,305 households displaced in Kabezi centre in three different sites on May 7 (data Kabezi local administration).
- 3,166 households displaced in Gitaza centre and 1,100 in Rutongo, both at Muhuta commune (data Muhuta local administration).
- And fewer numbers of IDPs registered in Bugarama, Mutambu and Nyabiraba communes (several hundreds of households)."

IRIN, 25 October 2007:

"Fighters of Burundi's last active rebel group have for the second time in one week attacked a position occupied by a break-away faction, forcing villagers to flee their homes, a senior military official said.

The evening raid by combatants of the Front National de Liberation (FNL), led by Agathon Rwasa, took place on 24 October [2007] evening on a site where the so-called FNL "dissidents" have gathered in Gakungwe village of Kabezi commune in Bujumbura Rural province.

It forced hundreds of people from surrounding villages to run away as the army sent reinforcements to the area to guard the splinter faction's settlement, residents said.

"There has indeed been such an attack and the heavy exchange of gunfire was heard," deputy army chief of staff Major General Godefroid Niyuhire told IRIN on 25 October. There were, however, no casualties during the attack, he said.

The "dissidents" say they fought with Rwasa for the FNL, but Rwasa's supporters have denied their claims and accused the government of creating a faction within the FNL. Rwasa has said these men, who intend to join the country's peace process, are not even party to a 2006 ceasefire agreement signed between the government and the FNL."

OCHA, 23 June 2005:

"Population displacement due to insecurity and armed conflict reduced markedly in the first months of the year [2005] and as compared to the period 2003-2004. Populations in the province of Bujumbura rural, where recurrent waves of displacement had taken place throughout 2004, are gradually resettling and returning to zones of origin and no sizeable population movements were registered in the first semester of the year."

IRIN, 4 January 2005:

"Thousands of civilians have been displaced following fierce fighting on Saturday in Burundi's western province of Bujumbura Rural.

The internally displaced persons (IDPs) have not received aid, the governor of the province, Ignace Ntawembarira, said.

Fighting was reported in the communes of Isale, Nyabiraba and Kanyosha, east of the capital, Bujumbura, between the rebel faction Forces nationales de libération (FNL) of Agathon Rwasa, and a coalition of the Burundian army and troops loyal to Pierre Nkurunziza, leader of the former largest rebel faction in the country, the Conseil national pour la defense de la democratie-Forces de defense pour la democratie (CNDD-FDD)."

UNSC, 27 October 2006:

"In the period under review [August 2005-September 2006], the security situation was characterized by renewed clashes between FDN and FNL, mainly in the north-western provinces of Cibitoke, Bubanza and Bujumbura Rural. The populations of these provinces have suffered armed attacks, looting and destruction of homes, property and livestock at the hands of FNL. In 2006, 107 cases of attacks and looting by FNL were reported."

Fighting between government and FLN troops causes the displacement of thousands in Bubanza Province (2008)

- FNL - the only rebel group which has not made peace with the government – caused displacement at the end of 2007

IRIN, 14 January 2008:

“About 1,400 families (8,400 people) displaced in Musigati commune in the northwestern province of Bubanza, following fighting between government forces and the Forces Nationales de Libération (FNL), desperately need help, according to local officials.

Laurent Kagamba, adviser to the Musigati administrator, said that since the simultaneous attacks on three military positions on 28 December [2007] and another on 9 January [2008] in the same commune, residents had fled their homes. Some sought refuge in Musigati parish, others at Musigati and Kabere trade centres, as well as Busiga coffee factory, he said.”

IRIN, 10 September 2007:

“Residents of 700 households, or about 4,000 people, have fled their homes in the northwest Burundi province of Bubanza following raids by suspected members of the country's last active rebel group, a government official said.

‘For the time being, security is not good at all. Some residents have been beaten, while others have had their property looted,’ the governor of Bubanza, Pascal Nyabenda, told IRIN.’

He said Forces nationales de libération (FNL) fighters had raided homes in Bubanza from their hideouts in the nearby Kibira and Rukoko forests. Those displaced were spending the nights in the compound of a local parish, venturing out for a few hours during the day to work in their fields, Nyabenda said.”

For information on displacement by fighting between government and FNL troops in Bubanza Province in previous years, see:

ITEKA, 9 August 2006, Burundi: Des peronnes armées et des combattants du Palipehutu_Fnl mènent des attaes répétées dans certaines communes de Bubanza

ITEKA, 24 August 2005, Burundi: Des déplacés de guerre en commune Musigati sans assistance [Link below]

IRIN, 14 June 2005, Burundi: Thousands displaced in Bubanza [Link below]

Some of the Burundian refugees expelled from Tanzania have no house or land (2008)

Refugees International, 1 October 2008:

“Under Tanzanian government pressure, the Burundian authorities have been visiting camps in Tanzania and promising that people will be provided land and assistance if they return. However, the current level of effort by the government and other actors is not sufficient. The difficulty starts during the return process. Transit sites are overcrowded, notably Mabanda, which Refugees International recently visited. It is supposed to process a thousand people in two to three days, but instead families have been stuck there for more than two months. Six hundred people are permanently living in the center, while convoys of hundreds of people pass through it weekly.

People are delayed in the transit centers because they are unable to access their original land and homes. In many regions of Burundi, especially the southern provinces of Bururi and Makamba, the previous government encouraged people from other regions to settle areas left vacant. [...] Returnees who have identified their property and cannot recover it are camping under the open sky or occupying public buildings (schools, municipal offices) while waiting for a resolution. Site congestion and anarchic settling of families are leaving people more vulnerable to epidemics and security incidents.”

OCHA, 3 August 2008:

"An interagency mission visited the Makamba province. The main objective of the mission was to assess the situation of repatriates from Tanzania, including repatriated refugees and Burundians expelled from Tanzania. There are in the area visited two temporary settlements managed by the PARESI, and two transit camps managed by UNICEF (expellees from Tanzania) and the UNHCR (repatriated refugees). The situation in the temporary settlements is of concerns especially in the Gitara I settlement where some 178 people, 60 families with a majority of minors, have been there for up to two years in some cases. The people in Gitara I, Gitara colline, have yet to be resettled as land was not yet allocated to them [...]."

UN, 30 November 2006:

Over 3,000 Burundians who had found refuge in Tanzania were forced to return in 2006: "Many new arrivals report others being forced to leave and the 3,000 who have come back so far, only seem to be the tip of the iceberg. Nobody knows for sure how many Burundians live in Tanzania without having regularized their stay, but most estimate around 150,000 persons. This will remain a key challenge in 2007, especially since the new arrivals need assistance and in particular so-called sans addresses like Elias, who hopes that "the Burundian Government can find us a plot of land where I can build a house and send my children to school.""

NRC, November 2006:

"Since June 2006, Tanzania has been implementing a national plan for the repatriation of refugees from Tanzania. In this framework, persons without refugee status or any other legal status in Tanzania have been forcibly removed from Tanzania. This year, more than 4000 Burundians have been expelled from Tanzania, mainly from Ngara district towards Muyinga province."

See also:

UNHCR, 23 Oct 2006, Growing numbers of Burundians return home from the DRC [[Internet](#)]

At least 3000 returnees and displaced have been living as urban IDPs for more than a decade (April 2009)

IRIN, 10 April 2009:

"At least 3,000 people, many of them returnees, have lived for years in an informal settlement on the outskirts of the capital, Bujumbura, with only two pit latrines between them, no clean water and no medical cards to help them access medical care.

That they have survived for as long as 15 years in difficult conditions without help from the government or any aid agency attests to the fact that thousands of people can fall through the cracks in a country like Burundi, emerging from decades of civil war.

Hidden behind villas and commercial buildings in a Bujumbura suburb is Sabe, home to 500 families.

"Some of us returned from Rwanda in 1993 after the election of Melchior Ndadaye [Burundi's first democratically elected president], others from Tanzania and [Democratic Republic of] Congo," Olive Bararusesa, one of the site leaders, told IRIN.

She said others were internally displaced from various provinces of Burundi.

Marc Ngendakumana, an internally displaced person (IDP) from northern Kanyanza province and living at Sabe site, said: "Living in a residential area as a destitute is like [living with] a pin in the foot, it is a painful experience."

Most of the huts in Sabe are grass-thatched, mud-walled structures, with patches of iron sheets.
[...]

Categorisation

Bo Schack, Representative of the UN Refugee Agency, UNHCR, said the agency "does not have knowledge of this site as a group which is in need of international humanitarian aid.

"If there are returnees, the UNHCR considers that returnees who have spent such a long time as 15 years are no more considered as repatriates," Schack said, adding that one cannot be put in a returnees' category for a long time or for all one's life."

Other causes of displacement

Food insecurity affects IDPs and causes further displacement (September 2009)

NGO (anonymous), September 2009:

"In January 2009, displacement due to *food insecurity* has been reported from Kirundo (1 000 households, according to media), Ruyigi (1 200 households) and Cankuzo provinces. Concerning Cankuzo, media reported that a number of students (between 1 446 and 2 400) had given up school and most of them had moved with their parents to Tanzania."

FAO, April 2009:

"High food prices continue to adversely affect a large number of vulnerable households in Burundi, necessitating food and agricultural aid, especially for resettlement of returnees and IDPs."

Thousands displaced due to floods (April 2009)

IRIN, 14 April 2009:

"Rain-induced floods have displaced over 8,000 people in a commune north of Bujumbura, the Burundian capital, and damaged at least 1,200 houses as well as crops, an official has said.

[...]

More rain fell on 12 April in Buterere - a low-lying area - but the displacement and damage caused has not been fully assessed because some locations are still inaccessible, the official said.

At Maramvya, a settlement in Buterere, another downpour on 12 April displaced 450 households and destroyed at least 100 homes, he said, adding: "Half of Buterere Commune's population might become destitute."

Flood waters had reached areas that were previously unaffected, "even moving down a road leading to Bujumbura International Airport," he said."

IRIN, 14 October 2008:

"Hundreds of families are without assistance in the northwestern province of Cibitoke after heavy rains damaged houses and crops, officials said.

[...]

Early in October, residents of the communes of Bukinanyana and Murwi, also in Cibitoke, suffered heavy losses following torrential rains.

Some 200 hundred houses were damaged in Murwi and more than 30 in neighbouring Bukinanayana. The administrator of Bukinanyana, Antoine Girukwishaka, told IRIN the victims sought refuge with their neighbours or built makeshift huts to provide shelter.

[...]

The governor of Cibitoke, Zéphérin Barutwanayo, said the affected needed tents, blankets, mats and building materials. "They also need food assistance as there will be no harvest at all," he said.

[...]

Nzigamasabo said the regional delegation of the International Federation of Red Cross and Red Crescent societies based in Nairobi had approved the Disaster Response Emergency Fund, allowing the Burundi Red Cross to assist victims of the rains with non-food items such as plastic tents, cooking kits, blankets, soaps and vegetable seeds.

[...]

Damage from heavy rains has been reported in several parts of the country since the beginning of the rainy season in mid September. Crops have been destroyed in the provinces of Ngozi (north), Muyinga (north east), and Bujumbura Rural (west)."

POPULATION FIGURES AND PROFILE

Global figures

Some 100,000 IDPs in Burundi (2009)

- No updated data on the number and geographical location of IDPs available; the most recent, validated report is still 2005 OCHA survey
- The 2009 report of the Ministry for National Solidarity updating the situation of IDPs rejected by local officials

UNHCR, August 2009:

"No reliable data is available as to exact the number of internally displaced persons (IDPs). The UN Office for the Coordination of Humanitarian Affairs (OCHA) estimated their number to be about 100,000 in 2006. The Government of Burundi has conducted a survey of the populations (including conflict IDPs) living in displacement sites, in old peace villages, and in rural integrated villages. A draft report was released for consultation with Government departments, UN agencies and civil society end of July 2009. Specific numbers for conflict IDPs were not included but the report suggests that many displacement sites in the Southern Provinces have now closed whilst in some other provinces (particularly Bubanza, Bujumbura Rural and Bujumbura Mairie), the populations and number of sites has grown. A closer analysis of each site was recommended in order to develop a strategy for durable solutions."

OCHA, March 2009:

COUNTRY*	Planning figure ²		Change	Displacement Trends
	December 2008	March 2009		
Burundi	100,000 ⁶	100,000 ⁷	No change ↔	A decree with the provisional 2008 National Census results was published in early 2009, but did not include IDPs as a separate category. Plans by the Ministry of National Solidarity to update the OCHA IDP study of 2006 has been delayed due to budgetary constraints. In the meantime, no new displacements were recorded between January-March 2009.

Source: OCHA, March 2009

NGO (anonymous), September 2009:

"The most recent, validated report is the 2005 OCHA survey. In May 2009, the Ministry for National Solidarity published a report updating the situation of IDPs and refugee returnees on site. This report indicates that 157 167 people (31 354 households) live in 137 sites, up from 116 407 IDPs (24 972 households) in 2005. During a validation workshop in July 2009, local officials refused to validate the report, claiming that some sites were missing or no longer existing, and noticing that there was confusion between IDPs, refugee returnees and other residents of (IDP) sites. Moreover, the report is methodologically flawed and no non-state stakeholders seem to have been consulted during the drafting phase of the report.

The remaining IDP sites are still thought to be the sites created after inter-ethnic violence following the 1993 coup d'état and subsequent civil strife, mainly created in the northern and central part of the country. "

USDOS, 25 February 2009:

"Despite improved security, an estimated 100,000 IDPs remained in settlements throughout the country. According to the UN Office for the Coordination of Humanitarian Affairs (UNOCHA), most

of the IDPs were living at 160 sites, the majority in Kayanza, Ngozi, Kirundo, Muyinga, and Gitega provinces.

Latest survey say that 117,000 IDPs remain in camps (2005)

- About 58% of the total IDP population in Burundi concentrates in the northern and central provinces of Gitega, Muyinga, Ngozi, Kayanza and Kirundo
- Half of households in the North and Center are headed by women, many of whom are over 60 years old
- 30 camps have been dismantled since 2004

OCHA, 23 June 2005, p.7:

"The national IDP Survey conducted by the Office for the Coordination of Humanitarian Affairs (OCHA) in February-May 2005 showed that the total population of IDPs living in sites has decreased from 145,034 in mid 2004 to 116,799 people in 2005. The total number of IDP sites also from 170 to 160 during the same period. These overall results confirm the trends of return to zones of origin that had started in early 2004.

Survey findings also pointed to a continuous trend of return in southern and southeastern Burundi, while IDPs living in sites in the northern and central provinces prefer to stay at the displacement site.

At present, about 58% of the total IDP population in Burundi concentrates in the northern and central provinces of Gitega, Muyinga, Ngozi, Kayanza and Kirundo. In these cases, the influence of the conflict and the 1993 crisis in Burundi combined with a general feeling of uncertainty and insecurity regarding the ongoing political transition in the country appears to be important factors influencing families' decision to remain at the IDP site. Moreover, some of these families have lived for more than 10 years under conditions of displacement, thus developing new social, family and economic ties in the areas/sites for the displaced. On the other hand, the different conditions under which most of the people were displaced in the southern regions, as a result of the 1998 crisis, and the more ready access to land in these areas has facilitated a more rapid return to zones of origin."

OCHA, 26 May 2005, pp.3, 8:

" Partant des données statistiques issues de l'enquête 2005 sur l'ensemble des ménages déplacés sur site, il ressort que le nombre total est de 116.799 personnes, réparties sur 160 sites à travers tout le territoire. D'importantes disparités régionales s'observent en ce qui concerne les proportions de femmes chefs de ménage. En effet la moitié des ménages vivant dans les provinces du Centre et du Nord sont dirigés par des femmes. Et sur l'ensemble de la tranche d'âge des plus de 60 ans, les femmes chefs de ménage représentent à elles seules les 2/3, ce qui révèle un profil de vulnérabilité particulier.

Les indicateurs socio-économiques tels la profession du déplacé par son activité principale et l'accès à la terre dégagent que la population des déplacés sur site est essentiellement agricole (91%). Les déplacés ont accès à leurs anciennes propriétés (74%) et continuent de les exploiter à partir des sites.

Les résultats des travaux d'entretiens corroborent les données statistiques 2005 quant à la perception des causes d'insécurité. Malgré l'accalmie consécutive à la signature des accords de cessez-le-feu, les déplacés du Nord et du Centre restent méfiants, et manifestent la peur de leurs anciens voisins. Par contre, dans les régions du Sud et Est, depuis que les groupes armés ont

cessé les combats, les problèmes d'insécurité ne se posent pas avec la même acuité. La situation de maintien sur site témoigne en effet du climat de méfiance et d'incertitude des déplacés. Elle est aussi motivée dans certains endroits par des opportunités économiques offertes par l'emplacement ainsi que par un meilleur accès aux services sociaux de base et aux infrastructures.[...]

30 des sites qui existaient au moment de l'enquête 2004 ont depuis lors été démantelés, particulièrement sur la province de Makamba (17 sites sur les 28 que compte la province). Parallèlement, 21 sites additionnels ont été recensés cette année. Ces derniers n'avaient pas fait l'objet de l'enquête de 2004 en raison des contraintes de sécurité (accès) et par le fait que certains sites de déplacés n'étaient pas reconnus comme tels par l'administration en 2004. "

IDP estimates 1999 – 2004

- UN OCHA IDP estimated that 281,600 IDPs were living in camps in 2003
- An additional 100,000 or more were estimated to live with host families, public buildings or in the bush
- Decrease of IDP population in sites from 281,628 in 2002 to 145,034 in 2004
- An additional 30,000 to 40,000 were temporarily displaced every month as of late 2004

IDP Estimates (1999-2004)

OCHA, 15 August 2003, p.6:

"Further IDPs have been temporarily displaced from their homes for short periods of time and are not included above. IDP figures exclude a possible further 100,000 IDPs, and possibly more, dispersed following the closure of some regroupement camps in 2002 and who may not have been able to return to their homes."

According to the NGO Save the Children Fund (SCF), the bulk of dispersed IDPs live in Bujumbura Rural (SCF 16 Aug 2001).

UNICEF reported in May 2002 that there were 180,000 IDP children in camps (UNICEF 29 May 2002).

UN estimated that 100,000 people are affected every month by temporary displacement (Nov 02):

OCHA, 19 November 2002:

"The intensification of conflict, particularly in Bujumbura Rural and the border provinces, has led to increased temporary displacement affecting up to 100,000 people every month.

Over 109,720 people are displaced in Bujumbura Rural alone, while a further 20,000 have been forced from their homes in Ruyigi and Makamba. Such temporary displacement, sometimes forced by military action, has in some cases lasted months, severely disrupting all aspects of life for the population, diminishing or destroying their small reserves and placing additional strains upon already vulnerable host populations."

2003

In September 2002, UNFPA did a socio-economic survey on IDPs in Burundi. Preliminary results available in January 2003 stated that the total number of IDPs in camps was now 281, 052, down more than a hundred thousand from July 2002.

OCHA, 14 March 2003:

In March 2003, UN OCHA reported a total of over 525,000 IDPs in the country, of whom 387,499 were registered in 226 sites (and more than 800,000 Burundians living as refugees in the region).

OCHA, 3 June 2003:

In June 2003, UN OCHA adopted the same IDP figure reported by UNFPA in January 2003: 281,000 IDPs in permanent sites, and another 100,000 temporarily displaced every month.

According to UNFPA's draft survey:

UNFPA Draft, 2003, p11:

"Parmi les 106.417 individus que OCHA-UNICEF-PCAC ont de plus que nous, 26.553 personnes (soit $\frac{1}{4}$) constituent la population des sites des déplacés que nous avons exclus du recensement du fait qu'ils étaient soit démantelés, soit des sites de nuit, soit des sites de rapatriés ou d'une autre nature comme celui de Buterere. Le reste (79.868 individus, soit $\frac{3}{4}$) pourrait s'expliquer par la surestimation éventuelle des chiffres par certains responsables administratifs et chefs de site pour la raison évoquée plus haut."

2004

OCHA, August 2004:

"The IDP population has decreased dramatically from 281,628 displaced persons living in 230 sites in 2002 to 145,034 persons in 170 sites in 2004. In other words, half of the IDP population returned to their zones of origin within this two-year period, with the most accelerated rate of return taking place between late 2003 and early 2004 following significant improvements in the political and security situation in the country."

IDP estimates: 1993-1999

- An estimated 500,000 to 700,000 persons were internally displaced in late 1993 by the violence that erupted in October of that year; there were still an estimated 400,000 internally displaced at the end of 1996
- Return movements as a result of the closure of large-scale regroupment camps were registered in 1997 and 1998 but the total displaced population increased again in 1999

USCR, 1998, pp. 34-35:

"The precise number of persons internally displaced by the violence of 1993-96 is difficult to determine. Security concerns at times have limited the access of international relief agencies and hampered their ability to make sophisticated estimates. Many displaced Hutu have dispersed into the hills and swamps to hide and do not reside in designated camps because they consider camps vulnerable to attack. Local leaders of both ethnic groups routinely inflate the number of uprooted families in an effort to attract more aid and gain more sympathy for their political cause. 'In some camps,' noted one relief worker, 'those in charge are so hostile that it becomes dangerous even to ask about numbers or need. They will bluntly say that it's none of your business.'"

USCR 1995, p.51; USCR 1996, p.40; USCR 1997, p.60; USCR 1998, pp. 34-35, UN 30 November 1999, p. 6:

IDPs end 1993	500,000 to 700,000
--------------------------	--------------------

IDPs end 1994	400,000
IDPs end 1995	300,000
IDPs end 1996	400,000
IDPs July 1997	577,142
IDPs Nov 1998	558,506
IDPs Sept 1999	801,438

Flow of Internal Displacement: 1997-1999

UN November 1999, p. 6:

IDPs July 1997	577,142
IDPs November 1998	558,506
IDPs September 1999	801,438
% Population	12

Geographical distribution

UNHCR survey in 3 southern provinces (January 2008)

UNHCR, 1 January 2008:

« Beaucoup de choses ont déjà été dites, et bien dites, sur les IDP au Burundi.[...]

L'objectif poursuivi, beaucoup plus modeste, consisterait plutôt à décrire un panorama sommaire de la situation des IDP dans les provinces couvertes par la représentation de terrain du HCR à Makamba, de manière à disposer d'un outil interne pouvant servir de base à une réflexion sur l'assistance à déployer en faveur de cette catégorie de population intégrée de plus en plus dans le mandat de l'Organisation.[...]

Conscience prise de ce contexte, l'envergure de cette étude a des limites avouées : limites géographiques tout d'abord, puisque elle ne vaut que pour les provinces de Bururi, Makamba et Rutana ; limites structurelles ensuite, en ce sens qu'il ne s'agit que d'une évaluation sommaire des sites et non d'une enquête approfondie sur les IDP. La méthode choisie pour ce faire a consisté en une série de missions de terrain à la rencontre des autorités administratives locales et des personnes déplacées elles-mêmes, devant permettre de remplir un questionnaire simplifié constitutif de la fiche élaborée pour chacun des sites visités. Les conclusions qui peuvent être déduites de cette étude ont finalement été articulées en quatre chapitres : **Constat général, Evaluation statistique de la fréquentation des sites, Synthèse thématique et Conclusion / Proposition.** »

For a detailed account of the various sites in the three provinces, see the annex of the survey (link below).

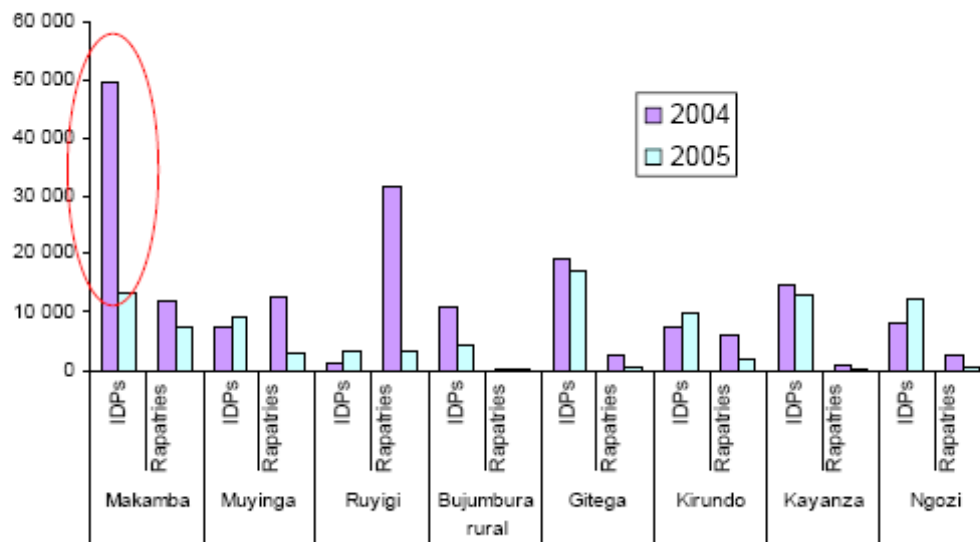
IDP distribution per province (2001-2005)

The table below is compiled from the following sources: OCHA 26 November 2001, OCHA 28 Feb 2002; OCHA 31 July 2002, UNFPA Sept 02, OCHA 15 Aug 2003, OCHA 23 June 2005:

Province	June 01	Feb 02	July 02	Sept 02	Aug 03	May 05
Bubanza	14,652	14,202	8573	4057	4,060	7,325
Bujumbura mairie	264	257	12,643	7395	7,391	8,424
Bujumbura rural	28,420	28,420	18,363	7842	7,842	4,151
Bururi	104,986	87,581	89,307	68412	68,735	2,130
Cankuzo	4,486	4,495	13,989	7816	7,816	2,241
Cibitoke	0	0	0	0	0	3,381
Gitega	28,026	5,361	24,940	22050	22,106	17,066
Karuzi	2,042	2,042	9,131	7183	7,183	7,168
Kayanza	7,573	7,573	23,838	19540	19,539	12,878
Kirundo	5,024	5,031	15,165	11746	11,765	9,769
Makamba	106,540	99,558	105,558	71170	71,270	13,196
Muramvya	27,250	27,250	17,514	17596	17,597	3,790
Muyinga	17,481	8,945	15,954	9525	9,609	9,116
Mwaro	182	182	297	175	175	166
Ngozi	4,389	4,389	21,328	19927	19,926	12,204
Rutana	78,840	77,901	9,094	5278	5,278	555
Ruyigi	2,654	2,322	1775	1346	1,346	3,239
Total	432,809	375,509	387,469	281,052	281,628	116,799

To see the number of IDPs per commune in 2005, please see OCHA, 26 May 2005, Enquête sur les populations déplacées au Burundi, pp.43-57 [Reference below]

Comparison 2005/2004 of IDPs and returning refugees per Province (2005)



Internal displacement per province 1997-2001

OCHA 26 November 2001, pp6-7:

Internal displacement 1997-2001

Province	Total pop.	IDPs Sept 97	IDPs Aug 98	IDPs Oct 99	IDPs Sept 00	IDPs Oct 01	% pop.
Bubanza	309,127	73,087	132,641	172,408	14,588	14,652	5%
Bujumbura mairie	341,494	40,734	9,350	14,902	565	264	0%
Bujumbura rural*	456,891	0	57,637	317,384	30,889	28,420	6%
Bururi	454,939	58,099	85,737	85,781	87,581	104,986	23%
Cankuzo	181,686	3,254	0	0	5,500	4,486	2%
Cibitoke	417,131	49,620	13,565	736	0	0	0%
Gitega	649,854	20,997	18,316	21,050	5,147	28,026	4%
Karuzi	377,186	134,540	34,360	12,106	2,042	2,042	1%
Kayanza	491,171	70,164	28,879	26,269	7,573	7,573	2%
Kirundo	533,132	20,072	27,852	5,886	5,031	5,024	1%
Makamba	397,001	45,314	36,710	85,680	121,360	106,540	27%
Muramvya	259,993	40,436	27,063	22,506	27,250	27,250	10%
Muyinga	519,313	22,855	32,081	16,473	8,945	17,481	3%
Mwaro**	235,496	0	0	0	0	182	0%
Ngozi	637,923	19,184	25,712	20,485	4,389	4,389	1%
Rutana	59,987	3,675	2,576	16,279	2,127	78,840	30%
Ruyigi	323,677	6,335	2,127	700	1,068	2,654	1%
Total	6,846,003	608,366	534,606	818,645	324,055	432,809	6%

Remarks: total figures indicate IDPs on sites only; an additional 150,000 to 200,000 individuals (most of them from Bujumbura Rural) are considered as dispersed people, who neither live in camps nor in their homes, due to security constraints.

* The province Bujumbura Rural was separated from Bujumbura Mairie 1999

** Mwaro province was included in Muramvya province until 1999

*** As forced relocation sites in Bujumbura Rural were set up in September 1999, the number of IDPs in those sites was assessed accurately in October 1999."

Disaggregated figures

Number of women in IDP sites higher than the ones of men (2003-2004)

- As of mid-2004, more than one-third of all displaced households were headed by women and by children
- IDP per gender/site in Bubanza, Bururi, Bujumbura Mairie, Bujumbura Rurale (2003)

OCHA August 2004, p4:

"According to the 2004 survey on IDPs, "More than one-third of all displaced households are headed by females (mostly widows) and children (mostly orphans). The highest percentages of female- and child-headed households are found in northern and central provinces. These households are among the most vulnerable, and among the most likely to remain definitively in the sites where they currently reside."

OCHA August 2004, p9:

"Of the current IDP total population of 145,034 persons, 53% are female and 49% are children under the age of 15. These percentages correspond to the national norm for the global population in Burundi. However, if gender and age data are compared across provinces, communes and sites, some deviations from the national norm emerge. For example, the IDP population in Ruyigi province is comprised of a relatively high percentage of children (58%), which may indicate that the displacement phenomenon impacts this group disproportionately. Conversely, in some areas there is a relatively low percentage of children (43% in Gitega province), which should be investigated and analysed further when designing assistance strategies and activities.

The total number of 145,034 IDPs is comprised of 29,881 households. Of these, 32% (9,650 households) are headed by females, 97% of whom are widows. On average, the highest percentages of female-headed households are located in the northern and central provinces of Karuzi (52%), Kayanza (49%), Mwaro (49%) and Gitega (47%). The lowest percentages of female-headed households are located in the southern and eastern provinces of Cankuzo (17%), Makamba (19%), Rutana (19%) and Bururi (22%). An analysis of these results reveals a close relationship between the percentage of female-headed households and willingness to return. In those sites where most households want to remain definitively in the sites, high percentages of female-headed households tend to be found. At the same time, low percentages of female-headed households are found in sites where the desire to return to the place of origin is the strongest.

The same tendencies appear with regard to child-headed households, which comprise 6% (1,808 households) of the total IDP population; almost all children heading households are orphans. The highest percentages of child-headed-households tend to be in sites where the desire to remain in the site is the strongest: Mwaro (15%), Muyinga (11%), Gitega (10%) and Karuzi (10%). The lowest percentages are found in sites where the desire to return to place of origin is the strongest: Cankuzo (3%) and Makamba (3%).

Female- and child-headed households together comprise over one-third of all displaced households in Burundi at the present time. Many of these households have lost the legal and traditional right to access family land and have no where else to go but to remain in the site where they currently reside, depending largely on the goodwill of others living in the site or charity groups / NGOs. These households are among the most vulnerable – and among the most likely to remain in the sites – and may be in need of special assistance.”

See also UNFPA, draft, 2003, annex 1 and 4 [Link below]

PATTERNS OF DISPLACEMENT

General

Dynamic of displacement: Bubanza and Cibitoke Provinces (1993-2005)

- Population in Bubanza fled in 1993 following massacres
- Creation of IDP camps in Bubanza, followed by renewed displacements in 1996
- In Cibitoke, most of the displaced returned homes in 2002, but some IDPs continued to live in camps as of 2005

OCHA 26 May 2005, p11:

“(i) Bubanza

Il est ressorti à travers les entretiens de groupes que la province de Bubanza a été sérieusement touchée par la crise qui avait débuté en octobre 1993. C'est une crise qui s'est produite en plusieurs étapes:

D'abord des massacres à grande échelle d'une partie de la population ont été opérés ;

Les rescapés ont fui les collines d'origine et se rassemblèrent au centre des communes et aux chefs-lieux de la province sous la protection des forces de l'ordre et de l'administration ;

La population restée sur place connaîtra des actions de représailles et fut obligée à son tour de fuir les collines pour se retrouver éparpillée dans les marais, collines et communes environnantes;

A partir de Novembre-Décembre 1995, un phénomène nouveau s'est produit : les dispersés ont rejoint les déplacés sur sites;

Depuis 1996, les affrontements armés entre les bandes armées et les troupes gouvernementales ont conduit à de nouveaux déplacements des collines vers les sites de déplacés. Le sud de la province de Bubanza (commune Mpanda) présente des caractéristiques semblables à celles de Bujumbura rural en raison des affrontements réguliers entre le FNL et les Forces de Défense Nationale.

(ii) Cibitoke

La province de Cibitoke a connu la crise de 1993 et beaucoup de sites de déplacés avaient été recensés à cette époque. Les effectifs s'étaient accrus suite aux affrontements militaires entre les bandes armées et les troupes gouvernementales depuis 1994. Cependant, avec la signature des accords de cessez-le-feu en 2002, beaucoup de sites ont été démantelés du fait que la plupart des populations sont retournées sur les collines d'origine.

Les rapports de l'administration territoriale ne mentionnent pas l'existence de sites de déplacés, bien que des centaines de ménages ne vivent plus sur leurs propriétés : il s'agit d'une erreur de perception des normes et principes internationalement reconnus relatifs aux personnes déplacées. A cet effet, il a été remarqué qu'en 2004, la province de Cibitoke n'avait pas été reconnue comme possédant des déplacés par les autorités administratives locales. Cependant, l'enquête de 2005 a révélé l'existence des sites des déplacés dans les communes de Rugombo et Buganda. Ceux-ci sont installés le long de la route RN3 reliant Bujumbura à la province de Cibitoke sur les sites de Ndava et Buganda.”

Dynamic of displacement: Gitega, Muramvya, Karuzi and Mwaro Provinces (1993-2005)

- Gitega, Muramvya and Karuzi were particularly affected by the 1993 crisis
- Many people, particularly women and children, fled, while many men were massacred

OCHA 26 May 2005, pp11-12:

« Les trois provinces du Centre à savoir Gitega, Muramvya et Karuzi ont enregistré les situations les plus dramatiques durant la crise de 1993.

Les événements ont touché une bonne partie des populations masculines ; il s'en est suivi des mouvements de déplacement des survivants vers les lieux susceptibles de constituer des abris contre les massacres.

A cette époque, les femmes et les enfants déplacés totalisaient un pourcentage relativement élevé dans les provinces de cette région. »

Dynamic of displacement: Kayanza, Ngozi, Muyinga and Kirundo Provinces (1993-2005)

- In Kayanza, people fled massacres in 1993 and 1994 and found refuge in camps which still exist today
- IDPs in Kayanza then took revenge against host communities by burning their properties, which caused the displacement of the host population
- In Kirundo, people fled massacres in 1993 to safer areas of the province, either in camps or with host families
- Following further attacks, people in Kirundo fled to neighbouring Rwanda and Tanzania, or to Muyinga and Karuzi provinces
- After the 1994 genocide in Rwanda, those who had fled there returned to Burundi and became internally displaced
- Most of the displaced in camps in Ngozi and Muyinga fled in 1993

OCHA 26 May 2005, p12:

« Les déplacements des populations quittant leurs anciennes propriétés dans les provinces de Kayanza, Ngozi, Muyinga et Kirundo ont pris naissance avec la crise de 1993.

(i) Kayanza

Les événements à Kayanza se sont déroulés en trois phases entre octobre 1993 et fin 1994 : Massacres touchant une bonne partie de la population et suivis de l'exode des survivants ; ceux-ci sont en grande partie encore regroupés sur sites à travers toutes les communes de la province ;

Les déplacés sur sites ont réagi en chassant la population restée en place, en incendiant et en détruisant leurs biens. Cette population a fui à son tour en se dispersant partout où elle pouvait se mettre en sécurité et à l'abri des violences ; En 1995, il a été constaté que les déplacés sont restés sur les sites et les dispersés sont rentrés chez eux.

Depuis 1995 jusqu'à maintenant la situation n'a pas beaucoup évolué.

(ii) Kirundo

En province Kirundo, la crise de 1993 a été marquée par des massacres qui touchèrent l'ensemble de la province. Les populations visées se sont déplacées sur sites en majorité à l'intérieur même de la province.

Il y eut ensuite une réaction de vengeance qui provoqua un exode des populations, les unes vers le Rwanda, les autres vers la Tanzanie, et d'autres encore se sont dispersées à l'intérieur des provinces voisines comme Muyinga et Karuzi. Lors du déclenchement du génocide au Rwanda, le 6 avril 1994, ceux qui avaient fui la province vers le Rwanda ont regagné leur province en se rassemblant sur de nouveaux sites de déplacés. La plupart de ceux qui avaient fui leurs collines tout en restant sur le territoire de la province ont opté pour le statu quo : ils sont restés dispersés dans les familles d'accueil en se rassemblant parfois de nouveau sur des emplacements délimités comme les écoles et les bâtiments administratifs sans pour autant être de véritables sites de déplacés.

(iii) Ngozi et Muyinga

En provinces de Ngozi et de Muyinga, la dynamique de déplacement s'est limitée aux événements de 1993 avec des regroupements sur sites. Cependant, des déplacements circonstanciels au passage des bandes armées ont été observés depuis 1996 jusqu'en 2003. »

Dynamic of displacement: Makamba, Bururi, Rutana, Ruyigi and Cankuzo Provinces (1993-2005)

- Displacement in 1993, followed by return due to relative stability in those regions
- Major displacement starting in 1996, due to armed incursions from armed groups based in Tanzania
- Dismantlement of many camps starting end 2003

OCHA 26 May 2005, p13:

« Exceptionnellement, dans les premières années qui ont suivi la crise de 1993, les régions du Sud et de l'Est avaient recouvré une stabilité quelque peu relative. La tension avait été vite désamorcée à tel enseigne que les déplacés ont regagné les collines d'origine. Nous citerons à ce titre les provinces de Bururi, Rutana, Cankuzo, Makamba et dans une moindre mesure la province de Ruyigi exceptée les communes de Butezi et de Butaganzwa.

A partir de 1996, la dynamique de déplacement des populations de la région fut influencée par sa position géographique frontalière. Les bandes armées en provenance de la Tanzanie ont régulièrement commis des incursions qui ont contraint les populations à fuir encore une fois leur foyer pour gagner les sites des déplacés existants ou en constituer d'autres.

Il va donc sans dire que, dans la région, les différents affrontements entre les groupes armés ont provoqué un déplacement de populations sur les anciens et nouveaux sites. On notera à ce sujet qu'en 2004, les 2/3 de la population dans les sites des déplacés étaient concentrés dans les provinces du Sud et de l'Est du pays en particulier en provinces de Makamba, Bururi, Ruyigi et Cankuzo.

Dès fin 2003, le démantèlement des sites des déplacés s'est opéré à un rythme accéléré essentiellement dans les provinces de Makamba, Cankuzo, Rutana et Bururi à la fin de 2003 et en 2004. Enfin, on a observé la coexistence des déplacés et des rapatriés sur des sites notamment en commune de Kayogoro dans la province de Makamba et en commune de Gisuru de la province de Ruyigi. »

Dynamic of displacement: Bujumbura Mairie Province (1993-2005)

- Displacement in 1993, following the looting and destruction of housing
- Revenge actions caused additional displacement
- Many IDPs remain in camps today due to the high cost of housing in the capital

OCHA 26 May 2005, pp13-14:

« La Mairie de Bujumbura a connu des troubles pendant le premier trimestre de 1994, après l'intérieur du pays. Ils ont éclaté d'abord dans les zones de Kinama et Kamenge. Les rescapés ont fui vers les autres zones de la capitale pendant que leurs logements étaient détruits et leurs biens pillés.

En représailles, une action a été enclenchée dans les autres zones de la capitale visant à chasser une partie de la population, à détruire les maisons et à piller les biens des victimes. Au cours de ces opérations, les populations de Kinama et de Cibitoke, deux zones limitrophes, se sont affrontées violemment durant l'année 1994.

Vers la fin de 1994, après plusieurs péripéties, la zone Kinama fut quasiment vidée de sa population en direction de Gatumba.

Quant à la zone Cibitoke, elle a connu deux phénomènes significatifs. D'une part, une partie de ses habitants l'ont fui ; d'autre part une autre partie essentiellement constituée par des réfugiés d'origine Rwandaise est rentrée au Rwanda après la victoire du Front Patriotique Rwandais en juillet 1994.

En définitive, les déplacés de la province de Bujumbura Mairie se sont retrouvés dans les sites de Carama, Kiyange et Buterere.

Aujourd'hui, la Bujumbura mairie accueille des déplacés de l'ensemble du pays. Néanmoins, les sites de déplacés y abritent beaucoup de ménages qui occupent ces lieux pour des raisons purement économiques, en raison du prix élevé de l'immobilier en capitale. »

Dynamic of displacement: Bujumbura Rural Province (1993-2005)

- Major displacement in the province due to its strategic geographic position to protect the city for the Burundian military
- Serves as a base for the rebel group FNL, which continues to cause short term displacement both to camps and to host families

OCHA 26 May 2005, p14:

«La province est meurtrie par dix ans de guerre du fait qu'elle a constitué par sa position géographique le point stratégique de la protection de la ville pour les militaires des FAB. Elle est aussi caractérisée par un relief montagneux qui facilite les affrontements et les replis pour les mouvements armés, provoquant ainsi de grands mouvements de déplacement des populations de courte durée et parfois l'établissement de camps de regroupements forcés. On y observe beaucoup de mouvements de dispersions et de déplacements sur site en raison de l'instabilité de la sécurité.

La province de Bujumbura rural a connu une crise profonde en raison de trois faits majeurs : D'abord, la crise de 1993 qui s'est produite dans la capitale s'est répercutée directement sur la population de la province. Celle-ci en effet se ravitaillait et travaillait la capitale ou y travaillait. Un

incident, comme « la ville morte » à Bujumbura a provoqué d'autres incidents dans les communes de la province qui ont été à l'origine de déplacements. Les fréquentes confrontations entre mouvements armés et forces armées burundaises ont entretenu un climat d'insécurité dans plusieurs communes.

Aujourd'hui, la province reste le fief du mouvement rebelle FNL dont les hostilités avec les nouvelles forces de défense nationale perpétuent le phénomène de déplacements et de dispersions de courte durée. On ne remarque plus actuellement des camps de regroupements forcés des populations du fait qu'ils ont été démantelés par le gouvernement en 1998 sous la pression de la communauté internationale. Des sites de déplacés de 1993 existent encore, à Isale et Mukike notamment. »

Several types of IDP sites described by UNFPA (2003)

- Site for the night: people find shelter in the site during the night
- Dismantled site: population returns home following improvement of security and rehabilitation of infrastructure
- Site transformed into village: former IDPs have settled for good and do not want to be called IDPs anymore
- Other sites: made of very poor people who have not fled the conflict; are not considered as IDPs

UNFPA, Draft 2003:

"Site de nuit :

Dans les zones à insécurité momentanée, certaines populations craignent les assauts nocturnes des bandes armées et se rassemblent le soir sur un site convenu avec les forces de l'ordre et l'administration locale pour se faire protéger. C'est le site de nuit. C'est ce que OCHA-UNICEF-PCAC/PNUD appellent dans leur publication « Identification des problèmes humanitaires et des besoins socio-économiques des ménages dans les sites de déplacés, mai 2002 », au point 2.6. Limites de la recherche, *Site dortoir*.

Ce type de site a été exclu du champ du recensement d'autant plus que ces populations sont chez eux au cours de la journée et ce site n'a pas la structure administrative qu'on rencontre dans les autres sites de déplacés (les organes de l'administration à la base : chef de site et les « NYUMBAKUMI »).

Site démantelé :

Un site de déplacés peut se vider à la suite du retour de la sécurité dans une région donnée et si les infrastructures socio-économiques des ménages des déplacés ont été réhabilitées sur les collines d'origine. Le site démantelé est donc le site de déplacés dont la population est déjà rentrée chez soi.

Site transformé en village :

Il s'agit du site de GAKONI dans la Commune de GITERANYI, Province MUYINGA. Les habitants de ce site dont les anciens déplacés vivent dans des parcelles achetées à la commune. Ils ont même exhibé au superviseur du recensement la quittance communale. Ils ont refusé de se faire recenser comme « déplacés ».

Sites d'une autre nature :

Il s'agit des sites de Buterere, Nyamugari et Kabondo. Le Département de la Population ne les a pas recensés.

Le site de Buterere appelé aussi Nyarumanga a été constitué au départ par quelques familles de gens très pauvres qui fréquentaient le centre nutritionnel de Maramvya malheureusement fermé en 1998. D'autres personnes les ont rejoints progressivement jusqu'à atteindre aujourd'hui près de 341 ménages à la recherche de meilleures conditions de vie. Ils fuyaient la misère mais pas l'insécurité due à la guerre comme les déplacés, d'après le chef de la zone Buterere contacté.

Certes, ces personnes ont besoin de l'aide humanitaire. Ce sont des indigents en réalité. Toutefois, ces personnes ont été exclues du monde des déplacés eu égard à la définition donnée à un déplacé dans le contexte du recensement.

Les sites de Nyamugari, Commune Cendajuru, Province Cankuzo et de Kabondo, Commune Nyanza-lac, Province Makamba, qui figurent sur la liste de référence ont été exclus des statistiques du Département de la Population. En effet, d'après les renseignements recueillis sur le terrain, les populations de ces sites sont normalement des populations dispersées qui se logent chez des amis et connaissances ou dans des maisons louées généralement dans les villes, centres urbains ou à vocation urbaine et dans les centres de négoce en attendant le rétablissement de la sécurité dans leurs collines."

Typology of displacement reflects multi-faceted phenomenon (1993-1998)

- The displaced: ethnic Tutsi who have fled to camps or villages (end 1998: approximately 200,000)
- The regrouped: ethnic Hutu who the Government required to move into regroupment camps (end 1998: approximately 200,000)
- The dispersed: unknown number of mostly ethnic Hutu who have fled from their homes to remote areas scattered throughout the countryside;
- Above categories of displacement no longer used by the humanitarian community as criteria for assistance

Inter-Agency Standing Committee-Working Group February 1999, pp. 69-70:

"Displacement in Burundi is not a static phenomenon, population movements occur in several parts of the country and for number of reasons. Some of these movements are the result of military operations in which people are forced to move, others are organised by local authorities in order to protect specific populations or to bring them nearer to their lands and others are spontaneous, people fleeing from real or perceived dangers. While some displaced have remained uprooted since 1993 others have repeatedly fled as security conditions changed.

Different terms are used to describe the country's uprooted population:

The displaced, indicating ethnic Tutsi who have fled to camps or villages. By the end of 1998 they amount to an approximate 200,000;

The regrouped, indicating ethnic Hutu who the Government required to move into regroupment camps. By the end of 1998 they amount to an approximate 200,000;

The dispersed, indicating an unknown number of mostly ethnic Hutu who have fled from their homes to remote areas scattered throughout the countryside;

These different labels were adopted by the humanitarian community and to some extent reflected the different humanitarian needs of the uprooted populations. In 1998 the humanitarian community called for an abandonment of the practice of calibrating assistance to affected populations on the basis of a series of semantic categories, in favour of more objective criteria for assistance such as vulnerability and capacity for sustainable reinstallation."

United Nations Resident Coordinator System in Burundi 1998, pp. 6-7:

"Conditions in the sites are wretched but things are even worse for an unknown but significant number of so-called dispersed population hiding in the forest and marshes. Terrified of emerging from their hiding places lest they become even easier targets, these people are forced to play a macabre game of hide-and-seek with rival factions that deny them access even to the basic assistance available in the sites. Surviving solely on what they can scavenge, the dispersed are clearly the most vulnerable of all, but also the most difficult for relief workers to locate and to reach. Sometimes, those who manage to break out, end up dying from exhaustion when they finally reach a feeding centre. [...]

Like almost all aspects of the Burundian conflict, population movements are a complex, multi-faceted phenomenon. Up to mid-1998, it was the practice of the humanitarian community to classify different groups on the basis of the circumstances that obliged them to leave their homes and/or the environment to which they have moved. A whole new lexicon of categories emerged: the old- and new-caseload displaced; short- and long term regrouped [...]; dispersed; and newly liberated, to mention just a few. Over the course of the past year, however, humanitarian agencies and their partners have begun to question this practice. In light of the evolution of Government policy as well as of other developments, it is now appropriate to focus on current vulnerability and a continuous objective assessment of needs. However they are described, all affected populations are caught up in a vicious cycle of insecurity, flight, poverty and disease. Assistance should be provided with the view to long-term, viable resettlement, for as many families as possible, as soon as conditions permit."

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Right to life and personal security

Overall human rights record remains poor (2007-2009)

- The overall human rights situation in Burundi remains poor throughout 2008 and 2009
- More than 4,000 cases of human rights violations committed in the first half of 2008
- Human rights abuses are committed both by government security forces and the FNL
- Impunity for perpetrators of human rights violations remains a problem

USDOS, 25 February 2009:

"The government's human rights record remained poor; government security forces continued to commit numerous serious human rights abuses. Members of the army (FDN), the police, and the National Intelligence Service (SNR) were responsible for killings, torture, and beatings of civilians and detainees (including suspected FNL supporters), although there were fewer such reports than in the previous year. There were reports that security forces raped women and girls. Impunity and harsh, life-threatening prison and detention center conditions remained problems, and reports of arbitrary arrest and detention continued. Prolonged pretrial detention, lack of judicial independence and efficiency, and judicial corruption continued. While government security forces, especially the FDN, took some steps to prosecute the perpetrators of human rights abuses, most individuals acted with impunity. The government continued to hold some political prisoners and political detainees. It restricted freedom of assembly and association, especially for political parties, and did not tolerate direct criticism of the president. Security forces continued to harass members of the opposition. Domestic and sexual violence and discrimination against women remained problems. A large number of weapons circulated throughout the general population, and many violent incidents and killings were considered the result of vigilante abuse and personal score-settling.

Despite the cease-fire, abuses by the FNL against civilians continued and occurred primarily in the FNL traditional strongholds of Bujumbura Rural, and the northern provinces of Bubanza, Cibitoke, Muramvya, and Kayanza. These abuses included killings, kidnappings, rapes, theft, extortion, and the use of forced labor."

UN HRC, 15 August 2008:

"In the present report [visits 2 to 8 December 2007 and from 29 June to 12 July 2008], the independent expert notes that the overall human rights situation in Burundi has deteriorated. More than 4,000 cases of human rights violations were committed in the first half of 2008 by law enforcement and administration of provinces. Most violations registered related to cases of ill-treatment, rape, torture of suspects by police officials and violations of due process by police and judicial officials.

[...]

67. The lack of transparency and commitment by the Government of Burundi to fight impunity remains a matter of great concern to the independent expert, who is of the view that the Government is not interested in prosecuting the perpetrators of this heinous massacre. It prefers instead to use dilatory tactics until the international community loses interest in the matter."

High circulation of small arms is security threat (2006-2009)

- The proliferation of arms among the civilian population is most marked in the capital and the provinces bordering the DRC
- FNL combatants handed in only a few weapons
- The level of banditry high also due to proliferation of arms among the civilian population

UNHCR, August 2009:

"The level of banditry in some regions remains high due to the difficult economic situation. The circulation of high numbers of firearms among the civilian population and their easy availability adds to this problem."

IRIN, 28 July 2008:

"Several thousand combatants of the Forces for National Liberation (FNL) have assembled at Rugazi in northwestern Bubanza Province but only a few weapons have been handed in, according to observers.

[...]

That number of weapons, she added, was very small considering the number of combatants supposed to have them. This had prompted the government to question where other arms were being kept.

[...]

FNL combatants have regularly been accused of looting households or fields for supplies. Only combatants in assembly areas are provided with food and until 28 July, the Rugazi site was only hosting 155 combatants." [...]

Small Arms Survey, August 2007, p.2, 4:

"The proliferation of arms among the civilian population is most marked in the capital. The provinces bordering the Democratic Republic of the Congo (DRC) are also particularly badly affected. Bujumbura-Mairie is the province with the greatest variety of arms, particularly handguns, whereas weapons of war represent the bulk of stocks in other parts of the country."

[...]

"The root cause of the sense of insecurity felt by ordinary people varies from one province to another. In Bujumbura-Mairie, crime is a major problem, whereas Bujumbura Rural still has to face the residue of civil war, with sporadic confrontations between the army and the Hutu People's Liberation Party–National Liberation Forces (Palipehutu–FNL)."

UNSC 27 October 2006:

"While there has been some improvement in the security situation, the proliferation of arms among civilians continues to be of great concern. According to a study by the United Nations Development Programme (UNDP), about 100,000 households in the country have small arms and light weapons for self-defence, resulting in a high crime rate, accidents (for example in July, a child was seriously wounded after stepping on a grenade) and more wanton acts of violence by civilians."

Both ruling party and former FNL rebels commit human rights abuses to intimidate and assert power (2009)

- Security still a problem in certain areas of the Bubanza province because of the FNL presence
- The ruling party and the former FNL rebels commit abuses to intimidate their political rivals and assert power

ITEKA, 19 March 2009:

"La situation sécuritaire de la population de certaines localités de la province de Bubanza est loin d'être bonne à cause de la présence des combattants du Fnl de Rwasa Aghaton. Ces combattants sont abandonnés à eux-mêmes alors que le gouvernement devrait leur approvisionner en vivres en attendant qu'ils soient intégrés dans l'armée, dans les corps de sécurité et dans les institutions étatiques comme il a été convenu dans les accords signés entre ce mouvement et le gouvernement du Burundi, mais que ce dernier semble ne pas être pressé pour les mettre en application, comme le constate le Fnl.

[...]

A titre illustratif, des personnes armées de fusils ont attaqué dans la nuit de samedi dans deux ménages et deux homes qui abritent 13 enseignants sur la colline de Nyankarange en commune de Rugazi de la province de Bubanza. Ces bandits ont tout pillé : argent, vivres et autres biens. Les 3 écoles de la localité sont restées fermées depuis ce matin et ces enseignants demandent aux autorités administratives et à la police de renforcer leur sécurité notamment en multipliant des positions de police près de leurs homes. "

UN HRC, 31 August 2009, para.22:

"E. Violations committed by the National Forces of Liberation (FNL)

22. Until its demobilization in April 2009, the FNL set up parallel administrations, mostly in the north-west region, where abuses by them went virtually unchecked. The abuses attributed to the group, which include kidnapping, rape, assault, murder, and robbery, surged during the weeks prior to the April ceasefire, many of which were attacks on Government and CNDD-FDD premises and followers, but also against unrelated civilians and dissidents from its own ranks. With the disarmament of the FNL movement and its accreditation as a political party, any acts of violence by them are now treated as crimes and, in fact, the number of abuses attributed to them has declined. Efforts are under way to ensure their smooth transition to peacetime life, such as through the provision of education and vocational training and the extension of microcredits."

HRW, 3 June 2009:

"Political violence and repression - which continue despite progress in peace talks between the government and the former rebel group, Forces of National Liberation (FNL) - limit peaceful dissent and threaten the integrity of presidential, parliamentary, and local elections scheduled for 2010.

[...]

"The ruling party and the former FNL rebels have been all too ready to commit abuses to intimidate their political rivals and assert power," said Georgette Gagnon, Africa director at Human Rights Watch. "But this is not the road either to meaningful elections or to a decent future for Burundi's people."

[...]

Most victims live in remote rural or marginalized urban areas. Virtually no one has been prosecuted for the abuses, in spite of the government's professed commitment to human rights when it took power in 2005, as well as statements by the FNL, in the course of peace talks, that it would cooperate with judicial investigations or prosecutions.

[...]

Human Rights Watch found that the FNL's recent disarmament and transition from rebel movement to political party is unlikely to end human rights abuses linked to the struggle for political dominance, given that FNL and other opposition members have been the targets of state agents and ruling party activists, even in times of relative peace. At the height of peace talks in April, for example, as the FNL was preparing to disarm, government intelligence agents killed Emmanuel Minyurano, a local elected official belonging to the Democratic Front in Burundi (Front pour la Démocratie au Burundi, FRODEBU), who was also an active FNL supporter.

There have been mass arbitrary arrests of members of other political parties as well, such as the Union for Peace and Development (UPD-Zigamibanga) and the Movement for Solidarity and Democracy (MSD). The government has also taken other steps to suppress political dissent, expelling 22 opposition members from parliament in June 2008 and banning some opposition party meetings.”

Physical security in IDP sites generally not a problem, although evictions with the use of force are reported (2009)

- There are very few substantiated reports of IDPs being harassed or persecuted in their home communities because of their former IDP status
- Almost 600 IDP families evicted forcibly by the police

NGO (anonymous), September 2009:

“IDP physical security is not under particular threat in the sites. The groups insure a relatively high level of security, with also some households in neighbouring communities moving into IDP sites. Some IDPs who returned to their area of origin may encounter attacks from bandits, as is the case for the local community. Insecurity is a general issue all over the country. Although some IDPs claim a fear of persecution in case of return to their place of origin, there are very few substantiated reports of IDPs being harassed or persecuted in their home communities because of their former IDP status.”

USDOS, 25 February 2009:

“On August 19, a number of IDPs were beaten violently by police in an attempt to move them from land given to them by former president Buyoya but redistributed by the current government to others. Almost 600 families were evicted forcibly. The government took no action against police brutality.”

Women and children at risk of being raped, whether displaced or not (2006-2009)

- Rape a result of a number of interrelated factors
- The UN estimates that 19 per cent of Burundian adolescents and women have been victims of sexual violence
- More than 60% of reported rape victims are under the age of 18
- Rebels and military personnel are no longer the primary perpetrators; majority of attacks are committed by members of the victims’ extended family, teachers and household domestic staff, and not by rebels and military personnel
- In 2008, 476 registered cases of rape and sexual violence against children between the ages of 1 and 17 years
- Leading NGO that provides service to SGBV victims received 1,600 victims in 2008
- Perpetrators of GBV often enjoy impunity

UN SC, 26 March 2009, para.22:

“Sexual violence against children continues to be a serious concern, with a vast majority of the reported victims being girls. From January to December 2008, the United Nations Integrated Office in Burundi registered 476 cases of rape and sexual violence against children between the ages of 1 and 17 years, of which 449 were girls and 27 boys. The perpetrators included members of the Burundi National Police, the Burundi National Defence Forces, FNL and alleged FNL dissidents, although a majority of the cases were perpetrated by civilians in an environment of

insecurity and impunity. The recent adoption of the revised Penal Code by the National Assembly and by the Senate with amendments that strengthen the sentencing of perpetrators of sexual violence against children is welcomed.”

UN HRC, 31 August 2009, para. 52:

“Nevertheless, the figures are revealing: the Seruka Centre, a leading non-governmental organization that provides free services to SGVB victims, reported receiving nearly 1,600 victims in 2008. “

CEDAW, 8 April 2008, para.23:

“[...]the Committee is deeply concerned [...] about the impunity which is too often enjoyed by the perpetrators of these acts and the extrajudicial or amicable settlement of cases, including by the administrative authorities, which favour practices such as marriage between the rapist and the victim. The Committee is concerned that women victims of violence, including those who were victims of the armed conflict, do not have sufficient support. The Committee is also alarmed at the persistence of negative

traditional practices with regard to widows. Further, it is seriously concerned about the scale of the phenomenon of domestic violence and the fact that it is not prohibited in the Penal Code or in a separate legislation.

Zicherman, January 2007:

“Rebels and military personnel are no longer the primary perpetrators. In communities where CARE works, survivors of sexual violence report that the majority of attacks are committed by members of their extended family, teachers and household domestic staff. This reflects a general breakdown in social norms, withering of traditional conflict resolution and community sanction mechanisms and absence of functioning state law enforcement and judicial institutions. While the war might have been the trigger for an increase in sexual violence, only when there is genuine peace and increased livelihood security – not just absence of armed conflict – will the level of sexual violence fall significantly.

Their declining socio-economic status also puts women at risk, particularly for female-headed households. Poor women without a husband or older son in the household are perceived as unprotected – and therefore likely targets for sexual violence with little fear of retribution. Local officials have demanded sexual favours in return for food aid and other assistance.³ Poor families are often driven by circumstance to push daughters into early marriages where they are at a high risk of conjugal sexual violence.”

IRC, Programs in Burundi, webpage [accessed 8 October 2009]:

“Rape is prevalent in Burundi, with more than 60% of reported victims being under the age of 18. During Burundi’s lengthy civil war, sexual and gender based violence were used as weapons of war. Democratic elections were held in 2005 and, while many believed that this would lead to an overall decrease in the level of gender based violence, this has unfortunately not been the case.

This is because sexual and gender based violence in Burundi are not only consequences of war and displacement, but rather, the result of a number of interrelated factors including the low socio-economic status of women, a traditional patriarchal society that gives women little power in decision-making, a society that accepts gender-based violence as part of family and community life, and a state that fails to protect women and children and prosecute violators.

Such pre-existing inequalities between men and women have been exacerbated by years of conflict, deepening the marginalization of women and creating a lasting culture of impunity in which sexual crimes go unreported and unpunished. During the conflict, psycho-social and health services for victims of gender based violence steadily deteriorated, contributing to an environment in which gender based violence was prevalent, with little or no support services available to survivors.”

OCHA, 2006, p.13:

“Recent statistics show that 19% of Burundian adolescents and women have been victims of sexual violence.”

Information on previous years:

UNGA, 26 February 2007, Interim report of the independent expert on the situation of human rights in Burundi, Akich Okola, A/HRC/4/5 [pdf]

RI 28 April 2004, Refugee Voices: Burundian internally displaced women vulnerable to sexual exploitation [link below]

AI 24 February 2004, Burundi: Rape - the hidden human rights abuse [link below]

PANA 28 January 2004, Burundi rights group records 961 rape cases in 2003 [Link below]

UNDP November 2004, Burundi: The impact of small arms and armed violence on women, by E. Rackley [link below]

IRIN 25 February 2003, Burundi: Focus on child war victims in Ruyigi [link below]

Burundi is among the world's five worst conflict zones in which to be a woman or child, according to a report of May 2003 by the international NGO Save the Children. [Click here to see the report, 'State of the World's Mothers.'](#)

Displaced children that were recruited in the civil war have now been released (2001-2009)

- After months of negotiations involving the GoB, civil society, UN agencies with the P-FNL, child soldiers have gradually been released
- Throughout 2007/2009, FNL continued to recruit children
- According to a UN report to the UNSC, reports of rape, sexual violence, abduction and detention of children and child recruitment by the FNL increased in 2006/2007
- Up to 14,000 children took part in the war in Burundi

UN News Service, 18 September 2009:

“Secretary-General Ban Ki-moon has lauded the fact that all children associated with armed groups in Burundi have been released and united with their families, but noted that a climate of impunity for violators of children's rights persists.

In April of this year [2009], the last 340 former child soldiers, formerly associated with the Forces Nationales pour la Liberation (FNL) rebel militia, were released and reunited with their families. An additional 40 children associated with the alleged FNL dissidents were then let go in June.”

UN Office of the Special Representative of the Secretary-General for children in armed conflicts, 6 May 2008:

“The Special Representative of the Secretary-General for Children and Armed Conflict, Ms. Coomaraswamy, welcomes the recent release of 232 child soldiers in Burundi. The release is the result of eight months of negotiations involving the government, civil society, UN agencies and other players with a dissident faction of the Palipehutu-National Liberation Front (P-FNL).”

UNSC, 10 September 2009:

"7. During the period under review [September 2007 to June 2009], there was no evidence of recruitment of

children by the Forces nationales de défense (FDN). The Government has shown its commitment to respecting international norms in this regard by becoming a State Party to the Optional Protocol to the Convention on the Rights of the Child on the Involvement of Children in Armed Conflict, which it ratified in June 2008. In conformity with the Optional Protocol, Burundi has made 18 years the minimum age of recruitment in the army's regulations.

8. During the period under review, FNL recruited and used children in its movement. Those recruitments were reported mostly during the heavy clashes between FDN and FNL in April and May 2008. A spike in reported recruitment of children was also witnessed during June 2008, when FNL combatants were gathered in pre-assembly areas.

9. From January 2008 to February 2009, 55 children from 11 to 17 years of age were reportedly recruited by FNL. Most of them were students recruited along with their schoolteachers or, in some cases, by their schoolteachers who had an association with FNL."

UNSC, 28 November 2007:

"The report [September 2006 to August 2007] notes that reports of cases of rape and sexual violence, abduction and detention of children, and child recruitment by the Forces nationales de libération increased during the period. The report emphasizes that, despite improvements in security, a climate of impunity for violators of the rights of children persists in Burundi.[...]"

OCHA, 29 June 2001:

"Up to 14,000 children have taken part in the eight-year civil war in Burundi, according to a report from the 'Coalition to stop the use of child soldiers'. "

SUBSISTENCE NEEDS

General

Sharp deterioration of social indicators following civil war, but IDPs not worse off (2007-2009)

- The situation of IDPs does in most cases not differ significantly from that of the local population
- Life expectancy fell from 51 years in 1993 to less than 42 in 2005
- Maternal mortality and child malnutrition rates are the second highest in Africa
- HIV/AIDS is the second most common cause of mortality among adults

UNHCR, August 2009:

"The situation of IDPs does in most cases not differ significantly from that of the local population, although in a number of cases land ownership disputes have forced IDPs to leave their sites. A systematic survey on IDPs, conducted in 2005 by OCHA, identified regional differences: Most IDPs in the south of the country expressed their willingness to return to their place of origin as soon as they have the means to do so, while those in northern Burundi feared that their return could bring back ethnic tensions. The majority continued to cultivate their own land during the day and spend the night in IDP settlements.

Although UNHCR in Burundi has no specific IDP programmes, IDPs have been included in UNHCR activities benefiting returning refugees, such as shelter and legal assistance programmes."

NGO (anonymous), September 2009:

"Residents of IDP sites have in general access to their land and their area of origin. Hence, their food security is similar as for the residents around the sites, as is the access to water, medical care and sanitation."

NRC, June 2009 (Rapport de visites de terrain sur les sites de déplacés à Bubanza, Gitega et Ngozi):

" D'une manière générale, ces ménages ont de *bonnes relations avec la communauté hôte*. Ainsi, bien que l'on parle encore de « sites de déplacés », ces ménages ont occupé ces sites depuis plus d'une dizaine d'années et au vu des terres qu'ils exploitent dans leur zone d'origine et autres activités génératrices de revenus exercées, ils ne sont plus assistés en tant que personnes déplacées mais sur base d'autres critères de vulnérabilité et au même titre que la communauté hôte. "

World Bank Group, September 2009:

"Burundi is not likely to reach many of the Millennium Development Goals (MDGs) by 2015. Nearly all social indicators have sharply deteriorated as a result of the civil war. Some human indicators have shown improvement since the end of the conflict. However, maternal mortality and child malnutrition rates are the second highest on the continent. HIV/AIDS is taking a heavy toll on communities and is the second most common cause of mortality among adults."

IMF, February 2007:

"3.3. Social trends

73. The social sector was gravely affected by the conflict that prevailed in Burundi in the past 12 years. The situation led to a considerable drop in production in virtually all sectors of the national economy and consequently caused poverty to worsen. Life expectancy at birth fell from 51 years in 1993 to less than 42 in 2005. Per capita incomes are below US\$100, markedly lower than for other African countries and lower than the Sub-Saharan average, estimated at over US\$500."

Food and nutrition

Drought, high population density and rise in food prices cause food shortages and displacement (June 2009)

- Several years of drought lead to increased food insecurity and displacement
- Kirundo and Ruyigi provinces particularly hit by food shortages
- Food security in 2008 aggravated by a significant rise in food prices
- High population density places pressure on land and affects agricultural production

UN Standing Committee on Nutrition, June 2009:

"Food insecurity is becoming increasingly problematic, particularly in some of the country's Northern provinces. Several years of drought have led to chronic food shortages, and in November 2008, acute food shortages led to displacement of nearly 1,400 households. In response, the government, UN agencies and several NGOs implemented both food security and nutrition programs. "

TABLE 4 RESULTS OF NUTRITION SURVEY, KIRUNDO
PROVINCE, BURUNDI, MARCH 2009
(MSF-B, 03/09)

Acute Malnutrition (%) (95% CI)	Severe Acute Malnutrition (%) (95% CI)	Oedema (%)	Under 5 Mortality (/10,000/day) (95% CI)
9.3 (6.7-12.0)	4.0 (2.2-5.7)	3.3	4.5 (2.1-6.9)

UN News Centre, 26 January 2009:

"WFP reported that an estimated 16,500 households in Burundi's northern province of Kirundo faced serious food shortages after crops withered during a drought between September and November last year."

IRIN, 15 January 2009:

"Food shortages were also reported in the eastern Ruyigi province, with the local media saying some 8,000 people had fled to Tanzania in search of food. However, local administration officials played down the food crisis, saying only dozens of people were leaving the province to seek jobs in Tanzania."

IRIN, 10 June 2008:

"For many of Burundi's eight million people, the situation has been aggravated by a recent significant rise in food prices. [...]"

The UN World Food Programme (WFP) estimates that 70 percent of family expenditure in Burundi goes on food. [...]"

[...] 91 percent of Burundi's population depends on subsistence farming, according to the UN. The country, which has witnessed conflict for the last one and half decades, also has the second highest population density in Africa. This has placed pressure on land and affected agricultural production in one of the poorest countries in the world.

[...]"

Apart from land, food availability in Burundi has been affected by market-related problems. A 2006 assessment by FAO, WFP and UNHCR cited poorly integrated markets due to high transaction costs, poor infrastructure and insecurity."

Burundi heavily dependent on food aid (January 2009)

- WFP distributes thousands of tons of food to some of the most vulnerable in Burundi facing severe hunger
- Food aid cannot keep up with the increasing demand due to the return of refugees/IDPs, increased operational costs, global food crisis

UN News Centre, 26 January 2009:

"The United Nations World Food Programme (WFP) announced today that it has distributed thousands of tons of food to some of the most vulnerable in Burundi facing severe hunger, including almost 200,000 schoolchildren in the small East African country.

WFP distributed some 652 tons of food earlier this month to help the most affected households, as well as 719 tons of food to schools in the provinces of Ngozi, Kirundo, Muyinga, Cankuzo, Karuzi and Ruyigi, benefiting some 187,561 students.

The UN Food and Agriculture Organization (FAO) has also provided seeds and tools to households in Kirundo and will distribute cassava cuttings, a seasonal crop resilient to the erratic climate."

Franciscans International, June 2008:

"Assistance alimentaire et autosuffisance alimentaire

17. Le Burundi dépend très largement de la distribution de la nourriture par les partenaires internationaux, notamment le Programme Alimentaire Mondial (PAM) et les ONG. Face au nombreux défis tels que le retour des réfugiés et des expulsés de Tanzanie, l'augmentation des coûts opérationnels pour le PAM, l'insuffisance du stock actuel et la nécessité d'environ 9000 tonnes de produits supplémentaires et de plus de 8,5 de dollars pour satisfaire la demande en croissance exponentielle dans un contexte de crise alimentaire mondiale depuis avril 2008, les partenaires internationaux ne peuvent pas maintenir le rythme de l'assistance humanitaire. Une politique nationale de sécurité alimentaire sur le long terme basé sur les besoins et capacités nationales doit être mis en place pour atteindre la sécurité alimentaire. Pour atteindre l'Objectif n°1 des OMD [Objectifs du Millénaire pour le Développement] qui est la Réduction de l'extrême pauvreté et de la faim, le gouvernement doit passer du discours aux actes. "

600,000 Burundians need food aid (2008)

- Since 1988 population has grown 33 percent from six million to more than eight million, while the average annual food production per capita has dropped by 41 percent
- However, significant improvement in the rate of chronic malnutrition and underweight children

IRIN, 7 March 2008:

"Burundi's food security remains precarious, despite a slight improvement in production during the latest harvest season, with an estimated 600,000 people needing food aid, according to a recent assessment. [...]"

"With a population growth of 33 percent from six million to more than eight million since 1988, the average annual [food] production per capita has dropped by 41 percent," stated the report, which was released on 5 March [2008]. "Analysed by type of crop, the decline was 28 percent for cereals, 74 percent for pulses, 29 percent for roots and tubers, and 15 percent for bananas and plantains."

The decline in food output meant that 34 percent of the population consumed only 1,400 kilocalories per day, and half of all households had inadequate consumption in terms of quality, quantity and diversity.

Even at harvest times, household dependence on bought food remained as high as 40 percent. Although an estimated 90 percent of the population derived its livelihood from agriculture, the rate of chronic malnutrition was still high compared with other sub-Saharan African countries, according to the report.

The report noted that preliminary results of a study by UNICEF and the Ministry of Health in August 2007 had shown a significant improvement in the rate of chronic malnutrition and underweight children, which was 46.0 percent and 35.2 percent respectively in 2007, down from 52.5 percent and 39.2 percent in 2005."

Health

Main obstacle to health care for IDPs is financial (January 2008)

UNHCR, 1 January 2008:

"Santé

Ce chapitre ouvre sur une conclusion valable également pour le suivant, c'est-à-dire qu'aucune discrimination ne grève la faculté qu'ont les IDP de se faire soigner. La seule limite est financière et non statutaire. Argenté, on est soigné, que l'on soit IDP ou pas. Sinon, en cas de maladie, IDP ou pas toujours, autant se recommander directement à la nature, ses herbes, ses feuilles, ses racines, et à la science de ceux qui s'y entendent pour en tirer quelques vertus thérapeutiques, réelles ou supposées.

Quant aux attestations d'indigence, elles ne sont délivrées aux IDP qu'autant qu'ils entrent dans l'une des catégories de vulnérables nécessitant cette assistance. Mais ils ne représentent que l'une de ces catégories. De ce fait, tous n'en ont pas. Par ailleurs, tous les centres de santé ne les acceptent pas, préférant au système de recouvrement rétroactif, un paiement immédiat en numéraire."

Survey says that IDPs in the South have similar access to water than resident population (January 2008)

- Some of the IDPs and of the resident population both have to walk long distances to reach drinkable water, or can only access water of poor quality

UNHCR, 1 January 2008

"Si le standard consiste en une adduction d'eau potable et courante dans chaque domicile de IDP, alors aucun foyer n'atteint la norme. Si maintenant le standard consiste à se satisfaire de ce que les IDP disposent du même accès à l'eau que les populations résidentes, alors partout la norme est atteinte. Seulement, dans certains endroits, cette norme se situe très en dessous des principes sanitaires les plus bas. En effet, il se rencontre quelques circonstances où IDP et résidents se partagent le même approvisionnement en une eau qui, si elle n'est pas impropre à la consommation, se situe à une distance si éloignée des habitations qu'elle peut être qualifiée d'inaccessible eu égard aux critères d'évaluation.

Pourtant, il est fréquent de constater que des aménagements ont été entrepris ici et là, pour permettre une meilleure disponibilité de l'eau. Mais, que ces structures aient été conçues à la hâte, ou qu'elles n'aient pas reçu l'entretien adéquat pour perdurer, toujours est-il qu'en bien des lieux ces systèmes hydrauliques présentent des défauts qui privent les populations des services pour lesquels ils avaient été élaborés."

Precarious Health conditions in Burundi (2006)

- Burundi is one of the countries where health indicators continue to feature as among the worst in the world
- Mortality rate remains as high as 47% for children under 5 years
- Free medical care for Burundian mothers and children was intended to improve their lives; instead it has cripple the nation's health system

UN, 30 November 2006:

"Burundi is one of the countries where health indicators continue to feature as among the worst in the world. Malaria remains a primary public health concern. Despite the significant drop in costs further to the implementation of the National Protocol, the mortality rate remains as high as 47% for children under 5 years. Moreover, localised cholera and meningitis epidemics are certain to occur at the known intervals with a couple of thousand cases to be tested and possibly treated. Infections often are fatal because medical staff is inadequately trained, due to the absence of efficient control systems, poor performance of epidemiological surveillance systems, or under-equipped laboratories."

IRIN, 9 June 2006:

"A new policy of free medical care for Burundian mothers and children was intended to improve their lives; instead it has cripple the nation's health system.

Public hospitals in Burundi have recorded double, sometimes triple, the number of patients since a presidential directive for free paediatric and maternal health services was implemented on 1 May [2006]. Overcrowded wards, a shortage of doctors and other medical staff, as well as

patients' inability to afford prescribed medications are some of the challenges health officials are now facing."

OCHA, 2006, p7:

"In the area of primary healthcare, the major concerns during the year were related to the continuous limited access to services, the poor quality of service delivery and the government's reduced capacities for surveillance and early warning."

NRC, 1 September 2005, p32:

"According to survey conducted in Makamba province in 2005, The local population, IDPs, returning IDPs and repatriated refugees lack access to health care for the following reasons:

la rareté des centres de santé et des postes de soins,

- le coût élevé des services de soins pour des personnes majoritairement sans moyens financiers,

- la distance trop importante à parcourir pour arriver au centre de santé le plus proche

Cette situation découle de l'organisation structurelle de tout le secteur santé burundais. La réalité est que la capacité de réponses aux attentes d'ordre médicales ou autres, est très limitée.

La distance à parcourir pour arriver au centre de santé et le pourcentage de ménages éloignés de plus de 5 km des centres de santé, permettent et de façon déterminante d'expliciter pour certaines zones, l'importance du non accès aux soins de santé."

See also:

ITEKA, 16 Oct 2006

Burundi : L'épidémie de choléra refait surface dans certains quartiers de la Mairie de Bujumbura [[Internet](#)]

MSF June 2006, Evaluation de l'accès financier aux soins pour les populations de la province de Karuzi : des résultats mitigés [[Internet](#)]

For health indicators in Burundi, please see

WHO, December 2005, **Health Action in Crises**, Burundi [[Internet](#)]

See also WHO, August 2005, Update on Health and Humanitarian Situation in Burundi [[Internet](#)]

Close to 70 percent of IDP camps have a health facility in or close to the camp (August 2004)

- Lowest access to health facilities for IDPs are in Cankuzo and Bururi Provinces
- On average, 91% of IDP sites have a water point located in or within close proximity of the site, with lowest rates in Ruyigi, Rutana and Karuzi
- 84% of IDP households report having a latrine in the site

OCHA, August 2004, p16:

"On average, 68% of IDP sites have a health facility (hospital / health centre / dispensary) located in or within close proximity of the site. When results are disaggregated by province, wide variations emerge. The lowest coverage rate is in Cankuzo Province, where only 20% of the IDP sites have a health facility within close proximity; in Bururi Province, the rate is also low, at 33%. Conversely, in Bujumbura Mairie and the provinces of Mwaro, Ngozi, Rutana and Ruyigi, 100% of the IDP sites have a health facility within close proximity. Results of focus group discussions

reveal the difficulties that IDPs face in accessing health services, primarily due to inability to pay for consultation fees and medicines, despite having a facility located nearby.

On average, 91% of IDP sites have a water point located in or within close proximity of the site. Again, differences are noted across provinces, with the lowest coverage rates found in the provinces of Ruyigi (60%), Rutana (67%) and Karuzi (78%). In many provinces, 100% of IDP sites are served by a water point.

On average, 84% of IDP households report having a latrine in the site. Little variation exists across provinces. The survey teams did not inspect the type / condition of individual latrines, but it was observed that many latrines in IDP sites are of the traditional type (simple hole in the ground, with superstructure made of straw / grass).

In general, the availability and level of basic services and infrastructure in the sites does not appear to be a major factor influencing the decision of IDP households to return to their place of origin or remain in the site. Half of the participants in the focus groups believe that the basic services in the site are better than in their place of origin, but there was no difference in response between households that want to return to their place of origin and households that want to remain definitively in the site. This response is not surprising, given the fact that most IDPs are displaced within close proximity to their place of origin and are in many cases accessing the same facilities and services as they were prior to their displacement. Most IDPs continue to complain that the level of basic services in the sites is not adequate, particularly health care. A notable exception is found among child heads of household, most of which believe that the basic services in the site are better than in their place of origin."

Shelter and other needs

Housing in IDP sites is usually better than community's (September 2009)

Communication with NGO (anonymous), 26 September 2009:

"The state of IDP housing is generally better than where residents are living, mainly because IDPs have benefitted from specific assistance during the war. Meanwhile, their former houses are no longer there. Their plot may still be available for farming but IDPs no longer have a house/hut there."

NGO (anonymous), September 2009:

"Currently, IDP sites do not benefit from any particular assistance based on their specific status of IDP. The sites are integrated within the community and both are facing same issues relating to food insecurity and access to other basic necessities."

Most of IDP sites in the South were organised between 1996 and 2000 (2008)

- In southern provinces, people still in sites include those who fled armed clashes between 1993 and 2000; to a lesser extent those who fled due to natural disasters (floods and drought) in 2005-2006, returnees from Tanzania and Batwa communities who were then able to exploit land

UNHCR, 1 January 2008:

"C'est ainsi qu'à quelques exceptions près datant de 1993, la plupart des sites encore fréquentés à l'heure actuelle se sont ouverts ou ont été organisés entre 1996 et 2000. Correspondant à cette époque où les rivalités entre bandes armées et gente militaire prenaient de l'ampleur, le climat d'insécurité chronique qui s'ensuivit provoqua de nombreux déplacements dans cette région. Et plutôt que de concerner une seule communauté, comme jadis ailleurs dans le pays, force est de constater que se furent bien toutes les composantes ethniques du Burundi qui cherchèrent dans ce mouvement migratoire une alternative à la menace que faisait peser ces affrontements.

Se regroupant alors spontanément autour de positions de sécurité, ces populations furent également l'objet de regroupements, ou de fragmentations, organisés par les autorités. Cette intervention administrative avait tantôt pour but de réunir les IDP de plusieurs sites spontanés sur un seul périmètre plus sécurisé, ou plus proche de leurs propriétés, tantôt à l'inverse, de fractionner certains sites trop importants en de plus modestes entités.

Occupant ainsi le domaine public, des propriétés privées ou le patrimoine foncier paroissial, ces sites proposèrent à leurs résidents des havres aux caractéristiques très variables.

Reste qu'à partir de la fin de l'année 2003, et dans un mouvement gagnant en amplitude en 2004 et 2005, nombre de ces sites perdirent de leur importance démographique au point, pour beaucoup, d'être totalement déserté et démantelé.[...]

En définitive, dans les sites encore fréquentés, se côtoient désormais :

- Les IDP de « 1ère génération », ceux qui ont fui leurs localités entre 1993 et 2000 pour éviter d'être pris à partie dans les affrontements armés qui ensanglantèrent le pays. Provenant des collines et des communes voisines, ou de toutes les autres provinces du Burundi, même des plus éloignées, cette composante de la population des IDP représente encore la frange la plus importante en termes numériques.
- Les IDP de « 2ème génération », ceux pour qui les conditions climatiques (sécheresse et inondations) observées en 2005 et 2006 eurent un impact si désastreux qu'elles ne leur laissèrent pas d'autre alternative que le déplacement.
- Des rapatriés revenus de Tanzanie ou d'ailleurs et qui, profitant du départ des IDP, s'installèrent dans les sites en attendant de retrouver la jouissance de leurs biens.
- Quelques communautés batwa qui profitèrent de ce même mouvement de recul de fréquentation des sites pour accéder à la possibilité d'exploiter un lopin de terre."

Many IDPs live in small houses built with international assistance (January 2008)

UNHCR, 1 January 2008:

"Concernant tout d'abord, la configuration architecturale des maisons, elle varie selon qu'une assistance a été déployée ou non en faveur des IDP. Ceux qui ont bénéficié d'un programme d'aide au logement résident souvent dans des maisons aux dimensions uniformes. Que les bâtisses aient été entièrement construites ou que les IDP n'aient perçu que le complément standard en matériau pour l'achever (clous, tôles, bois de charpente et huisserie), elles ont toutes les mêmes dimensions (5x7 mètres). A l'inverse, pour tous ceux qui ne durent qu'à leur seule capacité à se loger le fait de disposer d'un abri, les cas de figure varient beaucoup plus. Certains ont monté leur propre maison. Les dimensions de celles-ci évoluent alors en fonction de la manière dont a été résolue l'équation Taille familiale / Revenu du ménage. D'autres ont réhabilité des édifices menaçant ruine. D'autres encore ont opté pour le système de la location. Enfin, quelques derniers, qui ont goûté à cet esprit de solidarité qui anime ceux pour lesquels s'en désunir reviendrait à compromettre leur propre existence, ont pu bénéficier de la générosité communale ou familiale pour être hébergés."

Pressing need of housing assistance for IDPs encouraged to return to their collines of origin (2006)

- Returning IDPs in Gitega Province and in Bujumbura Rural are reported to have pressing shelter needs

OCHA, 17 September 2006:

“The Government project APRS supported by GTZ has completed identification of beneficiaries for its housing project which plans to build 512 houses in Gitega commune (Gitega province). Identified persons include returnees, displaced persons, former combatants and certain vulnerable persons. Further to the decision by the Government to undertake major construction work at Itankoma, displaced persons were encouraged to return to their collines of origin. Whilst all of the approximately 400 IDPs had adhered to the call, only 160 were considered and will be assisted. There is a pressing need of assistance for the remaining group of displaced persons in terms of housing since they have to leave the location.”

OCHA, 23 April 2006:

“Internally displaced persons (IDPs) who had fled insecurity more than ten years ago and who returned to their homes in Nyabunyegeri, Tenga, Gahahe, Gatunguru and Gasenyi in Mutimbuzi commune (Bujumbura Rural) are facing difficulties with their housing. They are in urgent need of roofing material after having reconstructed the walls of their former houses which had been destroyed during the conflict. The same situation prevails in Isale commune where around 200 returning families are staying in the unfinished structures or their former homes.”

OCHA, 12 December 2006:

“Many former IDP sites now host other categories of people, including returning refugees unable to immediately live on their land (house to be rebuilt).”

Women and children

Burundian women and children face food insecurity, malnutrition and difficult health situation (January 2009)

- Women and children lack access to basic services
- Children aged 1-5 years, young people and pregnant/lactating women are at high risk of malnutrition
- Malaria is the main cause of mortality and morbidity of women and children

UNICEF, 1 January 2009:

“[...] the lack of access of children and women to basic services will be further compounded. Since the beginning of the civil war in 1993, food insecurity has persisted and in 2007 the food deficit was estimated at 38 per cent, limiting the coverage of energy needs to only 75 per cent. The most vulnerable are the children aged 12-59 months who are at high risk of malnutrition [...]. Young people and pregnant/lactating women are also vulnerable. [...] Even if the average rate remains below the threshold rate (10 per cent) for acute malnutrition, levels in certain provinces do exceed that alert rate and Burundi does remain amongst the high-risk countries threatened by food insecurity and malnutrition. In addition, Burundi periodically faces waterborne epidemics, such as cholera and dysentery, affecting mainly children and women. Malaria is endemic in Burundi and constitutes the main cause of mortality and morbidity to both groups. It is at the

origin of 50 per cent of consultations, 40 per cent of which to children under age five. Malaria is also responsible of nearly 50 per cent deaths in children aged 1-59 months."

Core Country Data	
Population under 18 (thousands)	4,383
U5 mortality rate	180
Infant mortality rate	108
Maternal mortality ratio (1980–1999)*	615
Primary school enrolment ratio**	72.4
Primary school enrolment ratio for girls**	71.1
% U1 fully immunized (DPT3)	74
% population using improved drinking-water sources	71
Estimated adult HIV prevalence rate (aged 15–49), 2007	2.0
% U5 suffering moderate and severe underweight/stunting	39/53

Sources: The State of the World's Children 2002. * Burundi Multiple Indicator Survey (MICS) 2003, ** National Statistics of the Ministry of Education and Scientific Research 2005/06

Franciscans International, June 2008, para.18:

Malnutrition

"Une malnutrition aiguë toucherait plus de la moitié des enfants de moins de 5 ans au Burundi. Selon le Projet National de Lutte contre les Maladies Transmissibles et Carencielles (LMTC), 7,5% des enfants de cette tranche d'âge souffrirait d'une malnutrition chronique ; ce qui entraîne des retards de croissance chez environ 40 % des enfants de moins de cinq ans. La malnutrition est présente à la fois en milieu urbain et en zone rural."

Precarious situation of displaced women and children (1998-2002)

- Burundian women have been seriously affected by the war
- They constitute the majority of those found at the sites of displaced persons Other problems affecting women include childbirth-related problems, abortions, anaemia, lack of vaccination coverage and access to health care, exposure to AIDS and other sexually transmissible diseases
- 16 per cent of pregnant girls aged 15-19 years are HIV positive
- IDP women are particularly at risk to be infected by HIV/AIDS (2002)
- Reports that displaced women and children suffer from severe depression

UN GA, 13 October 1998, paras. 51-54:

"According to the last census of August 1990, women make up 51.3 per cent of the population of Burundi, and they are essentially located in rural areas where 93.7 per cent of the total population live. The women work on average 18 hours a day for their families, half at home and half in the fields.[...]

Burundian women have been seriously affected by the crisis and the civil war. They constitute the majority of those found at the sites of displaced persons and regrouped populations and are the

sole heads of their households. Before the crisis, women formed a large part of the workforce in rural areas which underwent a sharp decline during the war.

[...]

Women at the sites are also affected by other health problems, including those relating to childbirth, abortions, anaemia and the lack of vaccination coverage and access to health care, as well as exposure to AIDS and other sexually transmissible diseases. The living conditions of women and children have therefore become highly precarious. In Burundi, women represented 50.6 per cent of the registered cases of persons tested as seropositive during surveys in 1995. The number of orphans with AIDS was estimated at 94,000 in 1997."

OCHA, November 2002, p. 26:

"With almost 80% of all women delivering their children in the home, and without qualified assistance, reproductive health (RH) remains in dire need of the most basic support nationwide. Privatisation, and cost-recovery measures within the health sector have led to a rise in the cost of health care, and act as a significant financial deterrent for families. Hygiene conditions, particularly in IDP sites are deplorable and lack basic material and technical equipment, almost entirely ill-equipped to handle minor complications or emergencies."

United Nations Resident Coordinator System in Burundi, 1998, p. 6:

"[T]he experience of living in a crowded site is both disorienting and degrading for people accustomed to living in relative seclusion and to providing for their own needs. The utter lack of privacy is one of the most difficult and degrading aspects of site life. A UNFPA study carried out in 1998 emphasizes the humiliation women suffer when forced to sleep in the same small room as the male members of their families. As one displaced woman commented, 'Sharing the room with your son or your son-in-law is simply not done. I am ashamed.'"

HRW, June 2000, "Life in the camps":

"As the primary care-givers responsible for the welfare of their children, some women have apparently suffered severe emotional and mental stress from watching them suffer. One medical worker with an international humanitarian agency assisting the malnourished in Bujumbura-rural has observed symptoms of severe depression in the women whom she treats or whose children she treats. These women appear to have given up caring about their own health or that of their children and sit for hours staring vacantly off into the distance."

CHR, 7 March 2002, para.70:

"The rise in the infection rates and the number of AIDS patients is due to the continuing war, poverty, and a shortage of training and information. Women, particularly those living among displaced groups and in highly unsafe areas, are the most at risk."

ACCESS TO EDUCATION

General

Free primary education for IDPs and other children since 2005 (2009)

Prior to elections in 2005, education in Burundi was restricted to a few. In addition to challenges of economic instability, conflict recovery, malnutrition, diseases and child abuse, school fees were a serious barrier keeping children out of school (UNICEF, 7 September 2005; Mapsofworld, accessed 8 October 2009). In 2005 the newly elected government abolished primary school fees and thus made a children's right to free education at a primary level its essential policy (OCHA, 2006). Consequently, there was a 50 per cent increase of enrolment for first grade in all provinces in 2005/2006. The doubled enrolment brought about a massive need for qualified teachers, books, teaching manuals, classrooms, water supplies for schools and separate latrines for pupils. It also increased the existing challenges of retaining the children in school, particularly girls (UNICEF, 2006). Thus, in 2006 approximately 550,000 children between 7-12 years of age still did not attend school and an estimated 150,000 children could not be integrated into the first year of school (OCHA, 2006; UN, 30 November 2006).

The latest reports indicate that while children still have limited access to education due to the lack of space in classes and distances to reach schools, this is not linked to their displacement (UNHCR, 1 January 2008). In 2008 an NGO visited sites in Bubanza, Gitega and Ngozi provinces and reported that IDPs' access to education seemed to be equal to the one of local communities. The NGO could not verify media reports claiming that some IDPs in Gitega province faced difficulties in obtaining administrative documents for a free access to school. This was allegedly done in order to push the IDPs to return to their area of origin (NGO (anonymous), September 2009).

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

General

War and population expansion led to national impoverishment (2009)

- The civil war caused poverty to nearly double: the number of poor below the poverty line increased from 35 percent in 1993 to 67 percent in 2006
- Rural poverty is estimated to be twice that of urban areas
- Poverty most severely affects households working in agriculture
- Household size, disabilities, unemployment, and the status of having been a refugee, have a negative correlation with household consumption and are consequently factors that aggravate poverty
- High population growth could hamper the increase of living standards in coming years

IMF, March 2009, p. 20, 22:

"65. The civil war that broke out in Burundi in 1993 plunged the country into armed combat, chronic poverty, social fracture, and food insecurity. The fifteen years of conflict just concluded have cost the lives of over 300,000 people and forced another 1.2 million (16 percent of the population) to flee their homes. Combined with the brutal recession triggered by the war, the political and economic embargo of 1996-1999 led to a decade of unprecedented national impoverishment. Per capita GDP fell by 33 percent, and poverty grew worse and worse.

66. The most recent estimate of the incidence of poverty in Burundi indicates that nearly 67 percent of the population lives below the level of consumption that ensures the minimum vital to the individual. Household purchasing power is inexorably exhausted and the coverage of basic needs is becoming increasingly problematical for those who are most vulnerable. The prices of basic foodstuffs are spiking in an unprecedented way.[...]

Characteristics of the poor

71. The estimates of income poverty leave little doubt about the persistent and widespread nature of poverty in Burundi. While sizable differences do exist, poverty affects households from almost every sector of activity.

Table 2: Poverty rate by occupation

Occupation	Population		Poverty (percent)
	Number	Percent	
Food crops	3,166,170	39.58	72.50
Export crops	638,826	7.86	68.18
Livestock and other agriculture	1,686,876	20.53	68.37
Informal private sector wage earners	139,935	1.47	22.66
Unskilled informal private sector wage earners	650,352	7.62	57.06
Informal sector—services	251,839	2.94	56.88
Other informal sector	264,634	3.03	64.43
Skilled public sector wage earners	149,349	1.52	11.34
Unskilled public sector wage earners	116,010	1.25	52.33
Not actively employed	946,440	14.19	71.54
Total	8,010,431	100.00	66.86

Source: CWIQ-2006.

72. Except in the case of the households of skilled wage earners in the informal private sector or public sector (registering 23 percent and 11 percent, respectively), it is important to note that there are many sectors of activity in which over half the population can be regarded as poor. For example, 73 percent of the households working in the food crop sector live below the poverty line.

73. Apart from the sector of activity of the head of household, poverty has also been correlated with a number of other characteristics (Table 37). For example, the higher the level of education of the head of household, the greater the per capita consumption of that household. Conversely, household size, disabilities, unemployment, and the status of having been a refugee, have a negative correlation with household consumption and are consequently factors that aggravate poverty.”

World Bank Group, September 2009:

“Economic performance has improved, but real GDP growth still averaged only about 3 percent from 2001-2008. Economic growth remains highly volatile due to its dependence on the widely fluctuating agricultural sector, whose volatility is largely due to climatic shocks in recent years. The 2005 drought led real GDP to grow by only 0.9 percentage points, it bounced back strongly in 2006 to 5.1 percent and slightly decelerated to 3.6 percent in 2007. In 2008, despite the unprecedented increase in fuel and food prices, real GDP growth is estimated to be 4.5 percent.

Per capita income fell by almost 40 percent during the war, from US\$180 in 1993 to US\$110 in 2007. Burundi's annual population growth, at an estimated 3.8 percent in 2007, is among the highest in Sub-Saharan Africa. This suggests that it will be difficult to increase living standards in coming years without a slow-down in population growth or a significant acceleration of the annual GDP growth rate. Although Burundi has made some progress in the past few years, GDP growth rates of 8 percent over the next four years will be needed for the country to reach its pre-war level of GNI per capita by 2012.

[...]

The recent war caused poverty to nearly double. The number of poor below the poverty line increased from 35 percent in 1993 to 67 percent in 2006. Rural poverty is estimated to be twice that of urban areas."

Several factors explain why IDP's self-reliance is undermined (2005)

- Theft of crops reinforces food insecurity and conflicts
- Large-scale destruction of livestock also causes food insecurity
- Poor access to credit
- Land is less and less fertile due to demographic pressure

OCHA, 26 May 2005, pp.31-32:

According to National IDP Survey in 2005, "Les besoins alimentaires

La distance entre les sites et les propriétés favorise les vols dans les champs ('vol sur pied'), en témoigne la fréquence de ces cas répertoriés aux chefs-lieux des communes. Cette situation a pour conséquence de renforcer la précarité alimentaire et l'entretien des rancoeurs ou méfiances.

Il ressort des entretiens avec les déplacés qu'une part importante de leur cheptel a été détruite pendant la crise et que cette situation a eu pour conséquence un appauvrissement alimentaire en protéines animales et une dégradation de la fertilité de leurs sols. Ainsi, ils estiment que le développement de l'élevage, en particulier caprin ou bovin, intégré dans leurs exploitations agricoles permettrait de restaurer à la fois l'équilibre nutritionnel et la fertilité des sols par l'apport de fumier. Ce besoin est bien entendu général sur l'ensemble du territoire.

En général, les besoins des déplacés pour renforcer leur sécurité alimentaire s'expriment en termes d'intrants agricoles. Les déplacés pensent que l'augmentation de leur production alimentaire doit passer par l'utilisation d'intrants comme les engrais et les semences de variétés performantes.

Néanmoins une amélioration durable de la sécurité alimentaire des ménages doit passer soit un agrandissement des parcelles cultivées, soit par une diversification des sources de revenus.

L'accès à la monnaie ou au crédit

Dans l'ensemble, l'économie rurale est démonétisée. Néanmoins il a été constaté que dans les milieux de vie des déplacés, **les taux usuraires sont courants** et les contrats léonins. Par exemple, une mesure de haricot empruntée au début de la période de plantation, doit être remboursée avec deux mesures et demie lors de la récolte. Pour les crédits à montants élevés, la terre est hypothéquée. Pour rendre plus difficile le remboursement du prêt, le créancier refuse tout paiement partiel. A l'expiration d'une certaine période, le créancier est en droit de « racheter » la terre à un « prix » fixé d'avance. Dans tous les cas, il est extrêmement difficile pour les déplacés de se dégager d'une situation de surendettement.

Devant cet état de faits, **un secteur financier intermédiaire**, de type micro crédit, trouve toute sa justification. Le besoin de crédit se fait sentir pour lancer des activités génératrices de revenu.

Les activités extra agricoles

La terre devient de plus en plus rare suite à la pression démographique et de moins en moins fertile. Selon les déplacés sur sites, les microprojets artisanaux pourraient contribuer à l'augmentation de leurs revenus et à la création d'emplois extra agricoles, indispensables pour alléger les pressions foncières."

For study on coping strategies in regroupment camps, see Boutin & Nkurunziza, 2001, Burundi: Developing Strategies for Self-Reliance [Link below]

Agriculture is principal source of revenue for close to 90 percent of the population, including IDPs (August 2009)

- It is essential to get agriculture back on its feet since most of the people depend on farming
- Although most IDPs continue to engage in agricultural activity on their native land, the yields are low and do not meet daily food needs

FAO, 20 January 2009:

"Getting agriculture back on its feet is a prime challenge for Burundi, a country struggling to heal the scars of more than a decade of civil war and where most people depend on farming.

[...]

'Agriculture helps people to live,' he says. 'What you have in your pocket when you return from exile doesn't last long, but when you have a piece of land where you've grown something, you can always survive.'

[...]

In the capital Bujumbura, Eric Donni of the European Commission's Delegation explains that rural development is at the heart of the EU's involvement in Burundi. 'It is obvious that agriculture is crucial in a country where 90 percent of the population depends on it,' he says, adding that the EU considers FAO, with its technical expertise, as a natural partner.

With EU support, FAO engages in a wide array of activities, from the dissemination of agricultural know-how to crop diversification and the distribution of seeds and tools, all of them carried out in partnership with local authorities and civil society in order to reinforce Burundi's slowly healing social structures.

[...]

Overall, some 100 000 vulnerable smallholders were reached in 2008. According to FAO's Jean-Alexandre Scaglia rehabilitating Burundi's agriculture holds out great significance: 'It helps consolidate Burundi's peace process,' he says."

OCHA, August 2004, p.14:

"Not surprisingly, the survey [on IDPs undertaken by OCHA and the Burundian Government] results indicate that 89% of the IDP population cites agriculture as the principal source of revenue. Very few households respond that commerce or another activity generates additional household income. In the focus group discussions, almost all participants replied that their own harvest was the primary (or only) source of their daily food.

As explained above, although most IDPs continue to engage in agricultural activity on their native land, the yields are low and do not meet daily food needs. Many households supplement their subsistence by working for others, paid in either food or money, or through charity from others living in the site, church groups, international NGOs or WFP food aid.

Most participants in the focus groups claim that their ability to generate income in the site is far less than their ability to do so before they were displaced. Some IDP households – most often headed by widows or orphans – do not have any source of economic livelihood and remain entirely dependent on external assistance and support networks that exist within the site where they currently reside."

DOCUMENTATION NEEDS AND CITIZENSHIP

General

Many IDPs do not have identity documents due to prohibitive cost (January 2008)

UNHCR, 1 January 2008:

« Concernant les pièces d'identité, le constat sera bref : à l'identique des populations résidentes, les IDP ne justifient que d'une possession partielle de ces documents. Certains en ont, d'autres pas, et les causes de cette disparité reposent surtout sur l'absence de priorité donnée par les foyers les plus économiquement diminués à l'investissement qu'il faut consentir pour en obtenir.

En la matière, et sans que cela ne représente un effort financier préjudiciable, il pourrait être suggéré d'élargir les termes de référence du projet « Cartes Nationales d'Identité » déployé en faveur des rapatriés pour en faire également bénéficier les IDP. »

Returning IDPs and refugees lack identity cards (2005)

- Reasons given are financial as well as administrative constraints
- It is especially the case for women heads of household
- Many returning IDPs also do not see the usefulness of such documents
- IDPs lack the means to obtain identity cards necessary to participate in elections (2005)

NRC September 2005:

“Une grande partie des chefs de ménages ne dispose d'aucun document d'identité (33 % pour Kayogoro et 28 % Nyanza Lac). Ce manque de document d'identité est encore plus marqué lorsque le chef de ménage se trouve être la femme (50 % pour Kayogoro et 38 % pour Nyanza Lac). Cette situation découle du fait que, le manque de moyens financier et les démarches fastidieuses nécessaires pour obtenir ce document constitue pour eux un frein à la possession de la carte d'identité. Néanmoins, la cause principale sous-jacente à ces deux dernières citées ci haut, serait que ces populations ne sont pas sensibilisées sur l'utilité de ce document administratif.”

OCHA 26 May 2005:

« IV.5.2 Jouissance des droits civiques et politiques

Les personnes déplacées jouissent naturellement du droit de vote et participent au processus électoral en cours. Toutefois, la jouissance de leurs droits civiques peut être compromise par le manque de moyens pour se procurer des cartes d'identité. Cette dernière nécessite un investissement de 1500 fbu (500 pour la carte et 1000 pour la photo). Selon les témoignages, les déplacés ne sont pas prêts à investir une telle somme, le revenu journalier moyen ne dépassant pas 500 fbu. »

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

Family unity

Endemic discrimination against displaced and other women despite pivotal role of in the household (1998-2004)

- High rate of widows among displaced women
- Support must be provided to help women face their new responsibilities as heads of households
- Discrimination against women in Burundi remains widespread

United Nations Resident Coordinator System in Burundi 1998, pp. 9-10:

"A UNFPA study carried out in 1995 found that nearly one third of all the women living in sites were widows. Given the intensity of the conflict during the last three years that has led to many adult males fighting in armed groups, being killed or 'disappearing', it is safe to assume that the percentage has since risen significantly.

In these circumstances, women are often forced to take on a taxing role as sole providers, not only of food and shelter, but also of moral and physical strength for their families. Having assumed a largely subservient role in the past, many women are unaccustomed to standing up for themselves and are ill-equipped to exercise authority, with the result that they are subjected to harassment and abuse in the sites. They are further disadvantaged because, according to Burundian tradition, they are not legally allowed to own land."

UN Commission on Human Rights 28 November 1998, para. 106:

"Investing in the social and psychological rehabilitation of the women affected by the crisis is an important factor to be taken into account by the international relief and development agencies. For instance, women have rarely participated in the perpetration of massacres and have been targets of killings less often; for these reasons they remain the stable element of the nuclear family and the society. Women are furthermore the centre of subsistence activity in the camps and are playing a major role in the reconstruction of their homes. Since many women have become widows as a result of the violence, and displaced women heads-of-household are particularly numerous, their economic survival, and that of their children, will depend on their being able to earn a living and receive education and training if needed. Their being able to own and inherit land should also become a priority. Investment in the youth, which consists of over 50 per cent of the country, and not just the educated youth, appears to be a priority, if, for example, the formation of militias and guerrillas is to be curbed."

AI 24 February 04:

"Discrimination against women in Burundi remains widespread. The husband is the head of the household and women often have little influence in decisions affecting their lives. A large proportion of women in Burundi are believed to be the victims of violence within the home and family. Women customarily do not own property or the land they work, placing them in positions of dependency, nor do they customarily inherit their husband's property or land making them dependent on his relatives. The level of education of women is generally much lower than that of men.

If a woman's status is low, that of a widow or a rape victim is even worse. The negative attitude to rape victims is not exclusive to men. Several women told Amnesty International how they had been mocked, humiliated and rejected by women relatives, classmates, friends or neighbours and their confidences betrayed, adding to their trauma.

Discrimination against women in Burundi extends to sexual health and family planning choices. Women's ability to choose and control these areas of their lives is additionally hampered by poverty, lack of access to healthcare as well as their subservient status."

PROPERTY ISSUES

General

Pending status of land where many IDP reside causing insecurity and possible evictions (2005-2009)

- The majority of IDPs have built houses on land they did not own
- Residents of IDPs sites on state/private owned land face possible evictions
- IDP sites have been built on state-owned, private-owned and church-owned land
- Not clear what the future status of this land will be in case IDPs decide to settle there for good

NGO (anonymous), September 2009:

Some IDP sites in Bubanza, Ngozi and Gitega provinces are on the land that belongs either to state or to individuals, who have not been compensated for the loss of their land. Local media reported IDP-related land conflicts (Ngozi, Bubanza) or that residents were under threat of a forced return to their places of origin (Gitega). All these sites exist since 1993-1994, corresponding with the outbreak of the civil war. Some findings:

"In March 2009, IDPs living on the Tankoma site (Gitega province and commune), have been forcibly evicted after sensitization by local authorities for voluntary return. The area was subsequently rumoured to be planned for a sports stadium, a CNDD-FDD (ruling party) office or a transport depot. Some people interviewed by NGO staff declared to have been forcibly removed, since a destruction of houses had started while some people were still living on the site.

People living on Bugendana site (Bugendana commune, Gitega province) are under pressure to leave the site which land would be needed, incredulously, to build an international airport (according the administration). Relations between IDPs and the administration are strained. IDPs invoke a fear of cohabitation with their former persecutors in their area of origin.

A part of the Ruvumvu (Bubanza province), Mutaho (Mutaho commune, Gitega province) and Ruhororo (Ruhororo commune, Ngozi province) sites belongs to individuals, who have not been compensated for the loss of their land. In Ngozi and Gitega, the CNTB (*Commission Nationale des Terres et autres Biens*) has dealt with some land conflicts. In Bubanza, no IDP-related land conflict has been reported by last March. Some IDPs of Ruvumvu site who have enough means buy the land they occupy or exchange a part of land with theirs in the area of origin."

UNHCR, 1 January 2008 :

"Tous ne peuvent donc se dire propriétaire de leur maison. A bien y regarder même, très rares sont ceux qui peuvent prétendre à ce titre. Car tout dépend du régime juridique du sol sur lequel ont été érigées les bâtisses. Or, il n'y a guère que ceux qui ont acquis la parcelle sur laquelle ils se sont installés qui disposent d'un droit de propriété plein et entier. Les autres, composant l'immense majorité, n'ont de droit sur leur immeuble que celui de la jouissance, lorsque ceux-ci ont été bâtis sur les terrains domaniaux, sur les fonds privés ou sur des parcelles intégrées au patrimoine de l'Eglise. Sachant que la question de l'espace au Burundi revêt une importance quasi vitale, la situation des IDP au regard de l'habitat est donc essentiellement caractérisée par un statut de grande précarité. Certains le savent, d'autres l'ignorent, ou préfèrent l'ignorer tant que personne ne vient leur en parler. Enfin, une fraction de ceux qui souhaitent retourner dans leur localité d'origine subordonnent ce départ au souhait de bénéficier d'une assistance pour reconstruire leur logis d'antan endommagé depuis par les affres du conflit ou l'usure naturelle."

Delrue, August 2006:

"Many [IDP sites] are on state-owned, private or church-owned property and have insufficient land for cultivation. The status of the IDPs on these properties remains unclear and this has led to conflicts with original owners, many of them returnees. Some new owners are speculating with the land for commercial gain. This is a potential source of tension, especially where under-utilised plots are located in areas of land scarcity."

OCHA, 26 May 2005, pp.33-35:

" Le statut des sites des déplacés

"D'après les entretiens de groupes, il est apparu que, tant les intervenants et autorités que les déplacés eux-mêmes, n'ont pleinement conscience de la précarité du statut des sites. Dans l'optique de certains intervenants, et ce qui est le cas pour la plupart des déplacés, il y a une tendance à considérer que les parcelles sur lesquelles les déplacés ont été installés sont leurs propriétés et seule une minorité de déplacés reconnaissent ne détenir qu'un droit de simple jouissance.

A travers les travaux d'entretien de groupes, l'administration a révélé que les sites des déplacés sont d'une part établis **sur des terrains domaniaux**, et d'autre part sur des **terrains appartenant à des personnes privés ou à des paroisses**.

Les terrains publics

Les premières investigations ont été de savoir si un déplacé était propriétaire de sa maison lorsque celle-ci était construite sur une parcelle appartenant à l'Etat ou à la commune. A ce propos, les avis étaient partagés.

Lorsque les sites sont installés sur les domaines de l'Etat, les déplacés bénéficiaires considèrent que ces parcelles leur sont définitivement acquises.[...]

L'administration pense qu'un jour ces terrains pourront être affectés à d'autres besoins, lorsque les déplacés auront pu retourner chez eux.

L'administration est en général d'avis qu'il n'est pas recommandable que ces déplacés s'installent à demeure sur ces sites. Les administratifs à la base estiment que s'ils doivent se réjouir d'avoir mis les personnes déplacées à l'abri des menaces physiques et qu'ils disposent d'un endroit pour protéger leur intimité, ces logements gardent un caractère provisoire évident.[...]

Les terrains privés

En outre, des sites des déplacés ont également été implantés sur des terres appartenant à des particuliers. Cependant, même si les déplacés reconnaissent timidement que ces terres appartiennent à des personnes tierces, ils n'entendent pas bouger. Et si tel était le cas, ils estiment qu'ils seraient en droit d'être indemnisés pour les cultures et les constructions qu'ils y ont érigées.

Des particuliers qui ont cédé leurs propriétés, de leur plein gré ou contraints par l'administration demandent maintenant à l'Etat de leur faire justice en libérant leurs terres des ménages devenus encombrants.

Les terrains de l'Eglise

Les sites des déplacés ont aussi été installés sur des propriétés appartenant à des confessions religieuses, en vertu des conventions de mise à disposition provisoire spécifiant que les terrains devront être remis aux propriétaires quitte et libres de toutes charges «dès que la situation le permettra ». La question qui se pose est de savoir comment les deux partenaires (commune-Etat d'un côté, paroisse-Diocèse de l'autre) vont gérer les dossiers si les déplacés devaient séjourner davantage sur ces sites.

En conclusion, on peut s'inquiéter que plusieurs facteurs (la croissance démographique, l'absence d'un système cadastral des terres rurales auxquelles s'ajoutent les différents déplacements intérieurs des populations) exacerbent le problème des litiges fonciers au niveau national."

Currently returnees have four options to reclaim their land (2009)

- Returnees can refer their land claims to courts, the *Bashingantahe* institution (traditional mechanism), the National Commission for Land and Other Properties (administrative authority) or opt for the mediation (non-governmental organisations)
- 90 per cent of cases in courts and tribunals in Burundi are related to land issues; the decision taken by the courts is legally binding
- Decisions taken by the *Bashingantahe* are not legally binding, and can be challenged in court
- The CNTB handles cases free of charge and is expected to be less time-consuming than the courts; in reality, the CNTB faces many challenges in completing its responsibilities due to a lack of resources
- Various NGOs in Burundi offer mediation services; mediation tends to be less time-consuming and is easily accessible to beneficiaries in comparison with the courts; it also promotes reconciliation

ACCORD, January 2009, p.7-9:

"Resolving Land Disputes

If a returnee wishes to reclaim their land, there are four options available to them:

- 1) submission of their case to the justice system (courts);
- 2) submission of their case to the *Bashingantahe* institution (traditional mechanism);
- 3) submission of their case to the National Commission for Land and Other Properties (administrative authority); and
- 4) submission of their case for mediation to non-governmental organisations (NGOs).

The Justice System: Courts

Returnees have the option of submitting their case to the local courts in Burundi. At the time of writing, approximately 90% of cases in courts and tribunals in Burundi were related to land issues. [...] The benefit of submitting a case to the courts is that the decision taken by the courts is legally binding. This tends to be stronger in assisting the returnee with the implementation of the court's decision. In addition, should the court rule in favour of the returnee, the returnee is usually able to easily register his or her property, based on the court's decision.

Traditional Mechanisms: The Bashingantahe Institution

[...] Even though it is well-known, accessible and provides free and "fast" verdicts, the challenge with using this traditional mechanism is that it is now often corrupt. A member of the *Bashingantahe* can, for example, request a bribe in order to rule in favour of one party. In addition, decisions taken by the *Bashingantahe* are not legally binding, and can be challenged in court. [...]

Administrative Authorities: National Commission for Land and Other Properties

In response to the challenge of land disputes, the government of Burundi established the National Commission for Land and Other Properties (CNTB) under the office of the first vice-president in May 2006. [...] The CNTB consists of three commissions: communal, provincial and national. Cases are first submitted to the communal commission, which then attempts mediation. Should the mediation fail, the case will then be sent to the provincial commission, which then also

attempts mediation. Should mediation succeed, parties to the conflict sign a legally binding agreement. If mediation does not succeed after an attempt by the provincial commission, the CNTB can refer the case to the courts. In addition, the CNTB has the power to make recommendations to the government of Burundi to compensate a person; for example, if their land was taken illegally by a local administration. When having to choose between submitting their cases to the courts or the CNTB, returnees often choose the CNTB as opposed to the courts, since it handles cases free of charge. In addition, CNTB is expected to be less time-consuming than the courts in dealing with cases. In reality, however, the CNTB faces some challenges in completing its responsibilities. These are mostly due to a lack of resources in comparison to the needs on the ground, which often results in cases being more time consuming to resolve than originally expected.

Mediation: Non-governmental Organisations

Should they so choose, returnees with land disputes have the option of submitting their cases to mediation.

Various NGOs that are present in Burundi offer mediation services to returnees to settle land disputes. If one party to a dispute submits a case to mediation, the other party will then be invited to join the mediation. If both parties agree to mediation as a medium for resolving their dispute, then the mediation process will commence. NGOs offering mediation services to vulnerable communities in Burundi include, but are not limited to: The African Centre for the Constructive Resolution of Disputes (ACCORD), The Norwegian Refugee Council, and the Burundi Women Lawyers Organisation (AFJB). Mediation is considered a viable option for resolving land disputes, since it tends to be less time-consuming and is easily accessible to beneficiaries in comparison with the courts. [...] Mediation also promotes reconciliation, since the parties to the dispute reach their own mutually acceptable agreement that is documented and signed in a legal contract.”

IDPs close to their former land are better off than those who fled further (January 2008)

- IDPs close to their former homes are able to cultivate their land, while those who fled to distant areas face double problem : finding someone to farm their land and avoid illicit occupation of their land

UNHCR, 1 January 2008:

" Les moyens de subsistance développés par les IDP peuvent être regroupés en deux grands ensembles : les activités agricoles, pour l'essentiel, et tout le reste, à titre marginal.

Concernant, tout d'abord, les revenus tirés de productions agricoles, il importe de différencier les déplacés qui résident dans des sites jouxtant leurs propriétés foncières et ceux qui sont originaires de localités beaucoup plus éloignées. La plupart des premiers continuent à faire prospérer leurs fonds sans grande difficulté. Hormis quelques cas de prédation sur des récoltes encore sur pied, il n'a pas été rapporté d'incident grave en la matière. En revanche, pour les seconds, ceux qui proviennent de localités si éloignées que la perspective d'exploiter leurs propriétés n'est pas concevable, ils se heurtent à un double problème : celui de trouver à louer leur force productrice en fermage – ce qui ne relève pas de soi dans certaines circonscriptions – et celui également d'une absence prolongée, qui les expose au risque d'une occupation illicite de leurs parcelles.

L'on rejoint ici l'épineuse question d'envergure nationale des conflits fonciers, qui représentent sans nul doute l'un des motifs de tension les plus menaçants pour l'équilibre encore fragile qu'essaye de préserver la nouvelle société burundaise. Ces litiges affectent les réfugiés revenant

d'exil. Ils affectent tout autant les IDP lorsque ceux-ci décident de retourner sur leurs collines d'origine. "

Enormous pressure on land with refugee return leading to land disputes (2006-2009)

- Thousands of returnees and IDPs lack agricultural land (2007)
- In August 2006, inauguration of the National Land Commission, comprised of four subcommissions: land, holdings, compensations and inventory of public lands

IRIN, 6 October 2008:

"Fifteen percent of long-term returnees repatriated this year are landless," said Léon Ndikunkiko, spokesman for the Ministry of National Solidarity, National Reconstruction, Human Rights and Gender.

[...]

Many, however, have come back to find their houses destroyed or occupied by other people.

[...]

Finding land to resettle the returnees is a big concern for the government. "The Ministry of Land Management has to identify the land and puts it at the disposal of the Ministry of National Solidarity," he explained. "It is a long process which takes time and this delays the resettlement of returnees."

A survey conducted by the National Land Commission in December to identify available land or land belonging to the state in the hands of individuals, found that just 4,500 people, mostly returnees, had been resettled.

[...]

While efforts are being made to address the problem of shelter, land remains a crucial challenge. "Even those who have their land are not resettled immediately," Ndikunkiko said. Land, he added, had become too scarce to accommodate Burundi's increasing population.

Frequent land disputes were now the reason for crime. Local radio stations reported on 23 August that a man blasted a grenade at a wedding ceremony, killing 15 people and injuring more than 60.

[...]

Nestor Niyonkuru, information officer at the national commission on land and other properties (CNTB), said many of the disputes involved returnees and current occupants of the land."

UN HRC, 3 October 2008, para.61 :

"The independent expert stressed that long-standing issues relating to land property, land scarcity, and the lack of economic alternatives to agricultural activities are important bottlenecks in the economic reinsertion of returning refugees. This remains a cause of rising conflict, as noted in a UNHCR report. The launch of the National Commission on Land and Other Properties in 2006 aims to solve problems faced by returnees in recovering their property, although UNIMT raised concern about the backlog of pending cases."

UNDP, 14 July 2009, p.16 (part one - section Burundi):

"Access to land is a main cause of conflict at the community level and leads to socio-political crises. Over 80 percent of conflicts registered in courts are land conflicts. Since 2002, the repatriation of more than 300,000 Burundians to lands often destroyed or occupied by other persons has been a source of potential new conflict. This risk has also been identified by the Arusha Peace Accord and renewed in the Constitution. The settling of conflicts will facilitate the integration of the most vulnerable (especially widows, orphans, persons living with HIV/AIDS, etc).

To address this problem in 2006 the Government created the CNTB.

[...]

The Commission registered a very high number of land conflicts but does not have the means to resolve them quickly; an important loss of time is caused by conflicting parties not telling the truth at the beginning of the process in order to gain land; massive repatriation also poses problems for reintegration."

Delrue, August 2006:

"Lack of housing and unresolved land and property rights issues deter IDPs and refugees from returning to their place of origin and are a major potential threat to future stability. Several waves of displacement have resulted in complex and politically sensitive issues around land and property. In some cases IDPs and returning refugees have occupied land abandoned by those who fled conflict. Over the years, IDP sites have grown into village-like settlements."

UNSC, 25 October 2006, eight report:

"The Commission will comprise four subcommissions: land, holdings, compensations and inventory of public lands. The large number of complicated regulatory mechanisms continues to make the resolution of land disputes difficult, owing to overlaps and contradictions between the traditional land tenure system governed by customary law, the 1986 Land Act, the Environmental Act and the Constitution, adopted by referendum in 2005. The finalization of the Poverty Reduction Strategy Paper, in which the land question is addressed, should be an important step towards the resolution of land disputes. At the same time, adequate international support for the Land Commission will be critical to ensure that it can operate effectively."

IRIN, 15 June 2007 :

" Pour les habitants de Bujumbura Rural, les conditions de vie se sont nettement améliorées et les milliers de personnes vivant dans des camps de déplacés internes sont rentrées chez elles.

Mais cette ouverture ne bénéficie pas à tout le monde. En effet, pour la majorité des milliers de réfugiés rapatriés des pays voisins et de déplacés internes, contraints de fuir une guerre civile qui a secoué le pays pendant plus de 10 ans, la vie aurait été plus simple s'ils avaient l'outil indispensable à leur survie : des terres cultivables.

« Nous vivons ici dans des conditions très précaires », a expliqué à IRIN Moise Barekezabe, responsable d'un camp de déplacés de la commune de Rukaramu. « Notre plus grand handicap est que nous ne possédons pas de terre cultivable ; pour survivre, nous sommes contraints de mendier auprès des communautés locales ".

IDD, 3 June 2006:

"Some 40,000 hectares of public property have been identified by the government to be transformed into new villages or urban centers for landless Burundians, amongst them IDPs and repatriated persons."

See also:

IRIN, 23 Oct 2006, Burundi: Bid to resolve land dispute under way [[Internet](#)]

United Nations High Commissioner for Refugees (UNHCR)

Date: 28 Aug 2006

Burundian refugees face challenges of identity, land ownership on return [[Internet](#)]

The 1993 returnees better off in terms of access to land than the returnees that left the country in 1972 (2009)

- For successful reintegration, returnees need to be able to recover and own properties; this provides them with the opportunity to participate in the country's social, economic and political life and towards the consolidation of peace in the country
- Land claim cases concerning the 1993 crises returnees tend to be less complicated than the cases concerning the 1972 crises returnees, due to the time difference
- Some women returnees face obstacles in claiming land due to traditional patriarchal social views as well as administrative difficulties resulting from a lack of implementation of inheritance rights for women

ACCORD, January 2009, p. 6,7:

"The importance of returnees being able to reclaim their land was acknowledged by the Arusha Agreement in 2000, when it included a section that clearly states: "All refugees and/or *sinistrés* must be able to recover their property, especially land". In order for returnees to be reintegrated successfully into their host communities in Burundi, they need to be able to recover and own properties that were left behind when they fled the country. This would provide them with the opportunity to participate in the country's social, economic and political life and towards the consolidation of peace in the country. There are various obstacles to returnees being able to reclaim their land and/or other properties. In general, these can be summarised as follows:

Some returnees who left the country in 1972 found that their land and/or other properties were expropriated, redistributed or occupied. In such cases, they often have difficulty reclaiming their land, for two reasons. First, they do not have witnesses to verify that the relevant property or land belongs to them. Witnesses play an important role in land disputes since, in 1972, official ownership documents were not yet readily available. Second, the Arusha Agreement indicates that all refugees must be able to recover their property. However, this is not always possible due to, for example, the Burundi Land Code of 1986. This code indicates that if land is owned (or occupied) by someone for longer than 30 years, then the occupant or new owner can become the legal owner of the land. Refugees who left Burundi in 1972 often only return to Burundi after more than this period of three decades. Reclaiming their land can then become problematic if the land has been occupied or owned by a new owner for more than 30 years.

Some returnees who left the country in 1993 found that their land and/or other properties are occupied, or boundaries were moved during their absence. In the majority of cases, the new occupants tend to be neighbours or family members. The challenge in these cases is that of ten there is a lack of evidence of original ownership. However, the cases concerning the 1993 crises returnees tends to be less complicated than the cases concerning the 1972 crises returnees, due to the time difference.

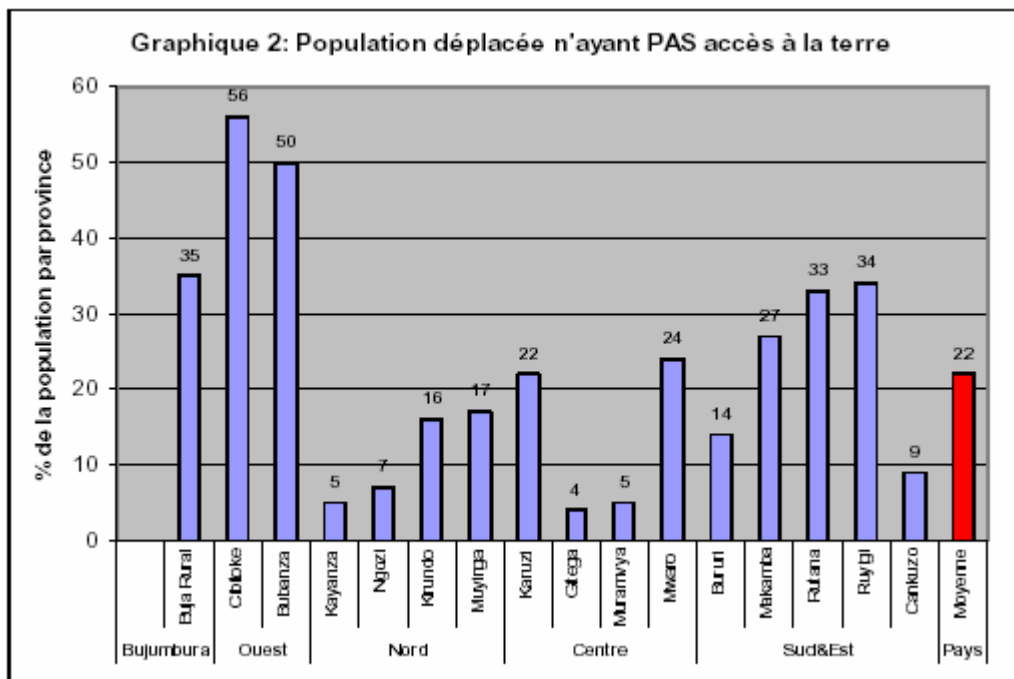
Some women returnees who head households face obstacles in claiming land previously owned by their families, due to traditional patriarchal social views as well as administrative difficulties resulting from a lack of implementation of inheritance rights for women."

Surveys find that vast majority of IDPs have access to land of origin (2004-2005)

- 78 percent IDPs are found to have access to their land (2005)
- In the Western Provinces of Cibitoke and Bubanza, over 50 percent of people do not have access to land
- Small size of land plot and sporadic insecurity means that many IDPs cannot be self-sufficient
- Vast majority of IDPs continue to access and cultivate their native lands during the day, returning to the displacement sites to sleep at night

- Very few IDP households report having problems with land access due to disputes over land ownership/tenure
- However, crops are often stolen by neighbours who live permanently on the hills, or by armed groups or bandits
- IDPs also report not spending enough time on the farm in order to maintain their land adequately due to the distance from the site

OCHA, 26 May 2005, p.19:



OCHA, 26 May 2005, p. 20:

“En moyenne, 22% des ménages déplacés n'ont pas accès à la terre. Néanmoins comme le montre le graphique 2, ce chiffre cache d'importantes disparités. Les régions les plus touchées par le manque d'accès sont celles qui abritent les plus forts taux de rapatriés (Ouest et Sud et Est). Parmi les populations n'ayant pas accès, 33% n'avaient pas de terre avant, 27% évoquent des problèmes de sécurité sur leurs terres, enfin 22% sont contraints par l'éloignement.

Notons que les vieillards n'arrivent plus à exploiter leurs terres en raison non seulement de l'éloignement mais aussi de l'inaptitude physique (3.5%). Sur Bujumbura Rural, 35% n'ont pas accès à la terre pour des raisons de sécurité et de non possession de terre, antérieurement à la crise.

Par déduction, **78% des populations déplacées sur site ont accès à leurs propriétés d'origine**. Ce taux reste élevé de part le fait que la grande majorité des déplacés habitent juste à côté de leur propriété d'origine et continuent à les exploiter à partir des sites. La même proportion avait été observée en 2004. Cependant, la petite taille des parcelles et la faible productivité des terres ne garantissent pas toujours une autosuffisance alimentaire. A ceci s'ajoutent les problèmes de sécurité perçus par les populations du Nord qui limitent leur temps de travail dans les champs. Enfin, les nombreux cas de vols sur pied reportés, toujours dans les provinces du Nord, nous informent que la récolte n'est pas toujours à la hauteur de la production. ”

OCHA, 26 May 2005, pp. 32-33:

" Les droits fonciers des déplacés

"D'après les résultats d'entretiens de groupes, les propriétés des déplacés sont restées intactes et la plupart d'entre eux (74%) continuent à les exploiter à partir des sites.

Concernant la sauvegarde des droits fonciers des déplacés sur leurs propriétés d'origine, il nous a semblé, à travers les entretiens de groupes, qu'il n'y a pas de faits particuliers à signaler.

En effet, chaque déplacé a accès à sa propriété et, sauf quelques cas rares de personnes vivant sur des sites éloignés de leur zone d'origine, les déplacés vont cultiver leurs champs durant la journée et rentrent sur le site le soir. Du reste, les sites d'installation ont en général été choisis dans cette optique. Les déplacés qui avaient fui loin de leur zone d'origine ont été invités à se réinstaller sur le site le plus proche de leurs anciennes habitations.

Il nous a été signalé par les administrations locales, qu'au début de la crise, certaines personnes parmi celles qui sont restées sur les collines avaient parfois tenté de s'approprier les terres des voisins qu'ils avaient tués ou fait fuir. Mais toutes les situations du genre ont été normalisées et les litiges fonciers qui subsistent sont du type ordinaire : conflit entre frères et cousins résultant de successions mal réglées ou non encore liquidées, etc.

Par contre, dans la région non encore stabilisée, Bujumbura rural en particulier, les droits fonciers des déplacés ne sont pas assurés tant que le mouvement rebelle FNL-PALIPEHUTU est encore actif sur les lieux.

Dans l'ensemble, la situation telle qu'elle se présente sur le terrain n'appelle aucune intervention particulière de la part des pouvoirs publics. Pour ce qui est de Bujumbura rural et Bubanza où la situation n'est pas encore totalement rétablie, aucune mesure spécifique n'est envisageable non plus. Les droits des déplacés ne pourront être protégés que quand l'ordre public aura été rétabli durablement. "

OCHA, August 2004, pp.12-13:

"The vast majority of IDPs continue to access and cultivate their native lands during the day, returning to the displacement sites to sleep at night. The survey teams found that in some sites, some IDPs can actually point to their place of origin only hundreds of meters away. Yet many of these IDPs – despite living so close to their original homes - have expressed an unwillingness to return and prefer instead to remain living in the sites [...].

Proximity of the place of origin to the site is an important element in determining an IDP household's level of vulnerability. Those IDP families that do not live close enough to their home areas to permit continued cultivation of their land must seek alternative means of economic livelihood, which are extremely limited. Although some of these families manage to make a meagre living through hiring out their labour on nearby farms or engaging in petty commerce or trade in the site, some remain entirely dependent on the aid of others. Female- and child-headed households that live far from their native lands are especially at-risk.[...]

Some 74% of IDP households report having 'easy access' to their land of origin. With the exception of Bujumbura Mairie, where only 13% of IDP households report having easy access to their land, the percentage of IDP households having easy access to their land is at least 60% in all provinces, and as high as 86% in Cankuzo province (interestingly, in Cankuzo only 9% of IDP households believe that the security situation is conducive to return, but this does not appear to inhibit a large percentage from accessing their land.)

However, as was revealed in the focus group discussions, having easy access to land does not necessarily translate into having an adequate level of agricultural activity or output. The overwhelming numbers of participants in the focus groups say they are able to cultivate their

native land but they do not achieve a sufficient harvest. The primary reason cited is theft of their crops by neighbours who live permanently in the collines, by armed groups or bandits in areas of ongoing insecurity. Other reasons cited for the diminished yields are the limited time they are able to spend on the farm – because of the distance they must walk from the site – preventing them from adequately maintaining or protecting their land. One IDP woman explains, for instance, that although she accesses and cultivates her land daily, she is unable to fertilize her land with animal dung as she did before her displacement because her animals were stolen. The distance that IDPs have to travel from the site to reach their land is in direct proportion to their ability to adequately manage and protect their land. Therefore, despite easy access to land, compromised productivity results in an erosion of livelihood capacity and decreased food security for many IDP households.

Very few IDP households report having problems with land access due to disputes over land ownership/tenure. The land tenure problem does not appear to be a significant concern among the current IDP population. This is in sharp contrast to the repatriating refugee population, for which land tenure is an issue of great concern.

Some IDP households report having no access to their native land either because it is in an area still affected by ongoing conflict (e.g. Bujumbura Rural), or because they were forced to sell it for economic reasons. Access to land is another important factor for determining the level of vulnerability of IDP households. Those households that have no possibility to access their land often have no option but to remain in the IDP site. Some displaced persons have nowhere else to go. Female- and child-headed households with no access to land are especially at risk."

Dual land system in Burundi complicates return process (2004-2008)

- Dual systems often result in competing claims where one individual has a documented land title and the other has a traditional right
- Less than 5% of the land is registered, and oral traditions about its ownership predominate
- Provisions on land ownership, access and transfer as spelt out in the Land Code are little understood and hardly implemented
- Following the improvement of security, the value of land has gone up, and rich individuals have expanded the size or number of plots, while the land available to returning IDPs and refugees is getting smaller
- Lack of communication and reported corruption at the government level
- Poor consultation, minimal consensus-building during policy making and limited dissemination in relation to land policy has resulted in a confused land tenure situation on the ground

Brookings, 7 February 2008:

"Moreover, the use of dual tenure systems can result in widespread confusion for returnees. IDPs may be unfamiliar with recent changes in land management, or may be unaware that such changes have even occurred. Dual systems often result in competing claims where one individual has a documented land title and the other has a traditional right. Such confusion was endemic in Burundi following the implementation of the Burundi Land Code in 1986 amidst displacement, a lack of government capacity and corruption."

Mbura Kamungi and al., June 2005:

"Land-owners in Burundi are able to transfer land mainly through bequest to the male heir upon marriage or the parents' death, while landless people can acquire land through purchase, donations from relatives or wealthier patrons, or distribution by the government. The primary

beneficiaries of land distribution by the government are returning refugees, though the land donated is often unproductive swamp land and natural reserves, due to land scarcity. Another way of gaining access to land is through temporary leasing for one or several seasons, given the decreasing availability of land for cultivation by households.

Provisions on land ownership, access and transfer as spelt out in the Land Code are little understood and hardly implemented. Land tenure in Burundi, as in many countries, currently has both customary and modern systems operating in parallel, and with some overlapping and 'hybrid' arrangements in place. This creates confusion, contradictions, disconnects and points of interaction between the tenure systems, making the resolution of land disputes particularly intricate. For instance, the 1986 Land Tenure Code acknowledges the legitimacy of customary claims but requires all land, and all land transactions, to be registered with the state. While the law states that registration must be passed on when it is sold, inherited or otherwise passed from one owner to the other, land is often sold in areas under indigenous tenure systems yet to be registered. Moreover, the state lacks the financial resources to disseminate and implement the Land Tenure Code. As a result, customary tenure regimes are still very influential in rural areas, and land holdings remain largely unregistered. Besides, less than 5% of the land is registered, and oral traditions about its ownership predominate. Thus title deeds hold little value, and endemic corruption in the Ministry of Lands has undermined the legitimacy of such documents. While the land code stipulates that all land belongs to the government and no transactions may occur, land sales do take place (whether registered or not) and renting of land is also significant, with up to one fifth of households accessing some land through renting. The Burundi constitution allows the state to expropriate land in the public interest. However, expropriated land is often allocated to influential political and military figures without adequate compensation to those from whom it has been taken. [...]

Following the cessation of hostilities, the value of land has gone up, and rich individuals and groups with the means to purchase or 'grab' land are expanding the size or number of plots for economic security, while the land available to returning IDPs and refugees is getting increasingly smaller."

ACTS, 30 September 2004:

"The land administration system in Burundi has been negatively affected by the conflict. The loss of human resources through out-migration is one issue; coordination between different government departments is also a big problem. Often, Provincial Governors will allocate state-owned land which is under the mandate of the Ministry of Environment, for example, without any communication between the two. Commissions appointed to look into land availability for the resettlement of refugees have at times appropriated the land for themselves or their wives. Double-registration of plots is another problem. The land reserve, intended for allocation to the landless is manipulated, resulting in some people waiting for years while others, who are not actually landless, receive plots rapidly due to favoritism or bribery.[...]

Over time, a situation of poor consultation, minimal consensus-building during policy making and limited dissemination in relation to land policy has resulted in a confused land tenure situation on the ground, which is subject to great variations at local level. Generally, local authorities make decisions based on a combination of statutory and customary law, and the interpretations of both custom and statute vary widely from province to province. Contradictions and disconnects in the current land tenure systems continue to create loopholes that are exploited through irregular allocation of state land to individuals in positions of influence in government, military and the civil service. Traditionally, land tenure conflicts are mediated by the local council of Hutu and Tutsi elders, the Bashingantahe. However, during the colonial period, this institution was weakened when individuals without the requisite qualities were appointed by the authorities. Recent efforts to support the institution have been criticized in some quarters, as some Bashingantahe included in donor-funded support projects have been civil servants or political figures, which is not allowed

under custom. Nevertheless, the Arusha Agreement emphasizes their role in reconciliation, at the level of the colline."

Current Land law applies only to 2 per cent of the territory (2009)

- Existing land law makes no mentioning of IDPs
- It applies only to a tiny portion of officially registered land in major cities, and state land
- The draft land law would apply also to rural areas and would be very relevant for the current IDPs
- The adoption before the 2010 elections not sure

NGO (anonymous), September 2009 (communication):

Burundi is a densely populated country with 300 persons per square kilometer. It is also the least urbanized African country which means that the vast majority of people live off the land. With the returning refugees (around 500,000 since 2002) and IDPs (some 100,000) the pressure on land is increasing and is a potential cause of conflicts.

Current land law covers only urban registered areas. It does not apply to land in rural areas (98 per cent of the territory) which officially belongs to the state. People traditionally live on and work the state-owned land. Informal transactions also take place but they often lead to conflicts because, for instance, plots are being sold multiple times, the lack of land registry leads to land insecurity.

The new draft land law is more comprehensive and applies also to rural areas which were previously managed according to customary regulations. This would also make the new law more relevant for the current IDPs, who would, like other citizens, be able to obtain certificate on their land. However, the adoption of the new land law by the National Assembly before 2010 elections is not sure.

90 percent of Batwa do not own land, due to displacement or other factors (2004)

IRIN 15 April 2004:

"The only way out of the ostracism and lowly status to which they [the Batwa] are subjected in society, he [Vital Bambanze, the secretary-general of the Union for the Promotion of the Batwa] said, would be for the Batwa to be given land. This would open the way to education, which Bambanze described as the key to development. He said some 90 percent of Batwa did not own land, thus exposing them to all kinds of exploitation, including something akin to serfdom. "In Mukike and Mugongo-Manga, [two communes of Bujumbura Rural], building a hut on somebody's property entitles the owner to demand three or four days of unpaid labour per week. This is slavery," Bambanze said.

Like many residents of the site, Sinzobakwira used to live on someone's land at Mubone in Bujumbura Rural, where her entire family were serfs. But now, even though she lives in the city and owns no land, she prefers her present condition, because she lives free and without the constant threat of eviction.

Serfdom, which affected all of Burundi's landless, irrespective of ethnicity, was outlawed in 1976 by the then president, Jean-Baptiste Bagaza. Despite this measure, however, the Batwa say they have not seen any benefits. Their lack of land ownership still makes them feel like slaves in their relationships with landowners."

Property inheritance practices complicate restitution process (1994-2007)

- In March 2006, the Minister of National Solidarity said that a project of law allowing women to inherit land had been submitted to Parliament
- UNCHR warned in 2002 that land and property disputes were increasingly common
- Women are not entitled to inherit land under customary law
- Few legal titles exist, which creates tensions when former land owners try to regain their land

Oddo - Robarts, Aug 2002, p. 9:

"Land and property disputes are increasingly common, and the justice system is unable to cope, leading some to call for a revitalisation of the traditional *bashingantahe* system of local arbitration. Indeed, one of the monitoring missions undertaken by UNHCR warned of:

...The explosive mix between an uncontrolled increase in population (in 20 years the population of Burundi will double) and the traditional method of succession that divides among the male sons the property of the father. This means that land properties become smaller and smaller and insufficient to assure food security and subsistence to everybody. In a country where 90% of the population depends on agriculture, future conflicts for land ownership (even if hidden by ethnic reasons) become more and more probable."

CHR, 7 March 2002, para. 64:

"According to the UN Special Rapporteur on the human rights situation in Burundi, "Many obstacles to the advancement of women still remain, however, such as the hold-up over the bill on inheritance and matrimonial property rights, which has still not been brought to the attention of the minister responsible, far less the Council of Ministers. The minister foresees the adoption of the bill some time in the coming year. It must be hoped that the bill will rise above all the difficulties and social constraints that have been brought to the Special Rapporteur's attention, becoming one day a law that all in Burundi, male and female, will accept."

ACTS, 30 September 2004:

"Under customary law, women cannot own or inherit land; they can only enjoy limited access bestowed through affiliation to the male legatees. Currently, women's access is further compromised by repeated displacement. Article 17 of the Constitutional Act of Transition establishes the equality of men and women before the law, and the 1993 amendment of the code of the Person and the Family includes the right to joint management of family property if the husband is absent. However, in practice, most men tend to delegate land matters to their male relatives. Matrimonial arrangements, succession, legacies and gifts are all governed by customary law, which does not sufficiently recognize women's land rights."

ITEKA, March 2006:

"Le Burundi a préféré célébrer la journée internationale de la femme du 8 Mars autour du thème " l'héritage de la terre : un droit inaliénable à la femme burundaise » au moment où le thème choisi au niveau international est " la femme dans la prise de décisions : vaincre les défis en vue d'atteindre des changements". Or selon la coutume burundaise, les femmes n'héritent pas. Le ministre burundais de la solidarité nationale, des droits de la personne humaine et du genre, Mme Françoise Ngendahayo a, dans une déclaration faite à cette occasion, indiqué que la participation efficace de la femme dans la prise de décisions exige des conditions équitables dans la distribution des richesses comme le droit de propriété qui implique le droit à l'héritage de la fille.

La femme burundaise n'est pas établie dans ses droits en matière de succession suite à un manque de cadre légal qui régleme cet aspect de sa vie. Alors que la terre reste le principal

moyen de production commun aux burundais, particulièrement en milieu rural. La problématique de l'héritage de la terre devrait ainsi être analysée dans le souci d'une réglementation équitable aussi bien pour la fille que pour le garçon, a noté la ministre Françoise.

La ministre Françoise a précisé qu'un projet de loi sur les successions, les régimes matrimoniaux et les libéralités a été soumis aux instances habilitées pour être adopté."

CEDAW, 6 March 2007:

"Nevertheless, with regard to succession — an area that is still governed by custom — men and women do not have the same rights of inheritance, especially with regard to land."

UN Commission on Human Rights, 28 November 1994, para. 37:

"A critical issue with regard to both the causes of and the solutions to the problem of displacement is that of land. In Burundi, land holding is very fluid. Few legal titles to land exist, resulting in disagreements and confrontations when land is redistributed or changes hands. This was the case, for instance, following the redistribution to lower military officials and soldiers of land that had belonged to Hutus who left the country in 1972. Since then this land changed hands frequently, being passed on to others who would acquire legal title after a period of years if acquired in good faith from the previous occupier (bona fide occupier). The Government of Ndadaye tried to reinstall the returnees and former owners to their lands. This caused fear among the new owners that they would be evicted, and created unavoidable tensions."

PATTERNS OF RETURN AND RESETTLEMENT

General

At least 430,000 Burundian refugees had returned home by September 2009 (2009)

- 2008 witnesses record return of almost 100,000 refugees
- A number of them are landless and at risk of becoming IDPs
- Land issue remains the a risk factor in terms of successful reintegration
- The repatriation of Burundian refugees from three special settlements in western Tanzania has passed the 50,000 mark in 2008

UNHCR, 15 December 2008:

"Some 94,000 refugees have returned to Burundi since January, more than in any other year since UNHCR launched its voluntary assisted repatriation programme in 2002.

[...]

And land is often an issue. Many former refugees find their houses destroyed and, in some cases, their land occupied. In an economy where more than 90 percent of the population is dependent on subsistence agriculture, people without land cannot provide food for their families."

FMR, September 2009, p.36:

"With the return of half a million refugees and the majority of the country's 375,000 internally displaced persons since then, the war-ravaged country of some eight million people has had to reintegrate about 10% of its population. Refugee return has taken place mostly to rural areas in border provinces, in a context of widespread poverty, lack of basic infrastructure and scarcity of land.

[...]

The Government of Burundi, UNHCR and other agencies have responded to the rise in land disputes by increasing support for land conflict mediation, resulting in solutions such as land sharing. While these combined efforts have already resolved thousands of cases, the land issue remains a risk factor in terms of successful reintegration and peaceful cohabitation particularly in southern Burundi."

UNHCR, 16 September 2009:

"The repatriation of Burundian refugees from three special settlements in western Tanzania has passed the 50,000 mark.

[...]

Under a landmark programme launched by UNHCR and the Tanzanian government in March 2008, some 55,000 refugees from Katumba, Mishamo and Ulyankulu settlements decided to return to Burundi. With 50,000 now back home, the remaining 5,000 are expected to return to Burundi in the coming months. A further 162,000 opted under the programme for local integration and the chance of citizenship.

[...]

Since 2002, more than 430,000 of these camp refugees have returned to Burundi. A further 36,000 are in Mtabila, the only remaining camp for Burundian refugees in Tanzania."

UN HRC, 15 September 2008, para.43 (National report submitted to HRC):

“43. The total number of persons repatriated up to June 2008 was 42,724, including 10,916 households scattered all over the country, as indicated in the data obtained through the Repatriation and Reintegration of Victims Support Project (PARES) in the table below:”

Table 4
Distribution of repatriated households by province

<i>Province</i>	<i>Men</i>	<i>Women</i>	<i>Children</i>		<i>Total</i>	<i>Total households</i>
			<i>Under 6 years</i>	<i>7-17 years</i>		
Bubanza	15	16	15	32	78	19
Buja-Mairie	44	34	36	55	169	68
Buja Rural	31	20	35	27	113	32
Bururi	467	496	504	708	2 177	536
Cankuzo	441	469	749	2 354	4 013	555
Cibitoke	19	16	26	24	85	24
Gitega	288	233	339	310	1 170	312
Karuzi	550	477	792	657	2 476	656
Kayanza	106	79	120	96	401	123
Kirundo	831	857	1 426	1 330	4 444	1 140
Muramvya	66	49	79	76	270	74
Muyinga	2 384	2 688	4 270	4 308	13 650	3 648
Mwaro	6	2	3	1	12	6
Makamba	1 123	1 231	1 585	1 714	5 653	1 286
Ngozi	279	254	368	319	1 220	390
Rutana	243	270	389	398	1 300	288
Ruyigi	1 426	1 462	2 029	2 228	7 145	1 705
Undocumented, Mugano	3	1	2	1	7	4
Total	8 322	8 656	12 767	12 979	42 724	10 916

Rwandese authorities forcibly repatriated Burundian refugees from Kigeme refugee camp (2009)

- Some of them refused to return due to the safety reasons; their fear was based also on the upcoming presidential elections (2010) and overall impunity
- Many of them were former IDPs in Muyinga who fled to Rwanda in 2005
- Upon forced return to Burundi they were repatriated to their former IDP sites

NRC, June 2009 ([Rapatriement forcé de réfugiés burundais du Rwanda](#)):

"Le mardi 2 juin 2009, un convoi comportant 133 ménages de 437 personnes est venu du Rwanda, à partir du camp de réfugiés burundais de Kigeme, dans la localité de Gikongoro dans le sud du pays. Mis à part quelques rapatriés volontaires pour lesquels les premiers convois ont été effectués pendant leur absence au camp, les réfugiés de ce convoi ne voulaient pas rentrer au Burundi. Pour la plupart des réfugiés du convoi du 2 juin 2009, le rapatriement était forcé.

[...]

3. Causes de non-intention de retour

Les rapatriés avec lesquels le CNR a discuté ont principalement évoqué le sentiment d'insécurité qu'ils éprouvaient : l'insécurité généralisée dans les collines de retour, l'impunité et les prochaines élections en 2010 sont les principales causes de ce sentiment d'insécurité. Quelques-uns ont aussi cité des défis de réintégration parmi lesquels la problématique foncière est largement présente. Une jeune fille de 19 ans avait souhaité demeurer dans le camp afin de passer le concours national du Burundi.

4. Situation sur la réintégration

A l'exception de 2 ménages retournés sur leur colline, les autres rapatriés étaient hébergés par des amis ou parents dans les différents sites de déplacés internes (Gisanze, Rutonde, Bwasare, Kiremba). L'essentiel de ce groupe de personnes ne voulaient pas retourner sur leur colline d'origine, généralement pour des motifs d'insécurité généralisée, de crainte de cohabiter avec son persécuteur d'antan et des conflits fonciers. Leur souhait est de s'installer de manière définitive sur ces sites de déplacés.

Au moment de la rencontre avec ces rapatriés, ces derniers faisaient déjà face à certains défis de réintégration comme le logement. La plupart étaient logés par des tiers. Néanmoins, certains rapatriés ont confié au CNR que les autorités administratives leur ont déclaré qu'ils ne seront assistés en construction que lorsqu'ils seront retournés sur leur colline d'origine, comme était le cas pour le site de Gisanze (commune Gashoho). "

Security and socio-economic advantages of the IDP sites main reasons why IDPs do not want to return (Bubanza, Gitega, Ngozi province) (2009)

NRC, June 2009 ([Rapport de visites de terrain sur les sites de déplacés à Bubanza, Gitega et Ngozi](#)):

In March/April 2009, NRC visited some IDP sites in Bubanza, Ngozi and Gitega provinces. They were selected after local media reported IDP-related land conflicts (Ngozi, Bubanza) or that residents were under threat of a forced return to their places of origin (Gitega). All these sites exist since 1993-1994, corresponding with the outbreak of the civil war.

For these sites, the administration did not have a clear policy about durable solutions towards IDPs (to change the site into a village, resettlement, etc.). At the time, there were no threats of eviction. However, there is no security of tenure for most IDPs. In Bugendana, IDPs are asked to relocate. According to the administration, those who do not want to return will be resettled in another site to be developed for them.

Most of the IDPs do not want to return to their place of origin. Two recurrent reasons are the feeling of insecurity and the socio-economic advantages of the IDP sites.

" A. Le site de Mitakataka (colline Gahongore, commune Bubanza)

7. Intention de retour : aucune, principalement pour des raisons de sécurité dans leur colline d'origine, mais aussi pour des raisons de commodité.

8. Solution durable envisagée par l'administration : aucune. Néanmoins, les résidents ont la possibilité de vivre sur le site bien qu'aucun document certifiant la possession/la propriété de la terre ne leur soit délivré.

[...]

B. Le site de Ruvumvu (colline Shari II, commune Bubanza)

7. Intention de retour : aucune, pour des raisons de sécurité (selon résidents et l'administration)
8. Solution durable envisagée par l'administration : selon l'administration, le site pourrait être transformé en village de paix. Actuellement, les résidents ont la possibilité de vivre sur le site bien qu'aucun document

certifiant la possession/la propriété de la terre ne leur soit délivré.

[...]

A. Site de Kabanga (colline Rweru, commune Giheta)

7. Intention de retour : principalement aucune, essentiellement pour des raisons de sécurité mais aussi pour des raisons économiques selon les résidents. Des ménages qui vivent dans les environs déménagent aussi dans le site pour des raisons de sécurité (banditisme).

8. Solution durable envisagée par l'administration : le souhait de l'administration est que les personnes sur site retournent volontairement sur leurs collines d'origine. A défaut d'un retour volontaire, le site pourra

être transformé en village de paix. Il n'y a pas eu de précision sur la mise en exécution de ce projet.

[...]

C. Site de Bugendana

7. Intention de retour : aucune, pour des raisons de sécurité. En 2001, un ménage IDP est retourné dans sa colline d'origine et a été tué avec toute sa famille. En début 2009, un autre homme a été agressé lors de

son retour dans sa zone d'origine. Néanmoins, si l'administration leur propose un autre site, comme celui de Makaba (commune Bugendana), les ménages accepteraient à défaut de pouvoir rester sur le site actuel.

8. Solution durable envisagée par l'administration : le retour sur leur colline d'origine. Selon l'administration, la sécurité est rétablie dans leur zone de retour. L'emplacement du site constitue un espace sur lequel un aéroport sera aménagé d'après les autorités administratives. Selon l'administration communale, les ménages ne désirant pas retourner, seront installés sur le site de Makaba, colline située dans la même commune de Bugendana.

[...]

D. Site de Mutaho (colline Mutaho, commune Mutaho)

7. Intention de retour : un seul ménage s'est prononcé pour un retour éventuel. Les résidents du site n'envisagent pas de retourner sur leur colline d'origine en général pour des raisons économiques.

8. Solution durable envisagée par l'administration : jusqu'à la fin du mois de mars 2009, il n'y a pas encore eu de prise de décision en ce qui concerne ce déplacement forcé.

[...]

A. Site de Ruhororo (colline Rwamiko, commune Ruhororo)

7. Solution durable envisagée par l'administration : l'administration préconise un retour dans leur zone d'origine.

8. Conflits/menaces relatifs à l'occupation de la terre : le site est construit en partie sur des terres de particuliers. Les propriétaires des terres réclament une indemnisation. La CNTB est intervenue et aurait

recommandé que les résidents du site achètent les terres des particuliers qu'ils occupent, soit en procédant à un échange avec les terres que les déplacés possèdent dans leur localité d'origine. Enfin, la même commission aurait également suggéré que les occupants du site retournent chez eux afin de libérer les parcelles appartenant à autrui.

[...]

Concernant les *intentions de retour*, les ménages qui vivent dans ces différents sites aménagés pour personnes déplacées semblent être intégrés dans la communauté et la grande partie d'entre eux ne souhaitent pas retourner sur leur colline d'origine pour des raisons liées soit à l'insécurité soit à des aspects sociaux et économiques. D'un côté, l'aspect sécuritaire est lié aux souvenirs des événements de 1993. En effet, la peur de retrouver leurs ennemis d'hier est principalement évoquée. D'un autre côté, l'insécurité relative à la recrudescence de la criminalité de manière générale est aussi un facteur qui accroît la réticence des déplacés à un retour éventuel dans un

habitat dispersé. Suite aux nombreux cas de banditisme, des ménages qui sont établis dans les alentours des sites, emménagent à l'intérieur de ces derniers (cas du site de Kabanga). Sur les plans sociaux et économiques, essentiellement, il s'agit d'un accès plus facile aux différents services de base et infrastructures.

[...]

Le *Ministère de la Solidarité Nationale* est aussi en faveur d'un retour volontaire des déplacés internes vers leur zone d'origine. A cet effet, la Ministre de la Solidarité Nationale fait occasionnellement des descentes sur place pour sensibiliser les déplacés à regagner leur terre d'origine, avec aussi une assistance pour des ménages déplacés qui seraient déjà rentrés. Dans la plupart des cas, cette politique va à l'encontre des intentions de la population déplacée. Considérant les mauvaises relations avec les autorités à Bugendana, la question peut être posée en quelle mesure de telles sensibilisations et interventions sélectives de la part des autorités burundaises en faveur d'un retour des déplacés ne risquent-elles pas de créer un climat de méfiance dans d'autres sites aussi. "

"Peace Villages" (Rural Integrated villages): addressing the landlessness and providing a model of reconciliation (2009)

- The peace villages offer a chance for stability and durable solutions for landless returnees and IDPs
- Apart from being models of reconciliation, the peace villages are expected to improve local social infrastructure
- The construction of up to eleven villages in the southern provinces of Makamba, Bururi and Rutana primarily is foreseen for 2009

ECHO, 31 March 2009

"There have been other attempts to integrate refugees back into Burundian society, but their large numbers and the lack of land have often made it problematic. The peace villages offer a new solution. They provide all the services that newly arriving refugees require, whilst providing them to local people as well, and crucially offer the chance for rival communities to reconcile themselves after years of conflict."

IRIN, 26 September 2008

"The idea of peace villages was mooted by the UN Refugee Agency (UNHCR) after a visit to Ruyigi. Inaugurated on 14 August, Muriza hosts 49 families of Tutsi IDPs, and 15 of Hutu returnee women chosen from among the most vulnerable.

Unlike other projects where agencies offer building materials to returnees or IDPs for making shelters, Muriza was built by World Outreach Initiative, a UNHCR partner.

After building the houses, the NGO then handed them over to the residents.

According to the UNHCR representative in Burundi, Bo Schack, solving returnee problems means addressing IDP problems as well - especially given that many of the IDPs have suffered multiple displacements since 1993.

"The perfect way to deal with it was to put landless people together with IDPs in a mixed village close to an area with economic viability to ensure stability and durable solutions for those people," Schack said.

[...]

Apart from being models of reconciliation, the peace villages are expected to improve local social infrastructure."

OCHA, 4 May 2009

Construction of Integrated Rural Villages

"The construction of Rural Integrated Villages (or "Peace Villages") for the settlement of landless returnees and other landless persons is ongoing. The following villages have been established since 2008 (figures as of 24 April 09):

Village	Commune	Province	Current population (families / persons)	Plan
Gitara (Musenyi)	Mabanda	Makamba (south)	196 / 802	
Nyakazi	Kibago	Makamba (south)	32 / 153	
Murembera	Giharo	Rutana (south)	24 / 124	
Nkuriye	Giharo	Rutana (south)	(under construction)	
Muriza	Butaganzwa	Ruyigi (east)	85 / 321	

The construction of up to eleven villages in the southern provinces of Makamba, Bururi and Rutana primarily is foreseen for 2009. These provinces are the main areas of origin of the Burundian "1972 refugees", many of whom upon return do not have access to land. UNHCR foresees to support the voluntary return of 55,000 of these refugees from 1972 in 2008/2009. The programme is lead by the Government and involves several UN agencies, including FAO, UNDP, UNHCR, UNICEF, and WFP, as well as the World Bank.

Available state owned lands are being currently identified with support from local authorities for the purpose of potential new sites for villages.

The approach is based on a strategy paper adopted in August 2008 by the Integrated Commission on Return and Reintegration (Government, UN agencies and donors). It provides, on a voluntary basis, durable solutions for landless returnees and displaced persons of mixed ethnic origins as well as vulnerable persons and people from various social backgrounds. It provides access to housing and land, water and sanitation, education and health, agricultural support, as well as non-agriculture based income generating activities aiming for the self-sufficiency of beneficiaries."

Rate of return of IDPs and refugees decreased significantly (2006-2008)

- According to UNHCR study in southern provinces, main reasons for remaining in sites included insecurity due to bandits in zones of return, insecurity due to FNL sporadic attacks (for IDPs from Bujumbura Rural), and isolation of zones of origin from which so many have left
- According to OCHA high population density in Burundi hinders effective resettlement of both IDPs and re-turning refugee populations

UN HRC, 15 September 2008, para.50 (Summary prepared by the OHCHR):

"According to FI, the situation remains worrying in the Magara region, where some armed groups still hold sway. This does not make the return of IDPs any easier. In some cases it is even more difficult to return because livestock, crops and houses are looted by armed groups who still operate despite the immediate cessation of hostilities signed on 25 May 2008 between the Government of Burundi and Palipehutu-FNL."

UNHCR, 1 January 2008:

« Et, dans un parallélisme de situation, ce qui motiva les exilés de Tanzanie à rentrer, provoqua le retour, chez eux, des IDP. Les années 2004 et 2005 furent parmi les plus fastes en terme de rapatriement des réfugiés burundais. Elles le furent également pour ceux qui, sans franchir de frontière, quittèrent leurs domiciles pour s'installer ailleurs dans le pays. Prétendre cependant que ce motif justifia à lui seul tous les retours serait abusif. Certains IDP prirent aussi la décision de partir pour rompre avec la précarité des conditions de vie dans les sites et retrouver le confort relatif de leur propriété, de leur domicile et de ce qui faisait leur ordinaire auparavant.

A l'opposé diamétral, ce qui suscita le départ de certains fut précisément ce qui en invita d'autres à y renoncer. Ainsi, si beaucoup souhaitèrent retourner habiter leur maison et exploiter leur parcelle, nombreux ne purent s'y résoudre en raison de la destruction de leur logement et l'occupation de leur lopin. Si certains optèrent pour le retour, assurés qu'ils étaient de recouvrer des conditions de vie meilleures, d'autres, au contraire, trouvèrent dans les sites des emplacements beaucoup plus favorables que ceux qu'ils avaient quittés. Quelques sites, ayant même bénéficié de programmes d'assistance en habitat, se commuèrent en « villages », proposant ainsi un cadre de vie envié de beaucoup.

A l'évidence, se sont dans ces complexes résidentiels que se dénombrent le moins d'intentions de retour. Nulles ici, elles s'avèrent partielles ailleurs et les arguments avancés pour ne plus rentrer se résument souvent autour des axes suivants :

- L'insécurité provoquée par quelques ruffians terrorisant les populations des zones où ils maraudent ;
- L'insécurité liée aux forfaits sporadiques perpétrés par le FNL (pour les IDP originaires de Bujumbura rural) ;
- L'isolement des contrées de retour vidées de leur population lors des phases d'exil massif. »

OCHA, 3 October 2007:

« Lack of access to land remains a key obstacle to any efforts made towards the resettlement of displaced populations in Rwanda, Burundi and Tan-zania. High population density in Rwanda and Burundi hinder effective resettlement of both IDPs and re-turning refugee populations. The on-going expulsions of illegal immigrants from Tanzania has further aggravated the situation in both Burundi and Rwanda, as majority of the returnees are currently living in transit centres due to lack of addresses or land to repatriate back to. Assistance to cases of expulsion continues to be hampered by logisti-cal challenges and insufficient financial re-sources. An estimated 20,000 Burundians and over 60,000 Rwandans who have been living illegally in Tanzania have been targeted for ex-pulsion by the end of 2007.»

UNSC, 21 March 2006, para.33-34:

"During the reporting period, the rate of return of Burundian refugees from the United Republic of Tanzania decreased significantly. The Office of the United Nations High Commissioner for Refugees (UNHCR) facilitated 5,409 and 1,250 returns in November and December 2005, respectively, bringing the total number of refugee returns to 68,000 during 2005. However, in January and February, only 428 and 1,319 returns were registered.

This decline was attributed to several factors, including the precarious security situation, food insecurity in the northern and eastern provinces, increased human rights abuses and inadequate infrastructure and public services, as well as conflicts over access to land. These problems have also resulted in an outflow of more than 6,000 Burundians to the United Republic of Tanzania since November, including many new returnees. Since October, the return of displaced persons to their places of origin has also been minimal."

UN, 30 November 2006:

"Despite these positive [political] developments however, 2006 was characterised by a low level of return of displaced populations.[...]

Harsh economic and agricultural conditions and lack of sufficient trust among communities may explain this status quo. But other factors, such as new opportunities and livelihood found in sites or villages may also contribute to this slow return.[...]

Lack of means to rebuild houses remains an additional obstacle to the return of both IDPs and returning refugees and is consequently a priority in the PRSP and PBC frameworks."

IDD, 3 June 2006:

"The main reasons IDPs do not to return to their place of origin are the lack of housing, unresolved land and property rights issues and security. However, in discussions with IDPs met during the mission, it appeared that the vast majority of IDPs see return as their preferred solution under the condition that a reconciliation process accompanies the return."

OCHA, 5 November 2006:

"A small group of approximately 20 internally displaced persons site returned to their collines of origin from Karurama (Rugazi) site. This is one example of the continuing though slow return of IDPs."

OCHA, 15 May 2006:

In Makamba Province: "Displaced persons in Kibago (Mbizi) and Mabanda (Kije) are gradually returning to their collines of origin. Only 35 families remain in the site of Mbizi. OCHA has started close follow-up in order to monitor the trend of return."

Large scale return of Burundian refugees and IDPs (2004-2005)

- 148,000 Burundian refugees returned home from 2001 to 2003, and 80,400 returned from Tanzania from January to September 2004
- In 2004 and 2005, massive return of IDPs in eastern and southern regions, particularly due to economic opportunities in the South and to precarious living conditions in IDP camps
- In the first half of 2005, return slowed down, but picked up in the second part of the year
- About 70 per cent of returning IDPs and refugees do not have houses or are returning to find their houses destroyed

OCHA, 11 November 2004, p.4:

"The trend of refugee and IDP return to their communities of origin continued throughout the year at a relatively constant pace. Of the total return figure of 100,000 foreseen by the United Nations High Commissioner for Refugees (UNHCR) for 2004, 80,400 Burundian refugees returned from Tanzania in the period January-September 2004 under UNHCR auspices, with a concentration in the provinces of Ruyigi, Musinga and Makamba ."

OCHA, 26 May 2005:

"Le retour sur les anciennes propriétés est observé depuis que le cessez-le-feu entre belligérants est devenu effectif. Les retours ont été massifs et spontanés dans les régions du Sud et de l'Est. Entre autres motivations de retour, ce sont d'une part les atouts économiques que présente la partie méridionale du pays, et d'autre part la précarité des conditions de vie sur site.

De manière fondamentale, les volontés de retour ou de maintien sur site trouvent leurs justifications profondes dans les circonstances qui ont prévalu au moment du déplacement. La fuite des déplacés présents sur sites, à partir de 1993 s'était faite dans un contexte extrêmement surchauffé, caractérisé par des massacres interethniques à grande échelle et suivis souvent

d'une répression aveugle. C'est dire que le retour des déplacés sur les collines d'origine exige un important travail de rapprochement et d'éducation à la paix afin de s'assurer que les familles de retour soient acceptées par les communautés d'accueil et que leur présence ne risque pas de provoquer une reprise des conflits.[...]

Les résultats de l'enquête indiquent que la population des déplacés sur sites a connu une diminution continue entre 2004 et 2005, passant de 145.034 à 116.799 personnes. Cependant, les chiffres absolus de 2005 ne reflètent pas les mouvements réels de retour. Dans la même période, le nombre de sites est passé de 170 à 160. La différence ne correspond pas de manière absolue au nombre des sites démantelés (30). En effet, 20 nouveaux sites ont été recensés cette année qui n'avaient pas fait l'objet de l'étude l'année dernière.[...]

Le mouvement de retour massif et spontané observé dans les provinces du Sud et de l'Est va se poursuivre parallèlement au programme de rapatriement depuis la Tanzanie. Si le rythme mensuel de rapatriés a été très faible au 1er semestre 2005 (moins de 12'000 en 6 mois), l'évolution politique intérieure (nouveau gouvernement en place dès fin août) sera potentiellement un facteur d'accélération du mouvement.

Le statu quo observé dans les sites du Nord et du Centre résulte moins de l'environnement politique que d'une désagrégation communautaire consécutive à la crise de 1993. L'impact des élections à venir ou du rapatriement aura sans doute moins de poids que la qualité des rapports communautaires et les rapports de confiance au niveau local."

OCHA, 2006, p.8, p.14:

"The return of refugees and IDPs to zones of origin continued without interruption during the year [2005]. The pace of refugee return slowed down considerably in the last quarter of 2004 and in the first months of 2005, mostly due to refugees' concerns related to security conditions and the electoral process in the country. Nevertheless, the return started accelerating in mid-2005 at a weekly rate of 4,500 persons." [...]

"[R]ecent UNHCR estimates indicate that 70% of returning refugees do not have houses, or are returning to find their houses destroyed. Similar needs have been observed for returning IDP families."

Three factors condition return: housing, security and political stability (2005)

- One major obstacle to return mentioned by many IDPs is the impunity of those who killed civilians in massacres and who allegedly stayed in their homes of origin

OCHA, 26 May 2005:

« Parmi les ménages qui souhaitent rentrer, le retour sur la colline est conditionné par 3 éléments principaux :

• L'habitat

43% des ménages qui souhaitent rentrer posent la construction d'une maison sur le lieu d'origine comme condition préalable au retour. Ce taux s'élève à 67% dans la région Sud et Est. Il est certain qu'après plusieurs années d'abandon, la plupart des maisons sur les collines d'origine sont soit détruites soit complètement délabrées. Malgré les standards fournis par le MRDR [Ministry for IDPs & Refugees], la palette des types d'habitat sur les sites de déplacés est extrêmement large, variant de l'habitat très précaire en paille à la maison en brique dure, en passant par les maisons en torchis ou en brique adobe. Les déplacés de retour sur la colline attendent de bénéficier de

matériaux répondant aux standards minimum pour procéder au retour.

- **Mouvement de retour collectif**

31% des ménages estiment qu'ils rentreront « avec les autres ». Cet argument répond pour beaucoup aux besoins de sécurité et de protection liés à la problématique de réconciliation communautaire au Nord, au Centre et à l'Ouest du pays.

- **La sécurité**

Le niveau de sécurité requis pour rentrer n'est pas directement lié avec la perception de la sécurité précédemment citée. En effet, même si une partie des ménages estiment qu'*aujourd'hui* il n'y a pas de problèmes de sécurité sur leur colline d'origine, ils attendent la consolidation de la stabilité politique du pays pour rentrer. Ils souhaitent également avoir plus de garanties quant au niveau de protection dont ils bénéficieront une fois de retour. Pour cette raison, les élections ne constituent pas un facteur de retour majeur. [...]

La poursuite judiciaire des criminels présumés est mentionnée partout. Les déplacés estiment que ceux qui ont tué les leurs restent sur les collines, jouissent de l'impunité et que par conséquent rien ne les empêcherait de parachever leurs assassinats en cas de retour sur les collines d'origine.»

See also:

IRIN, 23 May 2005, Burundi : 50,000 displaced people fear returning home, *see link below*

Rapport de monitoring de la population "rapatriée" et "déplacée-retournée" Communes de Kayogoro et Nyanza Lac, Province de Makamba, Burundi Septembre 2004 - Avril 2005, **Norwegian Refugee Council (NRC)**, September 2005, *see link below*

Some returning refugees have now become IDPs (2005)

- As of mid-2005, 18.5 per cent of IDPs in Southern and Eastern provinces were returning refugees, who either live on trade with Tanzania or who feel more secure in camps

OCHA, 26 May 2005, p.15:

*According to a national survey conducted by OCHA in 2005, "L'enquête a permis en outre de mettre en évidence des sites où coexistent des déplacés et des rapatriés particulièrement dans les provinces du Sud et de l'Est. En effet, **18.5% des déplacées des provinces du Sud et de l'Est sont rapatriés de Tanzanie** (enregistrés ou pas). Notons que la proportion de rapatriés est très variable d'une région à une autre, les provinces de l'Est abritant les plus forts pourcentages (jusqu'à 65% à Gisuru). La très grande majorité des ménages rapatriés vivent sur les sites situés à proximité de la frontière, particulièrement sur les communes de Gisuru (Ruyigi) et Nyanza-Lac (Makamba). Ceci s'explique par les activités commerciales trans-frontalières qu'ils exercent. Sur Cankuzo et Ruyigi, ce phénomène s'explique aussi par la criminalité qui prévaut dans ces provinces et qui encourage les rapatriés à rejoindre un site de déplacés pour des raisons de sécurité."*

HUMANITARIAN ACCESS

General

International NGO vehicle targeted by shooters in eastern Burundi (December 2007)

ACF, 1 January 2008:

"On Monday, December 31 2007, at 6:30 pm, an Action Against Hunger vehicle was targeted by shooters in the city of Ruyigi in the East of Burundi. Five people, including three female expatriate staff of Action Against Hunger, were inside the targeted vehicle. One of them, a psychologist of Action Against Hunger, died upon arrival at the hospital in Gitega as a results of her injuries. The second victim suffered a gunshot wound and underwent surgery in Gitega. The third Action Against Hunger expatriate escaped uninjured from the shooting."

Deterioration of security does not affect UN operations (November 2007)

UNSC 23 November 2007:

"Overall, the security situation in Burundi has deteriorated considerably since my previous report. The highest crime rates were recorded in Bujumbura and Bujumbura Rural, where the incidence of armed robberies and theft has increased. On 16 November [2007], the Government re-imposed a curfew on roads serving Bujumbura. The curfew, which had been lifted in 2006, starts at 1800 hours until 0700 hours. Bujumbura, Bubanza and Cibitoke remain in security phase III, while the remaining provinces are in security phase II.

The reporting period was marked by a surge in the number of ambushes on highways, an increase in the number of armed robberies, especially within the capital, grenade attacks and sporadic gunfire. The high number of small arms and grenades in circulation as well as the continued influx of illicit weapons into the country are considered factors impacting the security situation. Widespread poverty and the high level of unemployment also continue to be contributing factors. The deterioration of the overall security situation has not affected United Nations staff in a significant way."

NATIONAL AND INTERNATIONAL RESPONSES

National response

State institutions in charge of IDP reintegration and resettlement (September 2009)

National legislation

In March 2009 a Directorate General for Repatriation, Reinstallation and Reinsertion of Displaced and Repatriated Persons was created at the Ministry of National Solidarity, Human Rights and Gender. The Ministry also supervises the Project of Support for Repatriation and reinsertion of War Affected persons (PARESI) that works in collaboration with and funded by UNHCR. PARESI provides basic housing and infrastructure for returning refugees and IDPs. According to observers on the ground, the government does not seem to have a clear policy on how to foster durable solutions for IDPs. However, specific interventions of the Ministry of National Solidarity through the local administration, have tended to promote return rather than local integration or resettlement in another part of the country. The Ministry for National Solidarity has set up a calendar of IDP returns for 8 provinces (Kayanza, Bubanza, Ngozi, Gitega, Cibitoke, Muramvya, Mwaro and Karuzi). (NGO (anonymous), September 2009). The government also set up an IDP Group, but due to the approaching elections the group has not started to operate yet. (Communication with NGO (anonymous), October 2009)

Burundi is also one of the eleven states that on 15 December 2006 ratified the Pact on Security, Stability and Development in the Great lakes Region (the Great Lakes Pact). This pact is a comprehensive package of new norms, standards, and mechanisms for “protecting forcibly displaced people in the countries of the Great Lakes region.” (IDMC, September 2008) Central to the pact are the ten protocols, two of which deal specifically with human rights and internal displacement.

For more information on the Great Lakes Pact, see: The Great lakes Pact and the Rights of Displaced people, A Guide for civil society, IDMC, September 2008

Previous efforts to support IDPs

The Arusha agreement of August 2000 decided to create a National Commission for the Reintegration of War-affected People (CNRS) in order to coordinate the return of refugees and IDPs with international organisations. The CNRS was established in March 2003, but was placed under the Ministry of Reintegration, which was not foreseen by the Arusha Agreement. Being under the Ministry robbed the CNRS of its role as central organ on IDP issues. Short of funds and staff, and lacking support from the government, the CNRS focused its action principally on returning refugees, to the detriment of the internally displaced (FMR September 2004). In 2005, PARESI, replaced the CNRS.

Throughout the years, the Burundian government launched several ambitious programmes which should have benefited IDPs. In 2004, it adopted a national programme for IDP and refugee rehabilitation, but the plan was never really implemented (IRIN 8 November 2004). In February 2006, the Burundian Government launched an emergency programme to cover post-war recovery needs for 2006, and international donors subsequently pledged the totality of the funds requested. The money received was to aid the drought-stricken population, support the rehabilitation of social infrastructures, the improvement of health care, the repatriation of

refugees, and the resettlement of vulnerable people (Government of Burundi, 28 February 2006; IRIN, 1 March 2006). According to a study by Tufts University, the government programme competed with the UN Consolidated Appeal, although both requested \$160 million for 2006 (Tufts University, 30 July 2006). The government launched a seven-year reconstruction plan of \$32.7 million in the provinces of Bujumbura Rural, Buriri and Ruyigi in order to re-establish agricultural activities and rebuild infrastructure. The programme is mainly funded by the International Fund for Agriculture and Development (IFAD) under a loan agreement signed in September 2004 (IRIN, 12 April 2006).

International Response

International Coordination and Programmes (September 2009)

In Burundi, the Resident Coordinator/Humanitarian Coordinator for Burundi is responsible for ensuring a strategic and coordinated response to internal displacement in the country. The RC/HC, Youssef Mahmoud, is also the UNSG Executive Representative for Burundi and Head of the United Nations Integrated Office in Burundi (BINUB), which was established on 1 January 2007, following the conclusion of the mandate of the United Nations Operation in Burundi (ONUB) on 31 December 2006.

Until the beginning of 2009, OCHA was the focal point on IDP issues. The office closed on 30 December 2008 and as of 2009, OCHA supports one national coordination officer, one national information officer and one administrative officer. It complements the team supporting the RC/HC, including a Department of Peacekeeping Operations (DPKO) international Humanitarian Advisor, and a UNDP early recovery technical team of three (OCHA website, accessed 8 October 2009). The current plan is that OCHA leaves Burundi in 2010.

Most IDP-related activities are integrated into agencies / NGO's general humanitarian programmes. This is because most IDPs are living close to their areas of origin and most are facing the same constraints as the non-displaced.

In October 2008 a cluster approach was formally introduced in Burundi. The situation in Burundi is a rather complex one: the humanitarian actors are in the phase of leaving Burundi and there is a strong presence of development actors in the country. Moreover, the government has set up its own national framework pertaining humanitarian assistance. The HC proposed to implement a tailored cluster approach, but coordination between the various actors remains extraordinary heavy. There is for instance no overarching Protection Cluster in place. (Communication with NGO (anonymous), October 2009)

Furthermore, an ad hoc Integrated Commission for Repatriation and Reintegration which constitutes a UN-Government-Donors strategic forum under the chairmanship of the Minister for National Solidarity, Human Rights, Gender and Reconstruction was set up. "With the establishment of the Integrated Commission the important strategic links between the early recovery and protection objectives towards sustainable solutions have become even more apparent." (BINUB, 28 October 2008.). These early recovery and protection objectives are therefore included both in the UN repatriation and reintegration theme group under the UNHCR

and UNDP leadership. The following coordination structure is now in place for humanitarian operation (OCHA, website, accessed 8 October 2009):

Sector	Lead Agency (in support of Government)
Agriculture /Food Security	FAO
Reintegration & Early Recovery/ Protection	UNDP/UNHCR
Education	UNICEF
Health	WHO
Nutrition	UNICEF
Water, Sanitation & Hygiene	UNICEF

Source: OCHA, <http://ocha-www1.unog.ch/humanitarianreform/Default.aspx?tabid=585>, accessed on 8 October 2009

Selective NGO programmes benefitting IDPs (2009)

- NRC supports education (Teacher Emergency Package and Youth Education Package) and provides advice in the resolution of land and property disputes (OCHA, 14 July 2008, Global ICLA-Shelter seminar, Brussels, September 2009).

- Danish Church Aid is implementing a humanitarian mine action programme that focuses on safe access to the returning IDPs; one of its activities is also removing of mines that pose blockages to war affected communities (Danish Church Aid, accessed 8 October 2009).

- "Together with the Burundi Red Cross (BRC), the ICRC assisted some 26,000 persons who were displaced by the armed violence in the spring of 2008. The aid, consisting of blankets, soap and jerry cans for carrying drinking water, went mainly to women, children, the elderly and the disabled.

The ICRC also rehabilitated several wells and fountains in order to ensure that the displaced persons and the communities sheltering them had enough water." (ICRC, 26 March 2009).

Regional initiatives and Partnership for Peace in Burundi (July 2009)

The governments of neighbouring countries have been actively involved in the peace and mediation process in Burundi since its beginning. The Regional Peace Initiative, chaired by Ugandan President Yoweri Museveni, held over twenty summits which resulted in the surrender of the six former rebel movements (Pambazuka News, 12 November 2008). The Facilitation Team, headed by South Africa's Safety and Security Minister Charles Nqakula, was established "to deal with political issues related to the peace process in Burundi" (allAfrica, 16 September 2008).

While South Africa remains the key mediator in the peace process, there have been some institutional changes in 2008. The Facilitation's mandate ended on 31 December 2008 and was replaced by a successor mechanism, namely the Partnership for Peace in Burundi (PPB) (USDOS, June 2009; UNSC, 9 June 2009). "The PPB is a collective of the Political Directorate

(South Africa, Tanzania, UN), Great lakes Special, Envoys, UN Integrated Office in Burundi (BINUB) and the International Conference on the Great Lakes Region" (USDOS, June 2009). It was launched on 27 May and is responsible for moving forward with the disarmament and political integration for the FNL, and monitoring and promoting sustainable peace (USDOS, June 2009; ICG, 30 July 2009; IRIN, 29 May 2009).

Donor response (September 2009)

The main source of funding to improve the situation of IDPs and returnees is the UN Peacebuilding Commission, created in 2006. Of the overall \$35 million envelope for the Burundi Peacebuilding Fund programme, the expenditures to the end of 2008 amounted to \$20,9 million. (UNDP part one, p. 19, 14 July 2009). One of the priority areas for re-construction of Burundi are land disputes between the returning IDPs and refugees on the one side and the current occupants on the other. In 2009, additional funding for emergency projects was approved in response to "imminent threats to the peace process" (UNGA, 8 September 2009).



Burundi 2009

Table B: Total Humanitarian Assistance per Donor (Appeal plus other*)(carry over not included)
as of 23-September-2009
<http://www.reliefweb.int/fts> (Table ref: R24)

Compiled by OCHA on the basis of information provided by donors and appealing organizations.

Donor	Funding USD	% of Grand Total	Unallocated P
European Commission (ECHO)	14,492,601	40.0 %	
Denmark	6,514,050	18.0 %	
Belgium	3,965,675	11.0 %	
Central Emergency Response Fund (CERF)	3,956,773	10.9 %	
Japan	2,000,000	5.5 %	
Germany	1,853,120	5.1 %	
Netherlands	1,326,260	3.7 %	
France	813,649	2.2 %	
Italy	395,257	1.1 %	
Ireland	393,419	1.1 %	
Luxembourg	321,176	0.9 %	
Switzerland	154,489	0.4 %	
Grand Total:	36,186,469	100 %	

The main donors responding to Burundi's humanitarian needs are the European Commission and individual European countries, as well the Central Emergency Response Fund (CERF) which provides funds to underfunded crises, Japan and Switzerland (OCHA, 23 September 2009, [Total Humanitarian Assistance per Donor](#)). Some of the donor countries, such as Belgium and Germany, are supporting organizations that run projects specifically targeting IDPs (see table below) (OCHA, 23 September 2009, [List of all commitments](#))



Burundi 2008

Table A: List of all commitments/contributions and pledges
as of 23 September 2009

<http://www.reliefweb.int/fts> (Table ref: R10)

Compiled by OCHA on the basis of information provided by donors and appealing organizations.

Donor	Channel	Description	Funding USD
Belgium	TEARFUND	Reintegration from returnees & IDP's (NH/2008/31)	783,959
Germany	UNHCR	Peace building activities to empower returnees, IDPs and community-based structures (BMZ-No.: 2008.1822.9)	1,555,210

References to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles (as of May 2008)

- Reference to the Guiding Principles in the national legislation
- Other References to the Guiding Principles (in chronological order)
- Availability of the Guiding Principles in local languages
- Training on the Guiding Principles (in chronological order)

Reference to the Guiding Principles in the national legislation

None

Other References to the Guiding Principles (in chronological order)

~~'Tubiyage' theatre group: an association of seven theatre groups in Burundi assists the international community in disseminating the Guiding Principles for IDPs by using "art, participatory education and 'tradition.'"~~

Document: 'Burundians use innovative ways to protect the displaced,' Greta Zeender in Forced Migration Review No. 16, January 2003 [Internet]

Groupe Technique de Suivi (GTS): IDP protection mechanism established by the government and the UN to follow up on the recommendations of the Framework for Consultation
Date: created in 2001
Documents: GTS: Proposition de Règlement d'Ordre Intérieur et Termes de Référence, February 2001 [Internal link]; Protocole relatif à la création d'un cadre permanent de concertation pour la protection des personnes déplacées, 7 February 2001[Internal link]; Proposition de Termes de Référence, 12 June 2001 [Internal link]

Framework for Consultation on the Protection of IDPs: established by several ministries, the UN and NGOs to better solve protection issues in the light of the Guiding Principles
Date: created in February 2001
Documents: UN Office for the Coordination of Humanitarian Affairs (UN OCHA), 13 March 2002, Compte Rendu de la réunion du Groupe de Contact du mercredi 13 mars 2002 [Internet]

UN Senior Inter-Agency Network: During its visit to Burundi, the Senior Network observed that the Guiding Principles should be used more actively to engage the government and non-State actors on their responsibility towards IDPs.
Date: 23 December 2000
Document: Senior Inter-Agency Network on Internal Displacement, 23 December 2000, Mission to Burundi 18-22 December 2000 [Internal link]

UN Special Representative of the Secretary-General on Internally Displaced Persons, Dr. Francis M. Deng: in all its meetings with the government, the Special Representative drew attention to and disseminated the Guiding Principles on Internal Displacement.
Date: February 2000
Documents: United Nations Representative of the Secretary-General on Internally Displaced Persons (UNRSG), 6 March 2000, Report of the Mission to Burundi to the UN Commission for Human Rights UN Doc. E/CN.4/2001/5/Add.1 [Internal link]

Availability of the Guiding Principles in local languages

The GP are available in in Kirundi.
Date: 2002
Documents: GP in Kirundi, translated by UNICEF Burundi [Internet]

Training on the Guiding Principles

Technical Follow-up Group with the Framework for the Protection of IDPs: held several
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information exchange meetings to disseminate the Guiding Principles on internal displacement, for example with administrative staff of Bujumbura Rural; with local government and military officials in Cankuzo and Ruyigi provinces. In 2003 and 2004, GTS completed sensitisation of IDPs on the Guiding Principles for the protection of IDPs in the provinces of Kayanza, Bubanza, Muramvya and Makamba. The GTS also carried out a routine field visit in several IDPs sites in Gitega provinces.

Dates: 24 January 2002; 20 June 2002; 10 Dec 03

Documents: UN Office for the Coordination of Humanitarian Affairs (OCHA)

Date: 14 Feb 2002 OCHA Burundi: Update on the humanitarian situation 01 - 31 Jan 2002 [Internet]

USAID 20 June 2002, Burundi – Complex Emergency Situation Report #2 (FY 2002) [Internet]

UN OCHA 10 Dec 2003 OCHA-Burundi Situation Report 1-7 Dec 2003 [Internet]

NRC training workshops: IDMC (then Global IDP Project) (NRC) together with Norwegian Refugee Council (NRC)'s office in Burundi held a training workshop on the Guiding Principles in the capital of Burundi, Bujumbura in October 2001. The workshop was part of a global NRC effort to disseminate and explain the Guiding Principles to representatives of governments, NGOs, the UN agencies and the displaced themselves, in order to ensure better protection and assistance to internally displaced persons.

Following the October 2001 workshop, NRC launched a local training project, first with the support from IDMC.

NRC Burundi has been conducting training workshops on the UN Guiding Principles on Internal Displacement in several provinces of Burundi since August 2002. Participants include provincial authorities, UN agencies, international and national NGOs, and IDP representatives. The workshops are part of a global NRC effort to disseminate and explain the Guiding Principles in order to ensure better protection and assistance to internally displaced persons.

In 2004, NRC held training workshops in the provinces of Muyinga, Makamba and Bujumbura Rural (five trainings per province).

In 2003, NRC held training workshops in the following provinces:

- Muramvya, February [report]
- Bujumbura Mairie, February
- Bururi, March, [Report]
- Kayanza, April [Report]
- Kirundo/Muyinga, August [Report]
- Cibitoke, August [Report]
- Mwaro, Sept [Report]

In 2002, NRC's office in Burundi conducted training on the Guiding Principles in the following provinces: Kirundo (Aug), Muyinga (Aug), Makamba (Oct) [Report], Bujumbura Rural (Oct) [Report], Karuzi (Nov) [Report], Gitega (Dec) [Report], Ngozi (Dec) [Report].

Date: Since October 2001

Documents: Norwegian Refugee Council, Workshop on the UN Guiding Principles on Internal Displacement: Bujumbura, Burundi 29-31 October 2001[Internet]

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